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From Backwaters to Battlegrounds

IN A 2011 PHONE CALL with a radio host impersonating David Koch, Wisconsin governor Scott Walker explained that he was part of a national movement of conservative governors who “got elected to do something big” across their states (Newell 2011). Democratic governors like Jerry Brown of California and Jay Inslee of Washington similarly called for coordinated efforts by blue state governments to oppose initiatives by the Trump administration and Republican Congress. If their rhetoric is to be believed, politicians at the state level see themselves engaged in major struggles over the direction of public policy in the United States.

But this contentious rhetoric is at odds with how political scientists describe the policymaking role of state governments. The governors are pitching themselves as central to American politics and public policy. Political scientists, on the other hand, tend to suggest that state governments are actually relatively marginal players. There is a long tradition of seeing state governments as “the runt in the American governmental litter” (Allen 1949; Sharkansky 1968; Teaford 2002, 2), with policy agendas that are highly constrained by economic realities (Peterson 1981) and low legislative professionalism (Kousser 2005). Recent research largely continues this characterization. While some studies report important changes in state policy in the polarized era (e.g., Kousser 2002; Hertel-Fernandez and Skocpol 2016; Hertel-Fernandez 2016), the most comprehensive recent studies in this area conclude that state policy outcomes have been generally “stable” over the years (Caughey and Warshaw 2016, 900) and that party control of government still plays only a “modest” role in policy differences between states (Caughey, Warshaw, and Xu 2017, 1342).

So, are state-level politicians overstating their centrality to policymaking in the United States? Or is political science due for an update? In this chapter, I argue the latter. The nationalization of the Democratic and Republican parties

led to gridlock in Congress—but in the states, it led to a resurgence of major policymaking.

I first present evidence that state governments have moved from the margins to the center of American politics and policymaking since the 1970s. Over the past generation, the federal government polarized and produced fewer major policies that standardize laws across states (Binder 2003; Hacker and Pierson 2010), and the judiciary became an increasingly “state friendly arena” (Waltenburg and Swinford 1999, 2). Faced with federal gridlock, policy-demanding groups, activists, and social movements on both the right and the left turned to the states to pursue their policy priorities (e.g., Baumgartner and Jones 2010). As parts of two national partisan networks, these policy demanders were able to rapidly shift policymaking resources to states where their party took control and make major changes in short order.

The policy consequences of this shift have been profound. I use data on 135 major state policies to investigate two particular policy dynamics in the fifty states: increased *policy variation* (the substantive differences between states) and *policy polarization* (the relationship between party control and policy outcomes). Recent decades have seen a strengthening relationship between an individual’s state of residence and her legal right to obtain an abortion, own a firearm, join a labor union, or use drugs, as well as her tax burden, the strictness of her state’s environmental regulatory regime, and the generosity of its welfare state.¹ As it was before the New Deal and civil rights eras, the state level is once again central to Americans’ relationship to government.

Scholars have underemphasized the importance of increased policy variation and polarization in the states, and this has led to the underestimation of the role of the states in American governance. But just as important, they have neglected a key area where state policy is *not* very diverse and is remarkably *unpolarized*: policing and criminal justice.

These exceptions have much to teach us about American democracy. Indeed, my analysis uncovers that—unlike 14 of 16 policy areas as wide-ranging as environmental regulation, LGBT rights, and health policy—Democratic and Republican states both implemented similar “tough on crime” laws that led to mass incarceration and were equally unwilling or unable to rein in the racial authoritarianism of the police forces under their command. This exceptionalism of policing and criminal justice in defying the polarization pattern highlights a broader lack of attention by political scientists to the role of

1. Journalists have been pointing to these trends as well (e.g., Fehrman 2016).

policing in modern racial authoritarianism. As Vesla Weaver and Gwen Prowse (2020, 1177) write, “Despite racial authoritarianism’s glaring presence in experiential accounts of U.S. democracy, it has been hiding in plain view in the field of political science. In a field responsible for constructing metrics on democratic stability and political behavior, our failure to theorize racial authoritarianism has had consequences for how U.S. democracy is conceived by the public and policy-makers.” This failure has also led scholars and political observers to underestimate the role of state governments, which have constitutional authority over nearly all U.S. law enforcement agencies.

The state level has returned as a critically important part of American federalism and as deeply consequential for the lives of Americans. The resurgence of state policy over the past generation can be seen in the increasingly varied and polarized policymaking in areas like abortion and labor policy, as well as in the bipartisan buildup of authoritarian policing and mass incarceration. Ironically, the rise of nationally coordinated and polarized parties has led to a shifting of policymaking down to the state level.

In the rest of this chapter, I first review literature on the role of state governments within American federalism. Next, I develop my argument about how the nationalization and polarization of the Democratic and Republican parties incentivizes groups to shift their political resources to the state level. I then look empirically at the resulting state policy resurgence, estimating policy variation between states and how this variation is driven by party control of state government. Finally, I investigate the areas of exception, where state policy is not polarized by party—education and especially criminal justice policy—and offer potential explanations for these patterns.

The Minimalist View of States

Three decades after Daniel Elazar (1990) predicted resurgent states in an emerging “neodualist” era of federalism, observers point to intensifying battles over public policy at the state level. However, there has been little empirical investigation of systemic policy changes in the states over time. Though scholars are now less likely to call them the “backwaters” of American politics (Winston 2002, 106), scholars have tended to take a *minimalist view* of state policymaking.

John Kincaid (1990, 144), former director of the U.S. Advisory Commission on Intergovernmental Relations and a prominent scholar of federalism, describes a twentieth century in which the role of states shrank and U.S. federalism became “more adaptable to policy preferences defined increasingly by

the national government”—where the federal government moved from “senior partner” to “commanding partner” (see also Posner 2007; Zimmerman 2009).² By 1975, even the predominant federalism scholar William Riker (1975, 143) suggested that the existence of lower levels of government “makes no particular difference for public policy.”

Additional research lends credence to the minimalist view by highlighting the constraints that face lower levels of government in federalism. Fiscal federalism suggests that the threat of exit from businesses and wealthy residents exerts downward pressure on taxation, redistribution, and regulation (Peterson 1981; Oates 1999), which reduces the potential for variation across states.³ Fiscal federalism implies that state governments have little policy discretion compared to the federal government: they face a greater threat of exit, and with no ability to manipulate a floating currency, they face economic forces beyond their control and greater pressure to balance budgets.⁴ State legislators also lack the policymaking resources of members of Congress (Kousser 2005). Lower salaries increase the incentive to spend time earning money outside of their political offices, and fewer staff limit the ability to research and draft legislation. Even if state legislators face equivalent pressures from voters and interest groups as members of Congress, we would expect those in state capitals to be less productive because of these resource constraints.

Despite these constraints, however, roll-call voting in state legislatures has polarized in recent years (Shor and McCarty 2011). Whether the prior cause of polarization stems from voters, interest groups, or politicians themselves, greater polarization implies greater distance between the policy preferences of Democrats and Republicans,⁵ and thus increasing polarization of policy outcomes in the states. But most prominent studies of state policy outcomes still tend to favor the minimalist view (e.g., Dynes and Holbein 2020). While

2. A few conservative commentators counter the minimalist view, arguing, for instance, that liberal state governments like that of the “failed state of California” are too active in attempts “to regulate the internet, to tax corporations on profits earned in foreign jurisdictions, and to impose sales tax collection obligations on internet sellers domiciled elsewhere” (Greve 2011, 6).

3. However, some research challenges the prediction of a “race to the bottom” in the states (Volden 2002; Konisky 2007).

4. Researchers highlight the inability to devalue a currency as a major barrier to fiscal policy in lower-income Eurozone countries (e.g., Krugman 2013).

5. This is true at least to the extent this polarization is ideological, as well as to the extent that non-ideological partisan brinksmanship incentivizes ideologically distinct policy agendas (Lee 2009).

“Democrats and Republicans may disagree consistently and even violently,” Devin Caughey, Christopher Warshaw, and Yiqing Xu (2017, 1356) conclude that “the actual policy consequences of these disagreements are far less dramatic.” The increasingly partisan and ideologically consistent rhetoric of Democratic and Republican governors and state legislators is just that—talk, with little consequence for public policy (for other examples of minimal effects of party control, see Garand 1988; Erikson, Wright, and McIver 1993; Jacobs and Carmichael 2002; Konisky 2007). This chapter’s theory and empirical analysis challenge this line of research.

How National Polarization Affects State Policy

Political scientists have published countless books and articles about the expanding polarization between the national Democratic and Republican parties in recent decades and its consequences for elections, legislative voting, and national policy. But there hasn’t been much attention on how nationally polarized parties are filtered through the institutions of American federalism. This is in part because political science research has tended to see the states as fifty separate polities, where policy changes occur as a result of political inputs within each of these separate political systems. In this perspective, an increase in state policy variation and polarization could be the result of partisan sorting and polarization of state electorates.

But when we widen our perspective to study American federalism as a broader system with feedbacks between states and across levels of government (Karch and Rose 2019), we can begin to theorize why the state level might be returning as the central locus of major policymaking and policy conflict in recent decades. In addition to a direct effect of polarization (e.g., Shor and McCarty 2011), I argue that the development of nationally coordinated and polarized parties *interacts with American federalism* to shift policymaking down to lower levels of government.⁶ Polarization and divided government at the *national* level move policy action down to the state level, where one party is more likely to have unified control of government. Because the party networks

6. The parties were nationally polarized in earlier eras of American politics, such as during the late nineteenth century when national polarization over slavery resulted in the Civil War. The war led to greater centralization of governance at the national level until the end of Reconstruction, when expansion of Jim Crow once again widened the variation across states in areas of civil rights and racial equity.

are *nationally coordinated*, policy-demanding groups can shift political resources to the right states at the right time to implement their agendas.

Gridlock at the Federal Level

Polarization and divided government have caused a slowdown of national policy creation (Binder 2003), but federalism may serve as a “safety valve” for policy demanders who are stymied at the federal level. An expansion of national policy from the New Deal through the early 1970s “centralized” governance and standardized the welfare state and civil rights law across the states (Melnick 1996; Mettler 1998; Campbell 2014). Although New Deal programs allowed states to exclude many Black Americans from benefits (Weir 2005; Katznelson 2013), landmark policies like the Social Security Act of 1935 and the Civil Rights Act of 1964 decreased interstate policy variation by establishing or raising legal and economic baselines.⁷

However, in the years since the 1970s, polarization has increased in Congress and divided federal government has become a more frequent occurrence (McCarty, Poole, and Rosenthal 2006). This has led to policy gridlock (Binder 1999) and “drift” (Hacker 2004)—and higher costs of national policy change for policy demanders. Faced with federal gridlock, policy demanders turn to states to implement their agendas. Frustrated climate activists may turn their hopes to the states (Rabe 2004), as might organized labor (Meyerson 2014), LGBT rights activists (Lax and Phillips 2009), or antistatist and business interests (Skocpol and Hertel-Fernandez 2016). Federal gridlock also means that these policy-demanding groups can be more confident than in earlier periods that their state policy victories will not soon be reversed by federal legislation or court rulings.

Venue Shifting to the State Level

One reason the state governments can serve as a safety valve for policy demanders is because of their partisan diversity. As the parties polarize, policy demanders are incentivized to ally themselves with one side (Bawn et al. 2012).

7. This process of centralization continued in the welfare and regulatory buildup of the 1960s and 1970s. Landmark federal policies that decreased state variation during this era include the Social Security Amendments of 1965 and 1972, the Gun Control Act of 1968, the National Environmental Policy Act of 1969, and the Clean Air Act of 1970.

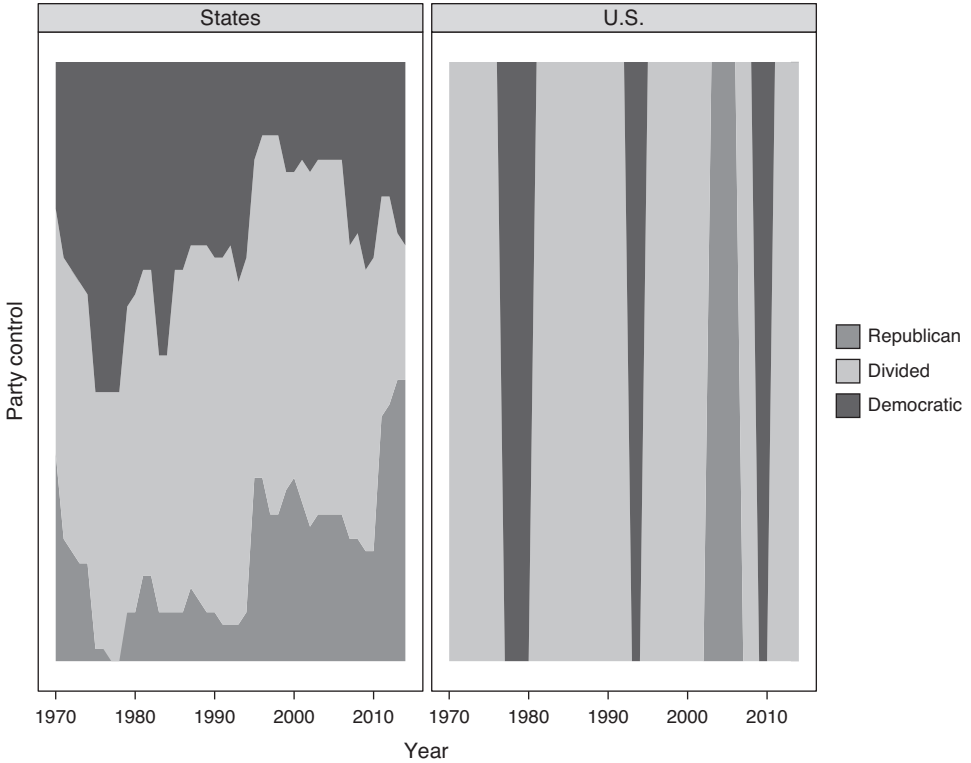


FIGURE 3.1. Partisan Control at the State and National Levels.

Fortunately for them, there will (virtually) always be at least one state government controlled by their aligned party.⁸ Moreover, the federal government has been more likely to be under divided party control than state governments in recent decades. Between 1970 and 2014, the U.S. House, Senate, and presidency have only been under unified party control about 27 percent of the time (12 of 45 years), whereas the average state has been under unified control about 50 percent of the time. Regardless of whether this difference in the likelihood of unified party control is due to federalist institutions or historical happenstance, we would expect relatively less gridlock in the states as polarization increases and, in turn, a relative growth in the role of state governments as major policymakers.⁹

8. There were no unified Republican states in the year after the Watergate scandal.

9. Constantelos's (2010) study of interest groups based in Michigan and Ontario uncovers evidence that groups select venues based on party control.

In the rarer moments when important federal policy does pass, polarization and divided government increase incentives for members of Congress to delegate authority to the states (e.g., Mooney 2000; Feeley and Rubin 2009; Chatfield and Rocco 2014). A legislator who would ideally implement his or her preferred policy across all fifty states may accept a decentralized policy as a second-best option if it moves the average outcome (such as the policy regime for the average state or average individual) toward his or her ideal. Moreover, the district-based electoral connection in Congress can improve the relative appeal of the second-best option because “representatives know that when they delegate to state and local agents, policy for *their* constituents will be set by representatives elected by those same constituents” (Chatfield and Rocco 2014, 4). Indeed, the rise of polarization in Congress has coincided with what scholars call a “devolution revolution” (e.g., Soss et al. 2001; Grogan and Rigby 2008; Kelly and Witko 2012). In a similar fashion, the federal judiciary has undergone a “federalism revolution” in which the courts are an increasingly “state friendly arena” (Whittington 2001; Waltenburg and Swinford 1999, 2) precisely during an era of increasingly partisan and narrow decisions (Baum 2015).

But this isn’t just the story of the federal government becoming more permissive of decentralization. As chapters 4 and 5 will describe, it is about policy-demanding groups investing in state-level politics. These groups—ideological and issue activists, business lobbies, and wealthy individuals—shifted their attention and political resources toward the states. They and their allies in state governments innovated new ways to use the powers of the state level within American federalism, whether this meant passing major state legislation, marshaling state attorneys general against opponents in the federal government (Merriman 2019), or finding new ways to suppress the vote.

Polarization and divided government at the national level led policy-demanding groups to shift their sights to the state level. The next sections detail four consequences for public policy over the past generation. First, fiscal capacity moved from the national to the state level; as the federal government stalled and the states took up the slack, the states began to occupy a greater share of American taxation and public spending. Second, policy became increasingly varied across states; the average American’s policy regime became increasingly tied to their state of residence. Third, party control of state government became the strongest predictor of a state’s policy outcomes, with the national Democratic and Republican parties implementing distinct policies. Finally, states expanded their capacity to police and incarcerate their residents, rapidly increasing the U.S. prison population—but, unlike

other policy areas, this rise of authoritarian policing and mass incarceration was a bipartisan affair.

Fiscal Activity Moves to the States

One way we can observe state governments transforming from “backwaters” to central players in American federalism is in the balance of fiscal activity between the state and national level. From the 1930s through the 1970s, Congress passed a number of transformational national economic policies. The Social Security Act of 1935 and its expansions in subsequent decades created a system of old age and disability insurance, massively reducing senior citizen poverty. Medicare and Medicaid provided public health insurance for the elderly and low-income families. Laws like the Glass-Steagall Act of 1933 and the Clean Air Act of 1970 funded federal agencies to regulate the financial industry and large polluters. To finance these initiatives, the federal government raised taxes, especially on the wealthy, who famously faced a top marginal income tax rate of 91 percent through the Eisenhower presidency. All of these policies helped narrow the wide economic differences between the states and centralized fiscal activity at the national level.

But by the 1980s, these trends reversed. The federal government not only slowed its production of major economic policies but also dramatically cut taxes and domestic spending. The federal government further devolved economic policy authority to the states in areas like welfare, which converted from the national Aid to Families with Dependent Children (AFDC) to the state-level Temporary Aid for Needy Families (TANF) during the Clinton presidency.

As the national government pulled back, states, particularly more liberal states controlled by Democrats, expanded their fiscal capacity. States like California and Oregon raised taxes on high earners to help finance social programs that the federal government appeared uninterested in providing. Another illustrative example is the provision of public benefits for immigrants. The 1996 welfare reform made legal immigrants ineligible for federal benefits for the first five years of residency. In response, some states moved to cover these new immigrants in their Medicaid, TANF, and State Children’s Health Insurance Program (SCHIP) policies using only state funding (Hero and Preuhs 2007), again increasing the relative role of the states.

In figure 3.2, I plot total state government spending, employment, and average state tax rates (covering capital gains, corporations, and income) as a

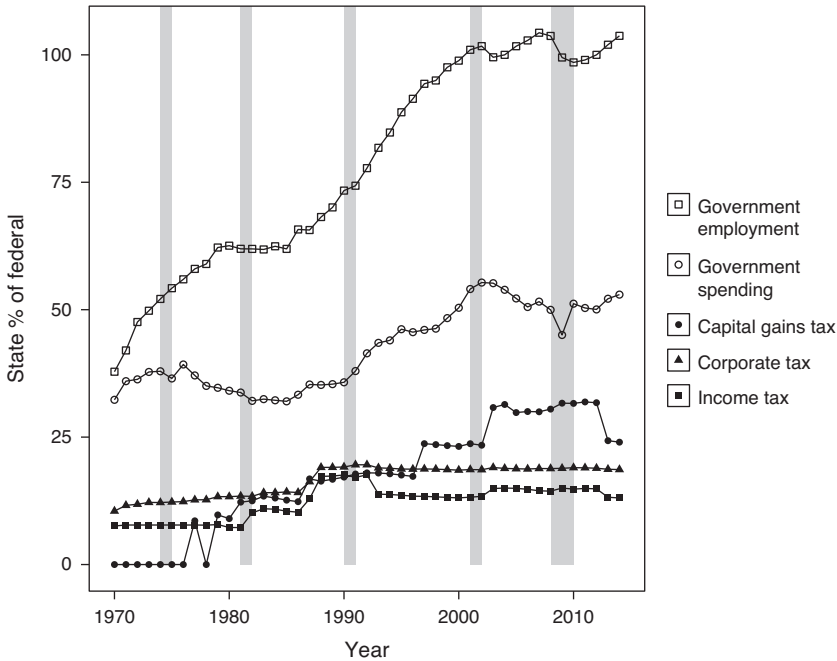


FIGURE 3.2. Fiscal Activity Shifts toward States, 1970–2014.

percentage of its corresponding federal level.¹⁰ Each of these measures of fiscal activity shows an expanding role of state government since the late 1970s. The line marked by empty circles, government spending, increases both because states begin to spend much more on their prison systems through the 1980s and 1990s and because the federal government slows spending (though it's worth noting that this slowdown is concentrated in domestic spending, not military). Similarly, the lines representing taxation (with the shapes shaded black) show the shift toward the state level. In income taxes, for example, the top marginal rate at the federal level of 71.75 percent in 1970 hit a postwar nadir of 28 percent in 1988, whereas some liberal states like California increased top marginal rates to about 14 percent—still much lower than the federal rate but a record for state-level taxation. Shaded years represent recessions, which tend to temporarily increase the role of the federal government compared to the states.

The bulk of public spending, and especially public employment, saw massive shifts from the national to the state level. This trend again partly reflects

10. State percent of federal taxes is in terms of nominal tax rates, not revenue raised.

the national government's slowdown in domestic policymaking, but it is more so the result of the huge buildup of state prison systems in the era of mass incarceration. Per capita spending on prisons and jails, almost all at the state level, more than quadrupled since 1980—closely tracking the expansion of the U.S. prison population.

Fiscal activity has moved downward across the levels of American federalism in recent decades. But fiscal activity is not the only way we can analyze the expanding role of the state level. We can also look directly at major state policy outcomes in many different issue areas, such as abortion, environmental, and labor policy. In the next section, I describe how I use a large data set of state policies to *measure* changes in state policy outcomes over time.

Measuring Policy Outcomes

In this section, I describe my strategy to measure policy outcomes and estimate the changing relationship between party control and policy. I developed a comprehensive data set of state policy outcomes since 1970,¹¹ but to build it, I stood on the shoulders of giants. I collected data on 35 policies, to which I added data from Jordan and Grossmann 2016, Caughey and Warshaw 2016, and Boehmke and Skinner 2012 to create a data set of 135 policies. (I also extended years of coverage for 16 policies from the other data sets.) Caughey and Warshaw (2016, 902–3 and Supplemental Material) provide a detailed description of many of the policies, which can be binary (e.g., Right to Work laws), ordinal (e.g., mandatory parental notification or consent for a minor's abortion), or continuous (e.g., marginal tax rate on high incomes). Table 3.1 lists the policies.

The data I collected cover policies of considerable importance. They include election laws and state capital gains taxes, as well as various regulations related to public sector unions (Anzia and Moe 2016), abortion rights and coverage (Guttmacher Institute), campaign finance (Barber 2016b), and immigrant workers (National Council of State Legislatures). I also collected data on state laws that preempt localities from raising the minimum wage or requiring companies to provide paid sick leave for employees (see Riverstone-Newell 2017).

11. I start in 1970 because of the difficulty in comparing the modern period with the Jim Crow regime, which entailed mass disenfranchisement of Black Americans and a de jure racial caste system.

TABLE 3.1. Ideological Content of Issue Areas

Issue Area	Concept
Abortion	Legal right to and cost of emergency contraception and abortion
Campaign Finance	Restrictions on individual, corporate, PAC contributions; public funding of elections
Civil Rights & Liberties	Penalties for discrimination based on race, gender; religious privileges
Criminal Justice	Punitiveness
Drugs	State legality of federally illicit drugs (especially marijuana)
Education	Spending; public vs. private control
Environment	Restriction on emissions, chemicals; protection of species
Guns	Legal rights to purchase, own, or carry a firearm
Health & Welfare	Generosity (eligibility, benefit levels)
Housing & Transportation	Command and control
Immigration	Legal right to public services for undocumented; regulation of hiring undocumented
Labor	Right to unionize; wage laws
LGBT	Protections or penalties for homosexuality
Taxes	Marginal rate; progressivity
Voting	Cost, access to voting

Of particular importance are my data on criminal justice policies. Although some research focuses specifically on criminal justice (e.g., Yates and Fording 2005), research that summarizes policy across issue areas has neglected incarceration. For instance, aside from a few drug-related policies (e.g., medical marijuana laws), the Caughey and Warshaw (2016) data set only contains data on four criminal justice policies: death penalty repeal, the establishment of probation (only for the 1936–39 period), animal cruelty as a felony, and age-span provisions for statutory rape cases (i.e., the decriminalization of sex between consenting teenagers of similar ages). These policies are generally orthogonal to the rise of mass incarceration. I collected data on laws that criminal justice research considers central to the rise of mass incarceration (for a review, see Travis, Western, and Redburn 2014, chap. 3): truth-in-sentencing laws, which require individuals to serve a minimum percentage of their original sentence; three strikes laws, which increase penalties for an individual's third felony; and determinate sentencing laws, which specify mandatory minimum sentences.¹²

12. In some instances, these “tough on crime” policies were passed by ballot initiative, such as California’s three strikes proposition in 1994.

To measure party control of government, I used variables that indicate whether a state is under unified Democratic control, unified Republican control, or divided control (Klarner 2013). While control of the executive branch or one or more legislative chambers may have an independent or partial effect on policy outcomes (Smith 1997), I focused on unified control because polarization and divided government interact to produce gridlock (Binder 1999). Key to the analyses is the comparison of the party-policy relationship across time. Because policy change is rare compared to other political dynamics, estimating a completely dynamic party effect (i.e., by year) is difficult. Precision and clarity are greatly improved by estimating an average party effect for different eras that span multiple years (e.g., Caughey, Warshaw, and Xu 2017, table 3). I primarily compared the association between party control and policy change during two eras: the 1970–99 period and the 2000–2014 period.¹³ In practice, this entails interacting the party control variable with a dummy variable for the 2000–2014 period to estimate the marginal effect of party control on policy change during the different eras. Temporal breaks in time-series models can also be estimated empirically. Chow tests reject the null of no structural break in the party-policy relationship between 1999 and 2000 with $p < 0.01$ for every policy measure used in this study, which suggests that there is, indeed, a significant change in the relationship between party control and policy outcomes between the 1970–1999 and 2000–2014 periods.

Unidimensional Measures

Political scientists often summarize public opinion, legislative votes, and, more recently, policy outcomes on a unidimensional left-right orientation. Recent unidimensional policy measures provide a summary of the ideological content of policy on a dimension typically described as “policy liberalism” or “the role of government” (Erikson, Wright, and McIver 1993; Caughey and Warshaw 2016). Each state gets a policy “score” or “ideal point” for each year, representing the left-right orientation of its policies. In this section, I briefly summarize my findings on *unidimensional* measures, as a prelude to more detailed presentation of my study of *issue-specific* policy dynamics.

13. Setting this threshold between 1999 and 2000 strikes a balance between periods that are long enough (precision) and highlights the potentially precipitous increase in policy polarization in the most recent years of hyperpolarization (Mann and Ornstein 2013).

As a first cut at the data, I estimated policy variation and polarization with four unidimensional left-right measures of policy outcomes. The first is the State Policy Liberalism (SPL) measure from Caughey and Warshaw (2016), a set of state-year policy ideal points generated from a dynamic Bayesian IRT model. Second, I estimated the same ideal point model with my expanded policy data set to produce an Expanded SPL measure. The third and fourth measures are Substantive Scales, simple additive indices (averages) that are the sum of a state's liberal policies minus its conservative policies in a given year. These measures serve as expert-coded alternatives to the Bayesian IRT latent dimension estimates and are analogous to the "Policy" measure of Erikson, MacKuen, and Stimson (2002, chap. 9). One of the additive indices weights policies equally, while the other is the average of issue area-specific indices. (Subsequent sections address how the ideological direction of policies is determined.) All measures are normalized to a range between 0 and 1.

This exploratory analysis suggests that policy *variation* has increased across states over time. The spread of policy ideal points has widened greatly since the 1970s. The range and standard deviation estimates are remarkably similar across the measures. The range of ideal points is at least a third larger in the 2010s than in the 1970s and 1980s, and the standard deviation is at least two-thirds larger.¹⁴

These measures also suggest that this growing variation is related to party control of state government—policy *polarization* has increased. Using dynamic panel regressions, figure A.1 plots the marginal effect of unified party control of government on change in ideal points for the 1970–99 period and the 2000–2014 period. All of the estimates show at least a twofold increase in the magnitude of the relationship between party control and policy ideal points (see also Caughey, Warshaw, and Xu 2017). The expanding variation and polarization evident in the unidimensional analysis motivates the investigation of *issue-specific* policy dynamics. Unidimensional ideal points serve as strong summary measures, but generally, they may create obstacles to inference by obscuring multidimensional variation or conflating extremism and

14. The Substantive Scales, which do not use data from earlier years to smooth ideal points over time like the Bayesian IRT measures, show slightly larger increases in range and standard deviation over time (starting from slightly lower in the 1970s and ending slightly higher in the 2010s).

consistency (Broockman 2016), and they rely on relatively strong assumptions about the comparability of policies across issue domains.¹⁵

More importantly, it is difficult to draw conclusions about the substantive content of policy—its effect on members of the polity—from unidimensional ideal point estimates. Policy scholars may be interested in more specific temporal dynamics in residents' relationship to government. Are state abortion laws more or less restrictive? In which direction have state tax rates, restrictions on campaign contributions, and the generosity of welfare benefits moved in recent decades?

Policy Indices by Issue Area

Issue area measures provide a clearer picture of historical changes in policy substance. Although many studies have employed summary measures of policy outcomes in a single issue area (e.g., Norrander and Wilcox 1999; Hero and Preuhs 2007), mine is the first to compare across many issue area indices. I group the policies into sixteen discrete issue areas: abortion, campaign finance, civil rights and liberties, criminal justice, drug policy, education, environment, gun control, health and welfare, housing and transportation, immigration, labor (private sector), labor (public sector), LGBT rights, taxes, and voting.

In each area, I calculate a simple substantive measure of average policy outcomes: the number of liberal policies minus the number of conservative policies (see also Erikson, MacKuen, and Stimson 2002, chap. 9). Because policies can be binary (e.g., medical marijuana laws), ordinal (e.g., voter ID laws, which can be strict or non-strict), or continuous (e.g., minimum wage level), I normalize each policy to range from 0 to 1. A binary policy, which a state either has or does not have, takes on the value of 0 or 1, whereas an ordinal

15. Additionally, although they may be advantageous in the study of roll-call votes (e.g., Clinton, Jackman, and Rivers 2004), there are two reasons to prefer straightforward additive indices over latent dimension estimates (e.g., factor analysis or Bayesian IRT) for the measurement of *policy outcomes*. Historical, normative, and policy scholarship provides clear priors about the ideological content of policy. Empirically deriving model parameters (the ideological content of policy) from the data rests on the joint assumption that (a) liberal states are liberal because they pass liberal policies, and (b) liberal policies are liberal because liberal states pass them. When this assumption is violated historically (e.g., during the 1960s and 1970s some conservative southern states were early adopters of liberal abortion laws), the model may produce parameters that do not conform to substantive understandings about the ideological content of policy.

or continuous policy, such as a tax or minimum wage, is transformed to the [0, 1] scale. A state's score in an issue area index is therefore the sum of the liberal policies minus the sum of the conservative policies.

This kind of measure relies on three assumptions: first, the ideological "direction" of policy (whether it is liberal, conservative, or neither); second, that policies are of equal substantive importance; and third, that the direction and importance remain constant over time. These assumptions are unlikely to be satisfied in practice, especially equality of substantive importance.¹⁶ However, I argue that these simple index measures strike a balance between agnosticism, precision, transparency, risk of bias, and substantive interpretability.

Determining the *ideological direction* of more than 130 policies is a difficult task. The primary left-right ideological dimension, or "what goes with what," has changed over time, but for the most part political observers characterize policies on the *left* to be those that (1) expand the use of state power for economic regulation and redistribution (Rawls 1971; Foner 1984; Weir 2005; Wang 2005; Brinkley 2011) or increase or protect the rights of historically marginalized groups in society (Black Americans and other non-white racial groups, women, LGBT individuals, immigrants, and religious minorities) (DuBois 1935; Foner 1988; Kessler-Harris 2001; Shelby 2005; Kollman and Waites 2009); and (2) restrict the use of state power for the punishment of deviant social behavior (Simon 2007). Policies on the *right* do the opposite (Himmelstein 1992; Brinkley 1994; Harvey 2007). Although there is considerable nuance throughout political and intellectual history, in short, left policies promote social libertarianism and economic interventionism, while right policies promote traditional (incumbent) social values and oppose state intervention in markets.

Yet even with this large body of historical and normative scholarship, there is still no objective, unifying test of whether a certain moral principle, political action, or legal statute is on the left or right. Many scholars argue that the first dimension of politics represents the "size of government" (Poole and Rosenthal 1997), but this is not always the case. For instance, policies that expand rights and protections for Black Americans, which are understood to be liberal, can involve expansions of state power (e.g., anti-lynching laws) or restrictions on state power (e.g., laws that reduce prison sentences). The same is true of

16. One might argue, for example, that income taxes are more substantively and normatively consequential than capital gains taxes and should thus be weighted more heavily in calculating the issue area indices.

abortion laws, where Medicaid coverage of abortion and bans on “partial birth abortion” both involve greater state intervention but are quite ideologically distinct. It is thus no surprise that there is an ongoing debate about whether the clustering of policies along partisan and ideological lines is due to “natural” ideological or psychological principles (e.g., Haidt 2012) or whether they are the products of idiosyncratic historical coalition partnerships between interests in society that over time became path-dependent (e.g., Karol 2009; Bawn et al. 2012).

I argue that an *issue-specific* left-right conceptualization can improve inference for studies of policy dynamics. Rather than assuming that issues “go together” in unidimensional space, table 3.1 shows conceptual dimensions that determine the ideological direction of policies within each issue area.¹⁷ The left-right dimension for abortion policy, for example, represents the legality and costs (broadly defined) of obtaining an abortion. Other issue areas represent multiple related concepts. Tax policy, for example, is comprised of two concepts: absolute rates and progressivity (the distribution of marginal rates across income levels), and health and welfare policy is comprised of both benefit levels and the strictness of eligibility. I base a policy’s *direction*—left, right, or, in a small number of cases, neither—on its expected effect on the issue-specific dimension. This issue-specific conceptualization also helps avoid the problem of sorting and shifts over time regarding which issues “go together” on a single left-right dimension. While the cluster of issues on the left and right has shifted over the nineteenth and twentieth centuries (e.g., Schickler 2013), issue-specific assessments (e.g., whether a policy restricts or broadens access to abortion) have largely remained constant.¹⁸

Interstate Policy Variation

In this section I estimate change in state policy since 1970. Figure 3.3 plots each issue area policy index. The gray lines represent the policy outcomes for each individual state over time.

17. Within an issue area, a policy can be on the “left” or “right,” but these terms are simply shorthand for the concepts described in table 3.1.

18. Of the 135 policies shown in table 3.1, I exclude the 15 in the Other category because they (a) have unclear issue-specific ideological content (e.g., animal cruelty felony), (b) are socioeconomically inconsequential (e.g., beer keg registration), and/or (c) are insufficiently varied or numerous to create an issue area (e.g., state lotteries).

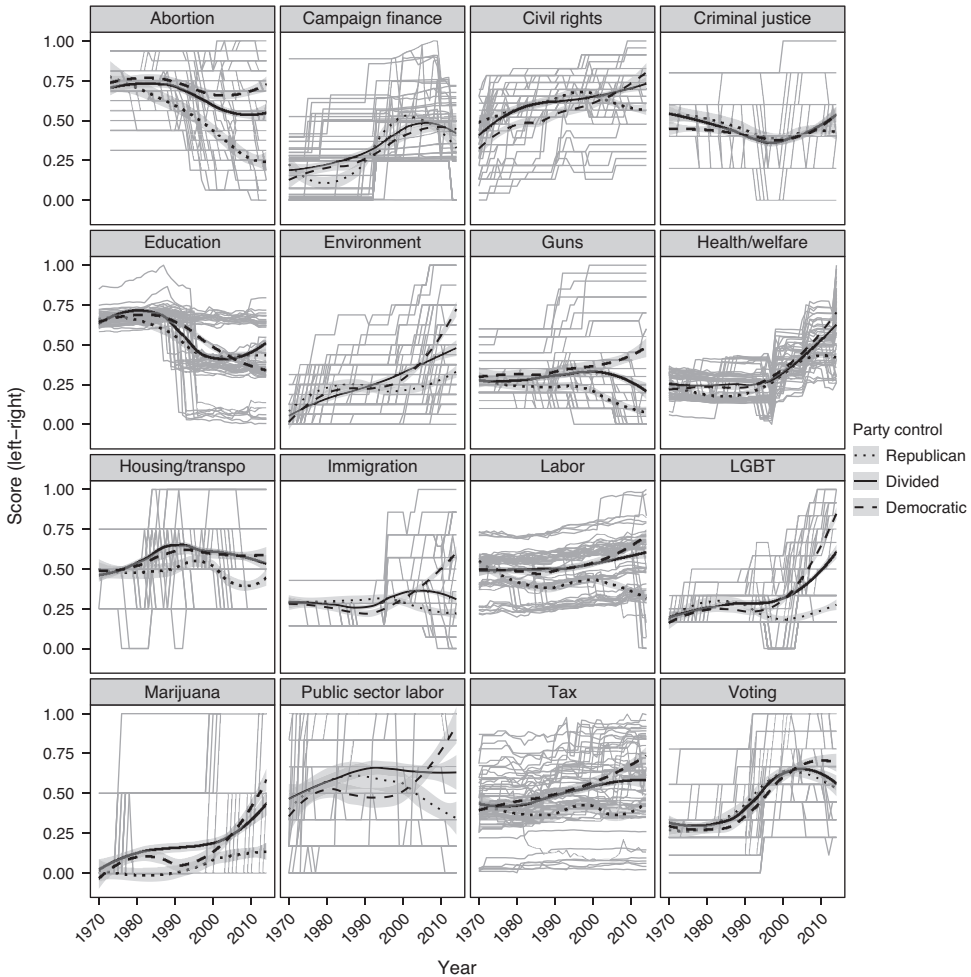


FIGURE 3.3. State Policy Outcomes by Party Control.

States' policy outcomes within each issue area diverge greatly over time; this represents increased *overall variation* in state policy outcomes in each area. Compared to the 1970s, the policy regime under which an individual lives is increasingly determined by her state of residence. For instance:

- Abortion: In 1973, states only differed in Medicaid coverage for abortion and other minor regulations. By 2014, the most restrictive states mandated waiting periods, parental notification, counseling, licensed

physicians, a twenty-week gestation limit, and restricted insurance coverage for abortion.

- **Environment:** In 1970, the greenest states had state EPAs and endangered species laws. By 2014, they had strict regulations of greenhouse gas emissions for cars and utilities, solar tax credits, and a plethora of recycling programs.
- **Gun Control:** In 1970, the least strict states allowed open carry and the strictest states required dealer licenses and purchaser background checks. By 2014, the least strict states had added Stand Your Ground laws, while the strictest states banned assault weapons and mandated registration and waiting periods for purchases.
- **Health and Welfare:** In 1970, states varied in AFDC benefits and Medicaid adoption. By 2014, Massachusetts offered generous TANF and SCHIP benefits and had expanded Medicaid, while Alabama did not expand Medicaid, required drug tests for public benefits, and required a monthly income below \$268 for a family of three to qualify for TANF.¹⁹
- **Immigration:** In 1970, states mostly varied in laws establishing English as official state language, and all legal immigrants were eligible for public welfare and health programs. By 2014, only some states provided public benefits to new legal immigrants.²⁰ Some states provided in-state tuition for undocumented college students, allowed drivers licenses for undocumented immigrants, and banned the use of e-verify for employment, while other states required all employers to use it.
- **Taxes:** In 1970, some states had no income or capital gains taxes, while the highest tax state, Vermont, had a 5.54 percent top capital gains rate and 14.88 percent top income rate. By 2014, many states continued to collect no income or investment taxes, but California had a 14.1 percent top capital gains rate and a 14.1 percent top income rate.

Some areas, such as environmental policy, become more liberal over time on average. All of the major policies in this area increase environmental regulation or public spending in pursuit of environmental quality, and the most conservative states on the environment simply do not pass the major

19. This (\$268 per month) is about 16 percent of the Federal Poverty Level for a family of three.

20. The 1996 welfare reform made legal immigrants ineligible for federal benefits for the first five years of residency; some states then moved to cover these new immigrants in their Medicaid, TANF, and SCHIP programs using only state funding (Hero and Preuhs 2007).

environmental laws that the “green” states do. Of course, as we gain greater understanding of the reality of climate change—that maintaining the status quo will lead to utter catastrophe—the liberal policy shifts appear less and less substantial relative to the scale of the problem.

State economic policies in the health and welfare issue area also move in a liberal direction over time as states implement programs like SCHIP and expanded Medicaid. In his book *Red State Blues* (2019, chap. 3), Matt Grossmann points to these liberal economic policy shifts in the states as evidence that the conservative policy push has been mostly unsuccessful. Grossmann makes an important point that conservative victories often only block expansions of the welfare state and progressive policies, not fully reverse them.²¹ But this is another moment where attention to *federalism*, rather than *state politics*, matters for our inferences. In the economic policy areas that have seen a leftward shift in the states, one must keep in mind that although the average *state* government has expanded its taxation and social welfare provision, U.S. taxation and the welfare state taken *as a whole* have not expanded the same way.²² For example, while states like California raised income taxes on high earners to a level never before done by a state government, this increase was a fraction of the size of federal tax *cuts* over the same time period. The shift of policymaking to the states is associated with a friendlier overall tax and welfare state environment for the wealthy.

Abortion policy, in contrast to the economic and regulatory policy areas, tracks more conservatively since *Roe v. Wade* (1973). A few states become more liberal on abortion over time as they pass laws to provide Medicaid coverage for abortion and over-the-counter emergency contraception. This liberal trend, however, is swamped by the spread of abortion restrictions in states, such as mandatory parental notice for minors and bans on “partial birth abortion.” Though not included in this analysis, prior research finds similar dynamics for Targeted Regulation of Abortion Provider (TRAP) laws, which “single out abortion providers and impose on them requirements and regulations that are excessive and more stringent than those imposed on other medical practitioners” (Medoff and Dennis 2011, 955).

21. Research in comparative political economy has long emphasized the difficulty of rolling back the welfare state, as beneficiaries become entrenched and block welfare state retrenchment (Pierson 1994), though more “submerged” forms of retrenchment have affected the American welfare state in particular (Hacker 2004).

22. The Affordable Care Act and, to a lesser extent, SCHIP were welfare state expansions, but the United States also experienced retrenchment in the 1996 welfare reform, as well as more “submerged” forms of retrenchment in welfare state policies around retirement, employee health benefits, and other areas (Hacker 2004).

A third set of issue areas, such as immigration and labor, sees similar growth in *variation* but does not become more liberal or conservative on average since the 1970s. Each issue area shows growing *policy variation* across states, but they also show partisan *policy polarization*: policy outcomes in Republican states are more distant from those in Democratic states. In particular, figure 3.3 shows the correlation between party control and policy outcomes in each area (with the dashed lines representing unified Democratic states, the dotted lines representing unified Republican states, and the solid line representing divided states). There are two issue areas that do not fit this pattern, where increased overall variation appears nonpartisan: criminal justice and education.

The averages of Republican, Democratic, and divided states in figure 3.3, however, are simple correlations, so the growing policy divergence by party control could be simple sorting—states with conservative policies becoming Republican and states with liberal policies becoming Democratic. To test the changing relationship between party control and policy *change*, in contrast, I estimate dynamic panel regressions and compare the marginal effect of party control on policy outcomes for the 1970–99 period and the 2000–2014 period. Figure 3.4 plots these results.

Partisan Policy Polarization

Figure 3.4, which tests the relationship between party control and policy *change*, corroborates the correlations shown in figure 3.3.²³ Again, in 14 of the 16 issue areas, the party effect polarizes after 1999: there is a greater difference in the effect of unified Democratic control relative to that of unified Republican control in the 2000–2014 period than in the 1970–99 period. The amount of polarization depends on the partisanship of policy—that is, whether, for instance, Democratic states increase taxes relative to Republican states. But the overall amount of policy activity in a given area matters. For example, states become less active on civil rights and liberties as time progresses but more active in areas like drug policy, LGBT rights, and voting rights.

Figure 3.4 shows that party control is no better at predicting policy change in criminal justice or education in recent years. Both before and after 2000, party control does not predict change in criminal justice policies. States controlled by Democrats pass punitive and liberal criminal justice policies at

23. I follow the dynamic panel models of Caughey, Warshaw, and Xu (2017), who add lagged dependent variables for year $t-1$ and $t-2$ to traditional two-way fixed-effects models to improve fit.

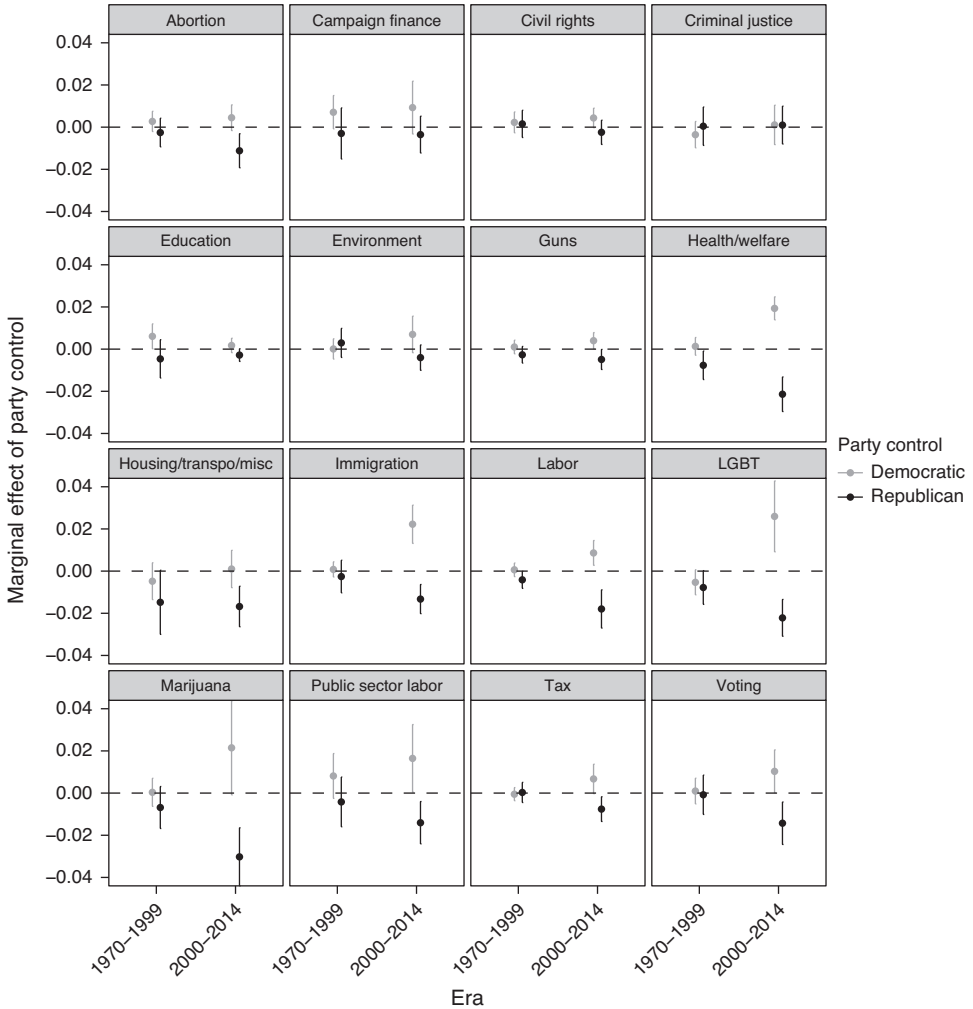


FIGURE 3.4. The Effect of Party Control on Policy Outcomes.

similar rates to divided and Republican states. In both eras, states controlled by Democrats are slightly more likely to pass liberal education policies (e.g., increase spending in K–12 or higher education) and less likely to pass school choice, voucher, and charter laws. However, party control becomes slightly *less* predictive of education policy changes after 2000. In both of these issue areas, the static or decreasing predictiveness of party control stands in contrast to the other 14 issue areas in which party control increasingly explains policy change.

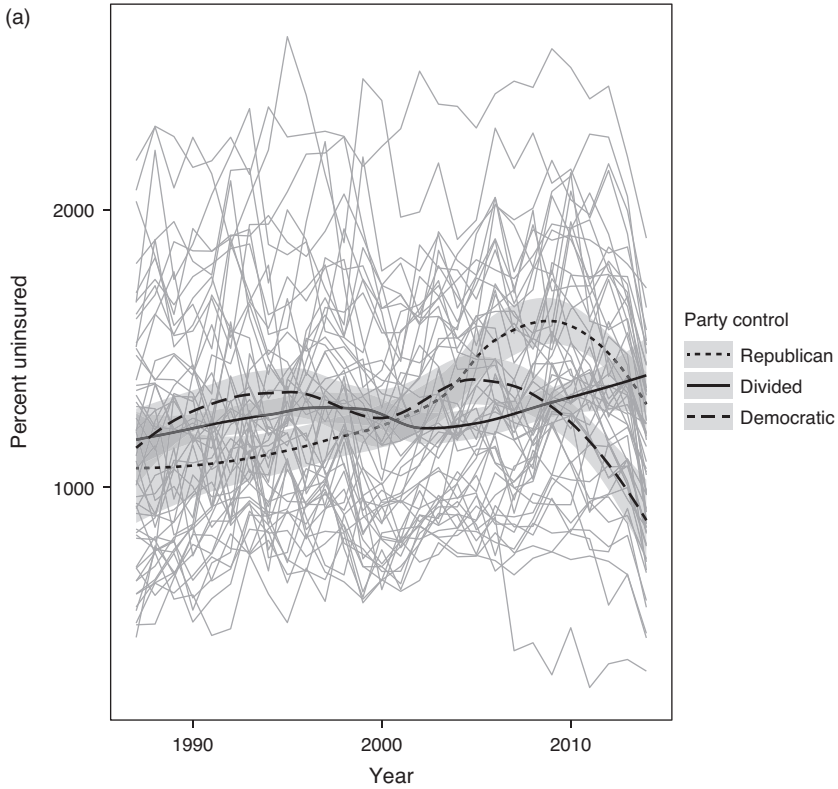


FIGURE 3.5. Party Control and Health Insurance Coverage.

Note: Party control increasingly predicts health insurance coverage over time. Plot (a) shows the average percent uninsured by state party control over time (using loess). Plot (b) shows the marginal effect of unified Republican control on the uninsured rate for the 1987–99 period and the 2000–2014 period across three time-series model specifications.

But does this policy polarization matter for the lives of these states' residents? Does it matter for socioeconomic outcomes that there is polarization in 14 issue areas, such as tax and health policy, but *non-polarization* in criminal justice and education?

How Policy Polarization Affects the Lives of Americans

The polarization of policy carries major socioeconomic consequences for residents. In the polarized areas of health and environmental policy, party control of state government increasingly predicts rates of health coverage and carbon intensity of a state's energy supply, respectively. In the non-polarized areas of criminal

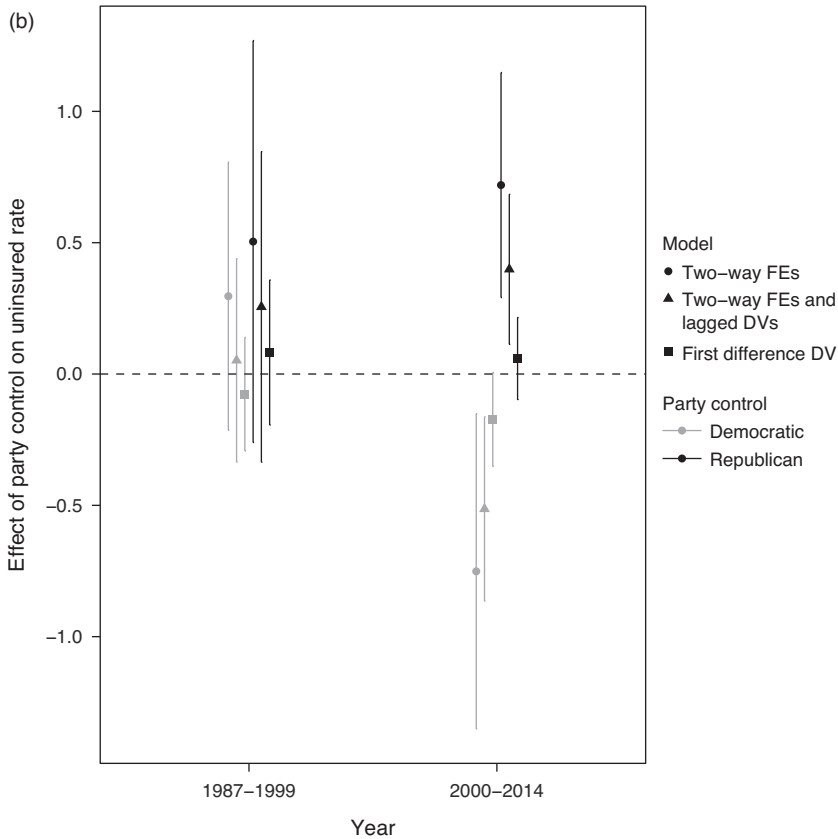


FIGURE 3.5. (continued)

justice and education, however, party control *does not* increasingly predict rates of incarceration (overall or among Black residents) or graduation rates, respectively. In this section, I focus in depth on health and criminal justice policy.

The health policy agendas of the national Democratic and Republican parties have been distinct since at least the 1930s. Health policy in the states has been similarly polarized for decades, as Democratic states have tended to have more generous Medicaid eligibility and benefits. As the role of states in health policy expanded with the development of state prescription drug benefits for seniors, as well as federal grants for the State Children's Health Program (1998) and Medicaid expansion under the Affordable Care Act (2014), state health policies increasingly varied—and this variation was increasingly related to party control of government (Trachtman 2020).

Socioeconomic *outcomes* related to health policy polarized accordingly. Figure 3.5 shows the relationship between party control and the *uninsured rate*.

Plot (a) displays state uninsured rates (the gray lines) and the average Republican (dotted), Democratic (dashed), and divided (solid) state from 1987 through 2014. Plot (b) shows the marginal effect of party control for the 1987–99 and 2000–2014 periods from different time-series regression models.

In both the correlation and the regressions, party control of government is increasingly associated with health insurance coverage in more recent years. Whereas prior to 2000, party control does *not* predict change in the uninsured rate, after 2000 unified Republican control is associated with a 0.75-percentage-point increase in the uninsured rate and unified Democratic control is associated with a 0.75-percentage-point decrease in the uninsured rate. These differences in coverage are of considerable social consequence. Health policy scholars, for instance, “estimate the number of deaths attributable to the lack of Medicaid expansion in opt-out states at between 7,115 and 17,104” (Dickman et al. 2014).

Other research highlights how state policy changes and polarization have affected the lives of Americans in other ways. Wisconsin’s restrictions on public sector unions’ collective bargaining in 2011 increased the gender wage gap among teachers, with women’s wages falling relative to men’s (Biasi and Sarsons 2020). The expansion of state earned income tax credit (EITC) policies for low-income families increased children’s future employment and earnings prospects (Bastian and Micheltore 2018). States that increased their minimum wage reduced criminal recidivism (Agan and Makowsky, forthcoming). State climate policies, such as public benefit funds and renewable portfolio standards, reduced carbon emissions (Prasad and Munch 2012; Wakiyama and Zusman 2021). Although it is hard to estimate precisely, it appears that state assault weapon bans reduce the number of school shootings (Gius 2018).

In contrast, education and criminal justice policies are—uniquely—non-polarized. In education, Democratic state governments pass school choice and charter school laws and spend at similar rates to Republican state governments.²⁴ In criminal justice even more so, Democratic and Republican states both instituted “tough on crime” laws that led to mass incarceration. The lack of polarization in these areas relative to others has largely reflected the positions of the national Democratic and Republican parties, and a substantial literature describes the bipartisan history of policymaking in these areas (e.g.,

24. However, I do find a modest increase in polarization in K–12 spending per pupil (but not higher education spending), with Democratic governments spending more than Republican governments after 2000.

DeBray 2006; Hursh 2007; Weaver 2007; Alexander 2012; Wolbrecht and Hartney 2014).

Criminal Justice Policy Is Similar in Red and Blue States

Mass incarceration—the internationally unprecedented number and proportion of Americans, disproportionately Black, under correctional control—has drawn increasing scholarly attention with respect to its origins (Weaver 2007; Lacey 2008; Wacquant 2009; Alexander 2012) and consequences (Western 2006; Manza and Uggen 2008; Weaver and Lerman 2010). The same is true of the most public-facing side of the criminal justice system: policing (Forman 2004; Cohen 2010; Fortner 2015; Harris 2016; Stuart 2016; Soss and Weaver 2017). And more importantly, they have generated historically widespread protests based in the Black Lives Matter movement.

The rise of racially authoritarian policing and mass incarceration is the result of changes in law and bureaucracy *in the fifty states*. Of the powers reserved to the states in the Tenth Amendment of the U.S. Constitution, *police powers* are the most prominent and likely the most socially consequential. State and local agencies account for the overwhelming majority of law enforcement, and the federal prison system houses less than 6 percent of the U.S. incarcerated population. There is new but limited research focusing on the interaction of mass incarceration and federalism (Miller 2008; Lacey and Soskice 2015; Miller 2016).

But, curiously, many observers point their righteous indignation not at the state or local level but at national authorities. “I Was Arrested, Jailed and Assaulted by a Guard; My ‘Crime’? Being a Journalist in Trump’s America,” read a July 9, 2020, headline from the UK newspaper the *Independent*. British journalist Andrew Buncombe was arrested for the “failure to disperse” during the Black Lives Matter protests on July 1, 2020, surrounding the then recent police killing of George Floyd.²⁵ This perspective on the Trump presidency makes some sense. Trump has had a confrontational history with the press, frequently attacking journalists and journalism more broadly, and the independent

25. Andrew Buncombe, “I Was Arrested, Jailed and Assaulted by a Guard; My ‘Crime’? Being a Journalist in Trump’s America,” *Independent*, July 9, 2020, <https://www.independent.co.uk/news/world/americas/journalist-arrest-seattle-chaz-protest-police-prison-black-lives-matter-a9606846.html>.

Freedom of Press Foundation counted 149 assaults of journalists by police and more than 45 arrests between May 25 and June 4, 2020.²⁶

Yet the Seattle Police Department (SPD) that arrested Buncombe is not under the authority of the federal government. It is part of the City of Seattle, a well-known liberal city with a Democratic local government, which derives its legal status from Washington State, a well-known liberal state with a Democratic state government.²⁷ While the broader trends toward a more authoritarian form of governance under President Trump have been rightly noted by scholars, the authoritarianism here is of a different sort. Buncombe's arrest was the result of a police department that felt comfortable arresting and detaining a journalist for the crime of recording events, a police department whose authority derives from the city and state, not the federal government. In fact, prosecutions of peaceful protestors by state and local authorities in both red and blue states skyrocketed during the 2020 Black Lives Matter movement.²⁸

Democratic and Republican states alike have enabled police to take excessive and violent action against journalists, protesters, and ordinary (especially Black) Americans. From state and local prosecutors who refuse to bring charges to legislatures that pass laws shielding police from consequences, many state and local actors from both major political parties have converged to enable the expansion of police violence and prison populations. Despite the social importance and comparative punitiveness of American criminal justice policy, its politics has been mostly bipartisan as the parties compete to be perceived as "tough on crime." Vesla Weaver (2007, 261) discusses how after 1968 "even liberal Democrats did not talk about civil rights without deploring crime." Michelle Alexander (2012, 55–56) places responsibility on not only the Republican Party but also on Democrats for adopting "tough on crime" policies, especially during the 1990s. At the local and county levels, Justin de Benedictis-Kessner and Christopher Warshaw (2016, 2020) find

26. Trevor Timm, "We Crunched the Numbers: Police—Not Protestors—Are Overwhelmingly Responsible for Attacking Journalists," *Intercept*, June 4, 2020, <https://theintercept.com/2020/06/04/journalists-attacked-police-george-floyd-protests/>.

27. First-class city, RCW 35.01.010.

28. Adam Gabbatt, "Felony Charges against BLM Protesters Are 'Suppression Tactic,' Experts Say," *Guardian*, August 16, 2020, <https://www.theguardian.com/world/2020/aug/16/felony-charges-blm-protesters-suppression-tactic>.

TABLE 3.2. Criminal Justice Policies by Party Control

	Policies Passed (Repealed) by Party Control					
	Democratic		Divided		Republican	
	1970–1999	2000–2014	1970–1999	2000–2014	1970–1999	2000–2014
Three Strikes	8	1	11	1	5	0
Determinate Sentencing	6 (1)	1	11 (1)	0	2	0 (2)
Truth in Sentencing	5	0	4 (2)	0	1	0
Death Penalty Repeal	2	5	1	1	0	0

Note: Democratic and divided state governments passed more punitive criminal justice policies than did Republican governments, though removal of the death penalty mostly occurred in Democratic states. Numbers in parentheses represent repeals.

that Democratic and Republican mayors spend similar amounts on policing in their cities and that the partisanship of county legislatures has no effect on police spending.

As shown in table 3.2, punitive criminal justice policy has not polarized in the states. An exception is the repeal of the death penalty; five Democratic states repealed the death penalty between 2000 and 2014.²⁹

Jeff Yates and Richard Fording (2005) find a significant association between Republican control of government and incarceration rates for white and especially for Black people between 1978 and 1995, and I similarly find a statistically significant effect of unified Republican government for the 1978–99 period.³⁰ The substantive effect, however, is modest and inconsistent across models: the two-way fixed-effect model (the least strict test) shows an increased incarceration rate of about 30 people per 100,000 residents, but the other models show no effect (see Plot (b) in figure 3.6). An increase in a state incarceration rate of

29. Though the states' execution of 1,445 individuals since 1976 is of great social consequence, it is less related to mass incarceration than the other policies because in all likelihood these individuals would have been given a life sentence had the death penalty not been in effect. Moreover, the death penalty is unique because Texas is responsible for more than a third (542) of the executions in the United States since the death penalty was ruled constitutional in 1976.

30. Data on incarcerated populations are from the Bureau of Justice Statistics (ICPSR 36281). Yearly state population estimates by race are from linear interpolation of decennial Census numbers (Weden et al. 2015).

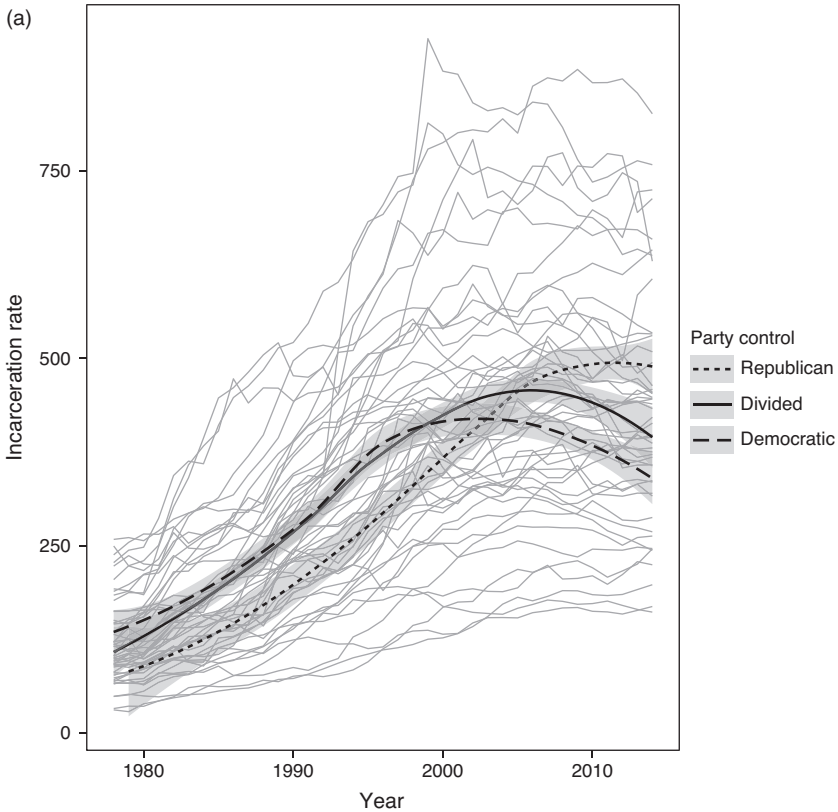


FIGURE 3.6. Incarceration Does Not Polarize by Party over Time.

Note: Incarceration *does not* polarize by party over time. Plot (a) shows the average incarceration rate per 100,000 residents by state party control over time (using loess). Plot (b) shows the marginal effect of unified Republican control on the incarceration rate for the 1978–99 period and the 2000–2012 period across three time-series model specifications. Models control for the crime rate at year $t - 1$ (see Yates and Fording 2005).

30 individuals per 100,000 residents is substantively minuscule in a society in which one in 36 adults are under correctional jurisdiction.³¹

More importantly, there is no evidence of a polarization of incarceration rates by party across time. This *decreased* effect of Republican control in the post-2000 period is a stark contrast to the rapid polarization in other policy areas.

31. This is the 2014 estimate from the Bureau of Justice Statistics, and it includes people on parole or probation.

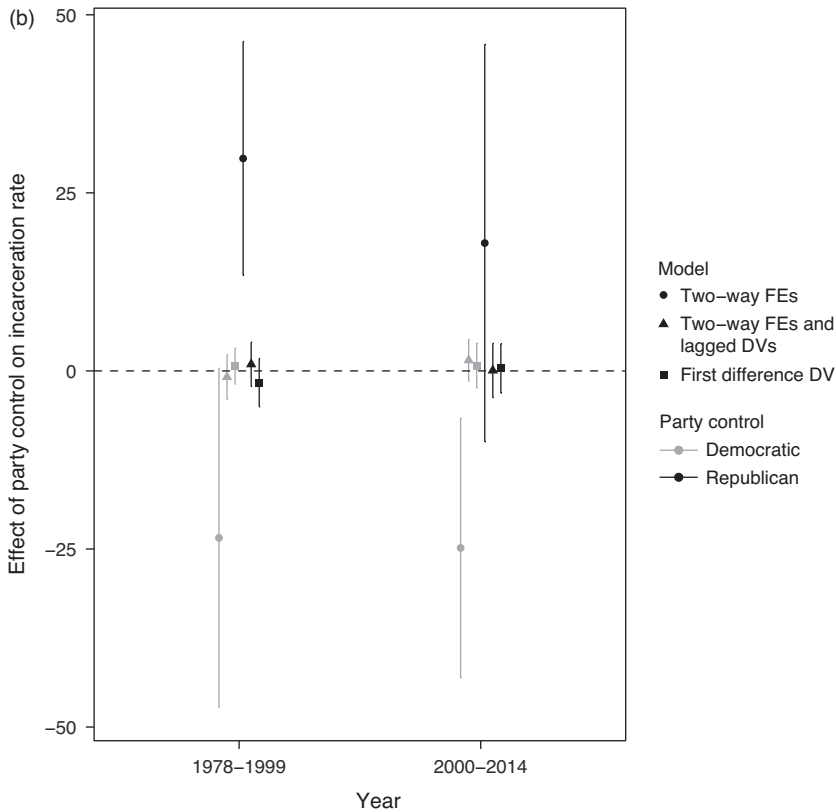


FIGURE 3.6. (continued)

I also estimated the relationship between party control and the incarceration rate for Black Americans. Even more than for the overall incarceration rate, the Black incarceration rate becomes *less polarized* after 2000. For most models prior to 2000, Republican control is associated with an increase in the Black incarceration rate of about 100 per 100,000 residents, but the party differences decrease after 2000.

Overall and Black incarceration rates do not appear to polarize in the states, but recent years have seen growing partisan conflict over the use of *private* prisons (Price and Riccucci 2005).³² The use of private prisons may be more polarized than overall incarceration because it may generate conflict not only

32. Price and Riccucci (2005) test the cross-sectional relationship between partisan and ideological variables and private incarceration for the year 1990. To the author's understanding, this is the first test of this relationship across time.

over crime and punishment concerns but also over profit incentives for punitiveness, reports of inhumane conditions, and the fundamental role of the state and the social contract (Shapiro 2011). I estimated the relationship between party control and the percent of inmates who are housed in privately owned prisons, but only beginning in 1999 due to a lack of available data. Analogous bivariate and panel regression analyses suggest a modest relationship between party control and private prisons. After 2010, Democratic states have significantly lower proportions of inmates in private facilities. However, the panel regressions show at most a small effect of party control (less than 1 percent), which is only statistically significant in the model employing the first differenced dependent variable (not the two-way fixed-effects or lagged models).

When it comes to policing and criminal justice policy, it doesn't appear to matter much whether your state or local government is red or blue. The 2020 protests following the police murders of George Floyd, Breonna Taylor, Jacob Blake, and many other Black Americans often focused on pressuring Democratic state and local officials—who in most cases control the police departments who committed these prominent murders—to implement serious policing reform. But progress has been hard to come by.

In the blue state of Minnesota, activists and a unanimous city council proposed a major restructuring of the Minneapolis Police Department, the law enforcement agency whose officer killed George Floyd. The proposal would amend Minneapolis's city charter, a process that requires a citywide ballot measure. However, in a rare procedural move, the state-appointed Minneapolis Charter Commission blocked the item from the ballot.³³

When it comes to the goal of changing policing and criminal justice policy, we have seen greater social movement pressure and favorable trends in public attitudes—and increasingly progressive rhetoric from state and local Democrats. So why has policy change been slow to come? The answer may be the same mechanism of electoral competition described by scholars like Peter Enns (2016) and Vesla Weaver (2007), that Democratic candidates (at all levels) worry about alienating white voters. Indeed, Democratic leaders vocally argued that calls from some candidates to “defund the police” did electoral

33. Liz Navratil and Miguel Otárola, “Minneapolis Charter Commission Blocks Controversial Policing Proposal from November Ballot,” *Star Tribune*, August 6, 2020, <https://www.startribune.com/charter-commission-blocks-plan-to-remake-police-from-ballot/572016392/>. This measure ended up appearing on the 2021 ballot.

harm to the party in the 2020 election. But given the scope of social movement pressure and liberalizing racial attitudes among Democratic voters, there may be another side to the story. Specifically, part of the answer may lie in the organizational power of police. American police departments have come to resemble not street-level bureaucrats in the classic public administration formulation but *cartels* that do not bow to civilian political authority.

When city councils, mayors, and even the federal government threaten to institute reforms, police rebel. They withdraw their labor: calling in sick, taking longer to respond to calls, and generally pulling out of communities.³⁴ Despite the fact that Covid-19 is considerably deadlier for police officers than violence, a nontrivial number of police officers have resigned or threatened resignation in opposition to local Covid-19 vaccine mandates.³⁵

During the George Floyd protests, the NYPD arrested the daughter of Bill de Blasio, the mayor of New York City. The Sergeants Benevolent Association (SBA) then tweeted out details of the arrest, asking, “How can the NYPD protect the city of NY from rioting anarchist[s] when the Mayor[']s object throwing daughter is one of them?” The SBA tweet disclosed Chiara de Blasio’s address and other personal details.³⁶ In some cases, this sort of coercive and threatening activity by police extends even further. After charging a protester with a Class A felony, carrying a maximum sentence of life in prison for the crime of buying red paint, police in Salt Lake City, Utah, began investigating State Senator Derek Kitchen for the alleged crime of sending the protester ten dollars.³⁷

In Portsmouth, Virginia, after protesters brought down a Confederate monument, police charged several prominent local figures with felonies, including

34. Alec MacGillis, “What Can Mayors Do When the Police Stop Doing Their Jobs?” *ProPublica*, September 3, 2020, <https://www.propublica.org/article/what-can-mayors-do-when-the-police-stop-doing-their-jobs/amp?s=07>.

35. Becky Sullivan, “Police Officers and Unions Put Up a Fight against Vaccine Mandates for Public Workers,” NPR, October 19, 2021, <https://www.npr.org/2021/10/19/1047140849/police-officers-unions-vaccine-mandates-covid-19>.

36. Eliza Relman, “Alexandria Ocasio-Cortez Accuses New York Police Union of Threatening Mayor Bill de Blasio’s Daughter after Her Arrest at Saturday’s Protests,” *Business Insider*, June 1, 2020, <https://www.businessinsider.com/aoc-attacks-nypd-for-threatening-bill-de-blasios-daughter-after-arrest-2020-6>.

37. Pat Reavy, “Utah Sen. Derek Kitchen Accused of Helping Pay for Paint Used by Protesters,” *Deseret News*, August 19, 2020, <https://www.deseret.com/utah/2020/8/19/21376211/senator-derek-kitchen-accused-helping-pay-red-paint-used-protesters-district-attorney-vandalism>.

members of the NAACP, a public defender, a school board member, and the president pro tempore of the Virginia Senate, Louise Lucas, a Black woman.³⁸ Police in Portsmouth were undeterred by the fact that Senator Lucas had not touched the monument and that Virginia state police had earlier investigated the incident, charging no one.³⁹ Police also pushed for the removal of the Portsmouth Commonwealth's attorney (i.e., the city's prosecutor), Stephanie Morales, who is Black, from the case by naming her as a potential witness. The vice mayor, Lisa Lucas-Burke, who is also Black, was further charged with a crime for calling on the chief of police to step down.⁴⁰

These are not isolated incidents. They demonstrate a deep and far-reaching problem of authoritarianism and unaccountability in American policing and criminal justice—issues that have sparked condemnation from international organizations such as the United Nations Human Rights Council. As Amnesty International notes, “All 50 states and Washington, D.C. fail to comply with international law and standards on the use of lethal force by law enforcement officers.”⁴¹ “The ‘land of the free’ has become a country of prisons,” proclaims the international organization Human Rights Watch. What I hope to highlight is the fact that this authoritarianism is both *bipartisan* and concentrated at the *state level*.

Changes in health and criminal justice policy in the states have been highly consequential for the lives of Americans. The politics of these two policy areas, however, are quite distinct. Health policy in the states has polarized considerably over the past generation based on the party in control of government. This has had major consequences for the health of states' residents, especially with respect to state governments' decisions around whether to expand Medicaid under the Affordable Care Act. Some Republican states' decisions to reject

38. Ana Ley, “Portsmouth Council Members May Have Broken Law by Asking for Charges in Confederate Monument Case,” *Virginian-Pilot*, September 10, 2020, <https://www.pilotonline.com/government/local/vp-nw-greene-moody-psimas-emails-20200910-w3ulihstrdrcljvg464tritbi-story.html?outputType=amp>.

39. Ana Ley and Gary A. Harki, “A Powerful Black Leader. White Opposition. Criminal Charges. An Old Pattern Continues in Portsmouth,” *Virginian-Pilot*, August 22, 2020, <https://www.pilotonline.com/government/local/vp-nw-portsmouth-lucas-history-20200822-theoupptlfh4pomdqhnc3loxnu-story.html>.

40. Ley, “Portsmouth Council Members May Have Broken Law.”

41. Amnesty International, “USA: The World Is Watching,” <https://www.amnestyusa.org/wp-content/uploads/2020/07/WorldisWatchingFullReport080220.pdf>.

free federal money to expand Medicaid have resulted in untold health and economic strain for low-income families—and tens of thousands of preventable deaths.

On the other hand, while criminal justice policy in the states has also become increasingly important to the lives of Americans, it has been *non*-polarized: both blue and red states have ramped up racially authoritarian policing and massively expanded their prison populations. Overall, health policy and criminal justice are substantively important and illustrative cases in which major socioeconomic outcomes are polarized to the extent that relevant *policies* are polarized. They are also areas in which state governments have taken on a greater role over the past generation within American federalism.

But 2020 showed signs that criminal justice policy in the states will increasingly resemble health policy in the 2020s. The Black Lives Matter protests following the killing of George Floyd pressured state and local officials to make their actions match their words on issues of racial justice. And though we shouldn't overstate their significance, some state governments—mostly those controlled by Democrats—responded with policy reforms. The Democratic governor and legislature of Virginia passed a law banning no-knock warrants. Colorado and New York banned police chokeholds. Minnesota and other states established new police review boards. These policing reforms are small compared to the scale of the problem of institutional racism in American criminal justice, just as states' expansion of Medicaid is an incomplete solution for American health care. But they have the potential to make meaningful progress.

State Resurgence

There are strong historical and theoretical reasons to expect state governments to be marginal players in American policymaking. Compared to the federal government, states face greater threat of exit from business and wealthy residents. Their legislatures are poorer in terms of the time, money, and information required to change policy. Major interstate differences in policy, such as the legality of racial segregation or gender discrimination in employment, have been washed away by landmark federal policies. Yet this minimalist characterization of states has grown antiquated. Over the past half century, and especially the last two decades, state governments have grown much more important and powerful than in the generation prior. As Bulman-Pozen (2018) describes, “The

state side of . . . policymaking has become increasingly important as polarization has sidelined Congress.”

While the federal government grew more gridlocked, states implemented major policies that shape the lives of their residents. Federal laws from the 1930s through the 1970s decreased interstate variation in all of the policy issue areas described in this chapter. Since 1970, in contrast, interstate variation increased as some states implemented restrictions on guns, abortion, labor unions, welfare, and voter eligibility, while others loosened restrictions. Moreover, some of the most significant recent federal policies have served to increase interstate variation rather than decrease it. In addition to welfare devolution in 1996 (Soss et al. 2001), the Supreme Court ruling in *National Federation of Independent Businesses (NFIB) v. Sebelius* (2012) gave states great discretion in the implementation of the Affordable Care Act, and the choice of whether to expand Medicaid and create a state-run health insurance marketplace (Beland, Rocco, and Waddan 2016). There are notable exceptions where Congress and the federal courts have decreased variation in state law, however. In a famous example of “coercive federalism,” the National Minimum Legal Drinking Age Act of 1984 threatened to withhold federal highway grants from states that did not increase their drinking age to twenty-one. The area of LGBT rights is also prominent. *Lawrence v. Texas* (2003) invalidated state sodomy bans. Though not included in this chapter’s analysis because it occurred after 2014, the *Obergefell v. Hodges* (2015) case legalized same-sex marriage by invalidating state marriage bans.

The upward trend in interstate policy variation is not inevitable, however. In 2017, the federal government came under unified Republican control, and that unified federal government could have acted aggressively against state policies it opposed. However, aside from a momentous tax cut skewed toward the very wealthy, the unified Republican government of 2017 and 2018 failed to pass major national policies. Still, it remains to be seen whether a federal government under the control of one party shifts policymaking away from the states and back toward the national level.

The resurgence of the state level within American federalism prompts new questions about the quality of democracy at the state level. As legal scholar David Schleicher (2018) writes, “any justification for federalism in a democracy—whether it is the greater fit between preferences and policies, sorting, laboratories of democracy, or protection of local identities—will rely heavily on state elections working to create representative, accountable, and

locally-differentiated politics” (see also Schleicher 2016). In the coming chapters, I address such questions. Who is setting policy agendas in state governments? How healthy is American democracy at the state level? The next two chapters suggest that, rather than a sea change in public opinion, the major policy changes of the era of state resurgence are the result of increasingly coordinated national networks of activists and organizations that make up the modern Democratic and Republican parties.

6

Partisan Laboratories of Democracy

THE LAST CHAPTER investigated the rise of organized national activists in state politics—an important organizational shift that contributed to the nationalization of the Democratic and Republican parties in the states. This chapter turns to a consequence of party nationalization, especially when party nationalization is driven by organizations: the decline of learning between state “policy laboratories.” In particular, as the parties and party-aligned organizations polarize into two national networks, we see reduced policy learning and emulation across states controlled by different parties.

So far, we’ve challenged the conventional wisdom that the state level isn’t very important for policy and that state governments are especially responsive to local constituents rather than coordinated national activists. In this chapter, I take on another piece of conventional wisdom about American federalism: that states are “laboratories of democracy.” In the generations since Louis Brandeis introduced this theory, federalism has been lauded for incentivizing policy experimentation and learning. State governments engage in policy experimentation and may “act as scientists, watching these experiments and learning from them” to produce more effective governance (Shipan and Volden 2012, 790). This sort of institutional learning, in which governments faced with uncertainty can observe and emulate best practices in other states, has been thoroughly investigated in empirical studies of policy diffusion (e.g., Meseguer 2003, 2006; Grossback, Nicholson-Crotty, and Peterson 2004; Volden, Ting, and Carpenter 2008; Gilardi, Füglistler, and Luyet 2009; Shipan and Volden 2014).

But just as the *Federalist Papers* had done before, Brandeis’s comments about federalism neglected *political parties* in describing governments’

incentives. A plethora of observational studies have separately investigated learning, whether governments emulate successful policies (e.g., Volden 2006), and homophily, whether states emulate the policies of similar states, such as those controlled by the same political party (e.g., Grossback, Nicholson-Crotty, and Peterson 2004). However, there has been little analysis of the *interaction* of homophily and success. Do the parties structure institutional learning in American federalism? Are state governments *unbiased learners*, emulating successful policies regardless of the source, or are they *partisan learners* that emulate copartisan success but ignore successful policies from outpartisan sources? This chapter tackles this question.

A survey experiment of officials by Daniel Butler and colleagues (2017) suggests that officeholders are unbiased learners, interested in learning about policies of outparty governments when presented with evidence of policy success. However, I argue that copartisans, not outpartisans, will be most affected by evidence of success. If policies are understood to be “owned” by party brands (Cox and McCubbins 1993),¹ parties have an incentive to avoid providing evidence of success for outparty-owned policies, as this could improve the outparty’s “party valence brand” (Butler and Powell 2014). Furthermore, resource-constrained state governments often obtain information about policy from party-aligned organizations (Ahn et al. 2013; Hertel-Fernandez 2014; Campbell and Pedersen 2014), which may systematically bias institutional learning under federalism. If these partisan and partisan-aligned organizations shape perceptions of success in favor of copartisan policies and against outpartisan policies, we may expect copartisans, not outpartisans, to be those most sensitive to information signals. In turn, policy learning may be biased such that governments of different parties do not converge on the most economically or politically effective policies as classic theories of federalism predict.

This study tests the predictions of models of policy learning. I first test a traditional model of unbiased learning. I then introduce a simple theoretical model of *partisan learning*, based in the incentives of partisan state governments in the context of nationalized parties. In the partisan learning theory, state governments discount information about the expected success or failure of policy based on the partisan control of another government.

The empirical analysis shows moderate support for theories of unbiased learning. Electoral and, to a lesser degree, economic success predict policy

1. Petrocik 1996 and subsequent studies have focused on the related concept of party ownership of broad issue areas such as the environment or the economy.

diffusion. However, empirical tests of *partisan learning* suggest that state governments primarily learn from copartisan governments. Interacting the partisanship of the source with the informational signal shows that a policy's economic or electoral benefits are mostly independent of its likelihood of diffusion, unless the potential diffuser polity is controlled by the same political party as the potential recipient polity. Further analysis suggests that shared partisanship plays a role beyond shared ideology: legislative ideological proximity between governments has an independent effect on the likelihood of diffusion but, in contrast to shared party control, does not affect learning.

This chapter has implications for our understanding of federalism and policy polarization. Federalism, in theory, is a “political marketplace” with strong incentives for governments to converge upon the most effective policies—yet chapter 3 shows that Democratic- and Republican-controlled states are pursuing increasingly distinct policy agendas. Party brands, a classic explanation for legislative polarization, provide a mechanism for the non-convergence of state policy. And following on chapter 5's investigation of interest group activists, an important additional mechanism is the increasing partisanship of expert and interest group organizational networks that provide informational resources and other “legislative subsidies” not just to Congress but even more importantly to subnational governments with fewer policymaking resources.

Learning about Policy

Studies of diffusion have been prominent in each of the intellectual communities described in chapter 2: the Decentralists, the Brandeisians, and the New Federalists. The Decentralists and New Federalists tend to emphasize the potential advantages of states' ability to customize policy to their particular constituencies. This tradition experienced an intellectual resurgence in the second half of the twentieth century (e.g., Buchanan and Tullock 1962). Studies find that diffusion is more likely to occur between geographic neighbors (e.g., Case, Rosen, and Hines 1993) and between polities with similar racial demographics (e.g., Jones-Correa 2000), partisanship and ideologies (Grossback, Nicholson-Crotty, and Peterson 2004; Volden 2006), dominant religions and cultures (Grattet, Jenness, and Curry 1998; Simmons and Elkins 2004), and economic conditions (Volden 2006).²

2. States with similar geographies and demographics are likely to face similar social problems, which, in turn, require similar policy solutions compared to geographically and

Overall, the customization theory predicts that governments will tend to emulate the policies of *similar* states. The most important dimension of similarity in contemporary American politics is, of course, partisanship. Studies have shown that states controlled by the same party are much more likely to emulate each other's policies (e.g., Grossback, Nicholson-Crotty, and Peterson 2004; Volden 2006).³

By contrast, theories in the Brandeis tradition of “laboratories of democracy” emphasize policy experimentation and learning. The numerosness of states facilitates improvements in governance by increasing available information about policy effectiveness. In the words of Stefan Sinn (1992, 191), “If a multitude of policy experiments takes place it is more likely that the ‘best’ policy package is discovered than if one harmonized policy package produced by a cartel of governments is implemented.” Over time, learning—via belief updating in response to new information—causes all actors’ beliefs about the effectiveness of policy choices to converge on “true” best practices (Breen 1999).

In this informational context, studies of public choice suggest that inter-governmental competition for residents and investment provides incentives for governments to learn. Seminal studies have characterized state (and local) governments in federalist systems as actors in market competition for residents who “vote with their feet” (e.g., Tiebout 1956; Oates 1972). Theories of fiscal federalism also posit that governments compete for investment. Politicians will be more likely to support policies that are perceived to deliver strong economic performance. Politicians may hope to improve the economy for its own sake, but the *electoral connection* is the primary mechanism: politicians are aware of the association between economic performance and incumbents’ election prospects.

If constituents engage in retrospective voting, office-seeking politicians have incentives to learn about and implement *economically successful* policies. Public policy choices have considerable influence over the economy (e.g., Hacker and Pierson 2010), and the state of the economy greatly affects

demographically dissimilar states. States in close geographic proximity tend to be dependent on similar sources of economic activity: coastal states may have large shipping, fishing, and tourism industries, while Appalachian states are home to extractive mining industries. These sectors of economic activity may demand distinct regulatory policies in ways that lead to geographic diffusion. States with similar racial demographics also face incentives to adopt similar policies. Hero and Tolbert (1996), for instance, show that a state’s distribution of racial groups largely explains its “political culture” (see also Elazar 1972).

3. For a comparative example, see Gilardi and Füglistler 2008.

incumbents' reelection prospects (Fiorina 1978; Erikson 1989; Lewis-Beck and Stegmaier 2000). When deciding whether to adopt a policy, governors and state legislators will be attentive to the economic trends, such as those in growth and unemployment, in states with that policy on the books.

Parties in government are also likely to be attentive to the *electoral success* of policies. Fabrizio Gilardi (2010) finds evidence that governments are more likely to support policies that appear to generate positive electoral outcomes for incumbents in other jurisdictions. I similarly investigate the relationship between electoral success and policy emulation.

Theories of learning and intergovernmental competition persist in scholarly and conventional wisdom. Scholars argue that federalism improves policy experimentation and learning and reduces rent extraction by states (e.g., Dye 1990; Qian and Weingast 1997; Kappeler and Våilä 2008; Volden, Ting, and Carpenter 2008). A generation of conservative politicians and judges has championed these theories under the banner of "New Federalism" (Conlan 1988). With a few caveats about the challenges of externalities or free riding, theories of institutional learning persist as a dominant framework for understanding American federalism (Bardhan 2002; Romano 2002; Devine, Katsoulacos, and Sugden 2005; Shipan and Volden 2012; Calabresi and Bickford 2014; Levin 2017). As Senator James Inhofe summarized, "it's more efficient when it's done from the states" (quoted in Stein 2018).⁴

I refer to this theory, in which electorally interested state governmental actors have incentives to emulate successful policies from any source and ultimately converge on best practices, as the *unbiased learning model*. Empirical findings have tended to be consistent with the unbiased learning model. Studies find that more economically or politically effective policies are more likely to spread to other jurisdictions (Berry and Berry 1990; Volden 2006; Makse and Volden 2011; Glick and Friedland 2014; Shipan and Volden 2014). There is also evidence that governments emulate the policies of jurisdictions with constituents who are satisfied with government services (Lundin, Öberg, and Josefsson 2015).

4. Former Utah state senator Michael Waddoups prominently argued that "in general, state governments are better managed, have better fiscal controls, are more innovative, and reflect the will of the people far more than the Federal Government." Citizens for Economy in Government, "Towards More Efficient Massachusetts State Government" (1975), https://archive.org/stream/massachusettsmat4497stat/massachusettsmat4497stat_djvu.txt.

Partisan Learning

Although theories of similarity and learning have both received considerable attention, there has been little investigation into the potential *interaction* of similarity and learning. The most important dimension of similarity in contemporary American politics is partisanship, and parties, in turn, may structure policy learning.

Butler and colleagues (2017) find that politicians are less interested in learning about policies that are incongruent with their ideology or partisanship—but that evidence of success can mitigate this bias. Evidence of success, in other words, affects those predisposed to opposing the policy. Butler and colleagues (2017) make a major contribution by randomizing treatment and focusing on the upstream stages of policymaking. However, the experiment is unable to directly test whether evidence of success affects copartisans and outpartisans differently. The experimental treatment involves a single policy, one that is ideologically liberal, and nearly 90 percent of liberal respondents were interested in learning about the policy regardless of the “success” condition. That the “success” treatment only affected conservative and Republican respondents may reflect a ceiling effect. In addition, the “success” treatment is binary. In practice, there is great variation and granularity in the information that elected officials may receive about the political and economic experiences of other states.

In contrast to Butler and colleagues’ study, I argue that we should expect evidence of success to have a greater effect on *copartisans*, those who are more predisposed to *supporting* the policy. This is for two reasons. First, parties have incentives to avoid implementing successful outpartisan policy because this could improve the outparty brand or reputation. Second, parties rely on increasingly polarized networks of outside organizations for policymaking resources, such as information.

Policy Success and Party Brands

A single-minded reelection seeker will want to support policies that she believes will improve the economy and satisfy voters in her district. However, she is cross-pressured by partisan incentives. Politicians have an incentive to work on behalf of their party because the health of their collective party brand affects their individual likelihood of reelection (Cox and McCubbins 1993). Partisan incentives of this sort have been used to explain puzzles in politicians’ behavior, such as legislative votes that are “out of step” with district opinion

and legislators' delegation of authority to party leaders. Party brands have been regionally distinct in the past, but over the past generation they have become increasingly national (Abramowitz 2010; Abramowitz and Webster 2016; Schickler 2016; Hopkins 2018).

The quality of party brands depends to some degree on policy performance. Parties that implement successful policies in a key issue area may obtain issue ownership (Petrocik 1996). Parties may also improve their valence brand through good governance. Experimental evidence (Butler and Powell 2014) suggests that voters reward or punish incumbent candidates for their party's performance in "nonideological" behaviors, such as maintaining low unemployment or passing a budget on time. A party brand is a function of the real-world success of the policies that it owns.

Not only do parties in government have incentives to implement successful policies to distinguish themselves from the outparty; they have incentives to *avoid* implementing successful outpartisan policies. By implementing a policy, a state government creates additional data points which, in expectation, serve to decrease uncertainty about the policy's level of success. Helping to implement a successful policy may bring legislators and governors individual electoral benefits, but if the policy is owned by the outparty, it comes at the cost of improving the outparty brand.

Recent policy dynamics in the states may reflect these incentives. For example, the Republican legislators and governor of Wisconsin may be tempted to emulate neighboring Minnesota's recent minimum wage increase, whose implementation is correlated with above-average economic growth. However, the minimum wage is owned by the Democratic brand; the Democratic government of Minnesota implemented and executed the policy. If it were to emulate the policy, Wisconsin's Republican government would provide more evidence that this Democratically owned policy is successful, which would in turn improve the national Democratic brand. For the Republican government of Wisconsin, the cost of this improvement to the Democratic brand likely outweighs the benefits of implementing the successful policy in their own state.

Partisan Organizations and Heuristics

Partisan identity also shapes politicians' use of cognitive heuristics and positions in organizational networks. Partisan heuristics and organizational networks are likely to influence perceptions of policy success and, ultimately, behavior in government. First, partisanship is a strongly held social identity

that affects cognitive processing (Green, Palmquist, and Schickler 2002), and this social group identity may affect the behavior of elites in addition to the mass public. Political elites may employ the availability and representativeness heuristics as cognitive shortcuts in decision making. Considerations about copartisan states are likely to be more *available* than about outparty states; good news about policy success in copartisan states may be assumed to be more *representative* of a broader trend than news from outpartisan states. Indeed, as Kurt Weyland (2005, 282–86) describes with regard to the spread of pension privatization in Latin America, policymakers’ use of these heuristics led to a “cumulation of distortions” that is not well predicted by theories of unbiased (or, as the author calls it, “rational”) policy learning.⁵ Overall, politicians are likely to suffer from similar cognitive biases as high-information voters, rejecting considerations from outpartisan sources and accepting them from copartisan sources (e.g., Zaller 1992).

The bipartisan National Governors Association (NGA), for instance, has declined in clout compared to the Democratic Governors Association (DGA) and Republican Governors Association (RGA) (Jensen 2016, chap. 3). These governors associations hold conventions to support networking and information provision. Greater participation in partisan compared to bipartisan governors associations is likely to increase the partisan bias in exposure to information, potentially leading governors to place greater weight on the experiences of copartisans via the heuristics described above.

Second, the complexity and noisiness of policy analysis allow considerable room for *organizations* to shape politicians’ beliefs about policy success. Organizations often provide the resources necessary to generate a policy idea from the “primeval soup” of potential solutions for an issue in the problem stream (Kingdon 1984). A key policymaking resource is policy analysis, which affects beliefs about the expected effects of policy (Wildavsky 2017). Where policymakers derive these resources depends on the structure of the “policy community” (Kingdon 1984, vii). From the perspective of policy-interested organizations and entrepreneurs, “access to centers of power” affects their ability to influence policy alternatives (Zahariadis 2014, 78). Like scholars who emphasize the role of policy-demanding groups in parties (Bawn et al. 2012), I argue that extended networks of partisan-aligned activist and expert

5. I sidestep the debate about whether the heuristics involved in partisan learning violate “rationality” or indicate “bounded rationality” (for a deeper discussion of heuristics and rationality, see Simon 1985).

organizations can provide these logistical and informational resources. Nikolaos Zahariadis (2014, 78) cites the case of the privatization of British rail, which moved from the problem phase to the policy design phase of the policy process “because it was pushed for by think tanks with very strong connections to the governing party.”

In the U.S. case, recent decades have seen the organizational landscape grow increasingly partisan such that policy-interested organizations and entrepreneurs are increasingly likely to only provide policymaking resources to a single political party. Policy analysis, “model bills,” lobbying, and other “legislative subsidies” are less likely to cross party lines (Ahn et al. 2013; Hertel-Fernandez 2014; Campbell and Pedersen 2014; Krimmel 2017).⁶ Labor unions, for instance, have long been relatively more aligned with the Democratic Party but were present and somewhat influential in the extended group networks of both parties, providing key information to policymakers about the economic interests and circumstances of their rank-and-file members. However, Laura Bucci and Kevin Reuning (2020) find that as labor union density has declined over the past generation, unions are less central to parties’ organizational networks.

Even if electorally motivated politicians wish to obtain *unbiased* information about policy success, their partisan organizational networks may select or spin information in biased ways. Information about weather anomalies in a legislator’s district only seems to affect Democratic state legislators’ climate policy activity (Bromley-Trujillo, Holman, and Sandoval 2019), for instance.

The American Legislative Exchange Council (ALEC) is a prominent example of an organization that may influence policy learning in the states. The organization is credited with facilitating the development and diffusion of Stand Your Ground laws across states, along with many other policies. Considerable attention has been paid to the practice of legislatures copying the exact legal language from “model bills,” but ALEC also attempts to marshal evidence of their policies’ success in other states in order to facilitate emulation. Before becoming governor of Wisconsin, Scott Walker had been an ALEC member as a state legislator. As he described, “Probably more important than just the model legislation, [ALEC] had actually put together reports and such that showed the benefits of truth-in-sentencing and showed the successes in other states. And those sorts of statistics were very helpful to us when we pushed it through” (quoted in Hertel-Fernandez 2019, 108). Note that although social

6. See Hall and Deardorff 2006 for a formal model of lobbying as a legislative subsidy.

scientists often contest the veracity of the empirical claims from partisan and other political organizations such as ALEC (e.g., Hertel-Fernandez 2019), these organizations may still have some incentive—though probably a very weak one—to report true information about policy success because they, like politicians, want their aligned party to control the levers of government.

Studies by Gilardi (2010) and Gilardi, Füglistner, and Luyet (2009) have made progress in investigating the interaction of partisanship and information signals in policy emulation. Gilardi (2010), for instance, tests whether European governments emulate cuts to unemployment benefits more often when the policy shows signs of economic or electoral success depending on the governments' partisanship.⁷ However, it remains unknown whether the historical record in the fifty states is consistent with the theory of partisan learning and whether it generalizes across space, time, and policy type. This chapter fills the gap in our theoretical and empirical understanding of governmental learning.

Model of Partisan Learning

The theory of partisan learning is straightforward. Figure 6.1 compares the predictions of the *unbiased learning model* and the *partisan learning model* as they relate to the expected probability that government i emulates policy q from government j . The two key variables are the partisanship of the potential diffuser, government j , and the information signal about state j 's experience with policy q . Government j is either copartisan or outpartisan (with the solid line representing the likelihood of emulating government j 's policy when j is copartisan, and the dotted line when j is outpartisan). The information signal represented on the x-axis, evidence of success, takes a value between 0 to 1, with higher values indicating greater likelihood that policy q is successful.

Like a traditional spatial model, the model first assumes that parties in government receive ideological, group-based, or partisan payoffs for implementing policy. Second, parties in government receive payoffs for policy success. Third, parties in government receive more information about policy success of copartisan policies, whereas they observe outpartisan policies with greater uncertainty. An additional mechanism is that emulating a successful policy

7. Gilardi (2010) finds that left parties in European Union countries tend to care most about unemployment benefits' effect on the unemployment rate, while right parties tend to weight its electoral effects more heavily.

improves the national brand of the party that “owns” the policy, a disincentive against emulating successful outpartisan policies.

The following list summarizes the hypotheses generated from the model predictions:

- (H_1) Partisan Similarity: Shared party control increases the likelihood of policy emulation.
- (H_2) Unbiased Learning: Signals of success increase the likelihood of policy emulation.
- (H_3) Partisan Learning: Signals of success from copartisan states increase the likelihood of policy emulation more than signals of success from outpartisan states.

H_1 predicts that there is a payoff to emulating a policy from a copartisan government that is independent of policy success. The payoff could be ideological or based in responsiveness to group pressure or the party’s electoral base. Ideology and partisanship are highly correlated in the polarized era (e.g., Shor and McCarty 2011), and legislators and executives may risk implementing policy associated with negative economic or electoral outcomes if there are countervailing ideological or group-based payoffs. At the same time, there are potential nonideological partisan payoffs to emulating copartisan policy, such as financial support from party committees or extended networks of partisan groups (e.g., Hassell 2016) or incentives based in partisan competition (e.g., Lee 2009). These payoffs associated with partisanship generate the gap between the y-intercepts in figure 6.1.

In all models the information slope is positive, independent of the characteristics of the information source. Evidence of success strictly increases the likelihood that state government i adopts the policy. This prediction corresponds to H_2 .

H_3 distinguishes between the *unbiased learning* and *partisan learning* models. The slopes represent the relationship between evidence of success and the likelihood of emulation. In the unbiased learning model, the slope for evidence of success is equal or larger when government i is outpartisan.⁸ By contrast, in the *partisan learning model*, the slope is larger when government i is copartisan than when it is outpartisan. The difference between the copartisan information and outpartisan information slopes is the discount that

8. The outpartisan and copartisan slopes differ in panel (a) of figure 5.1, but equal slopes are also consistent with the unbiased learning model.

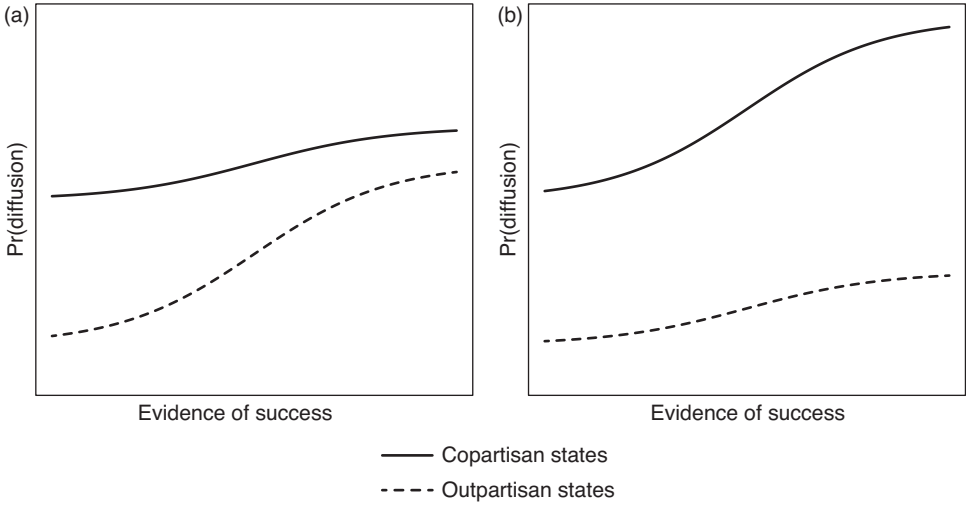


FIGURE 6.1. (a) Unbiased Learning (b) Partisan Learning.

government j gives to information from outpartisan sources. $H3a$, the partisan learning hypothesis, predicts that the information slope is significantly greater when government j is copartisan.

In the regression context, it is simple to translate these hypotheses into an interaction model. $Evidence_{jqt}$ represents the information signal from state j 's experience with policy q as of time t . Shared partisanship $Copartisan_{ijt}$ is a time-variant feature of the state dyad. The outcome is the probability that state government i emulates policy q from state government j at time t . The model takes the general form:

$$Pr(Emulation_{ijqt}) = \alpha + \beta_1 Copartisan_{ijt} + \beta_2 Evidence_{jqt} + \beta_3 Copartisan_{ijt} \times Evidence_{jqt}$$

In short, $H1$ predicts that β_1 will be positive; $H2$ predicts that β_2 will be positive; and $H3$ predicts that β_3 will be positive.

Measures and Estimation

Policy Data

Existing studies of policy diffusion tend to analyze data on a single policy type, such as lottery adoption (Berry and Berry 1990), antismoking laws (Pacheco 2012), or characteristics of SCHIP programs (Volden 2006). Authors often

generalize their substantive conclusions beyond the policy area in their data (e.g., Baybeck, Berry, and Siegel 2011, 245).⁹

I once again use the large data set of state policies described in chapter 3.¹⁰ To be sure, policy administration may vary across states even when formal policies do not. Jamila Michener's book *Fragmented Democracy*, for instance, looks beyond formal differences in state Medicaid policy, such as eligibility criteria, showing that differences in implementation and administration have profound effects on the democratic inclusion of people marginalized by race and class. As federalism scholar Philip Rocco (2020) likes to joke, "if you know one state Medicaid program, you know one state Medicaid program." There are many additional examples of state administration and implementation, rather than formal policy, affecting the lives of Americans. A particularly extreme example was the poisoning of municipal water in Flint, Michigan, with lead at the hands of the city's "emergency city manager," who had been appointed by Governor Rick Snyder in 2013. For reasons of practicality, this data set focuses on formal de jure state policy.

Not all forms of policy success are relevant to every policy type. Because reelection incentives are considered paramount for politicians (Downs 1957; Mayhew 1974), signals of electoral success are expected to be important for all types of policies, from abortion laws to tax policy. By contrast, signals of economic success, such as reduced unemployment, are likely to be much more relevant to economic policies such as the minimum wage than for social policies such as gay marriage laws. It is safe to assume that this belief is common among politicians and most voters. This is not to say that social policies do not affect economic activity. A recent North Carolina law that restricted the use of restrooms by transgender people led firms to relocate conventions, sporting events, and other economic activity. The expansive data set of policies used in this study provides the opportunity for separate analyses of economic and social policies, with the expectation that signals of economic success are more closely associated with economic policies.

9. As Baybeck, Berry, and Siegel (2011) claim, "Although our empirical analysis is limited to the case of lottery adoptions, we believe that our strategic theory of diffusion via competition is more widely applicable, since many policy choices made by governments (national, state, and local) influence 'location choices' made by persons or firms, which in turn have positive or negative consequences for the governments."

10. I remove policies that have been passed by ballot referenda or court ruling. To date, Desmarais, Harden, and Boehmke 2015 is the most comprehensive study of policy diffusion in the fifty states, but it investigates characteristics of diffuser and adopter states rather than the interaction of partisanship and success.

Similar to studies of war (Bremer 1992; Cunningham, Skrede Gleditsch, and Salehyan 2009), the unit of observation in studies of policy diffusion is a pair of polities, a *dyad*. Each dyad represents two states, state_{*j*}, the potential *recipient* state, and state_{*i*}, the potential *diffuser* state, in year *t*. This dyadic structure allows variables to represent characteristics of the potential adopter state (state_{*i*}) and the potential diffuser state (state_{*j*}), as well as similarities or differences between state_{*i*} and state_{*j*}. But because I test theories of diffusion across more than one hundred different policies, the unit of observation could be more accurately described as the state-policy *triad*. A single observation shows whether or not policy *q* diffused from state_{*j*} to state_{*i*} in year *t*. In year *t* for policy *q*, the dyad data contain 2,450 observations (50 times 49).¹¹ Models of economic policy emulation have an *N* of 4,001,315 observations; models of social policy emulation contain 3,608,671 observations.

As a first cut at the data, I plot the average likelihood of a policy diffusing from one state to another over time in figure 6.2. Partisan diffusion, in which states emulate policy from states controlled by the same party, occurs more frequently in recent years. For most of the time period, the probability that diffusion occurs between any pair of states is similar regardless of whether they share the same partisanship. But in the mid-2000s, this begins to change as same-party dyads become more likely to emulate each other's policies than cross-party dyads.

This is descriptive evidence that to the extent that states are "laboratories of democracy," they are increasingly members of separate partisan "scientific" communities. However, this descriptive analysis doesn't tell us whether policy success matters for policy emulation within or across parties. In the next section, I detail my plan to systematically assess the role of shared partisanship, policy success, and their interaction in policy diffusion.

Measures

The independent variables are designed to test the predictions of unbiased learning, geographic learning, and partisan learning theories. The first set of independent variables describes the similarity between state_{*i*} and state_{*j*}. The variable *Same Unified Party*_{*ijt*} is a dummy variable that describes whether the

11. I follow Boehmke (2009) in excluding state-policy triads in which both states already have the policy such that convergence is not possible. In addition, for analyses that include a variable for party control of government, however, Nebraska is excluded due to its nonpartisan legislature. This results in 49 times 48 = 2,352 observations for policy *q* in year *t*.

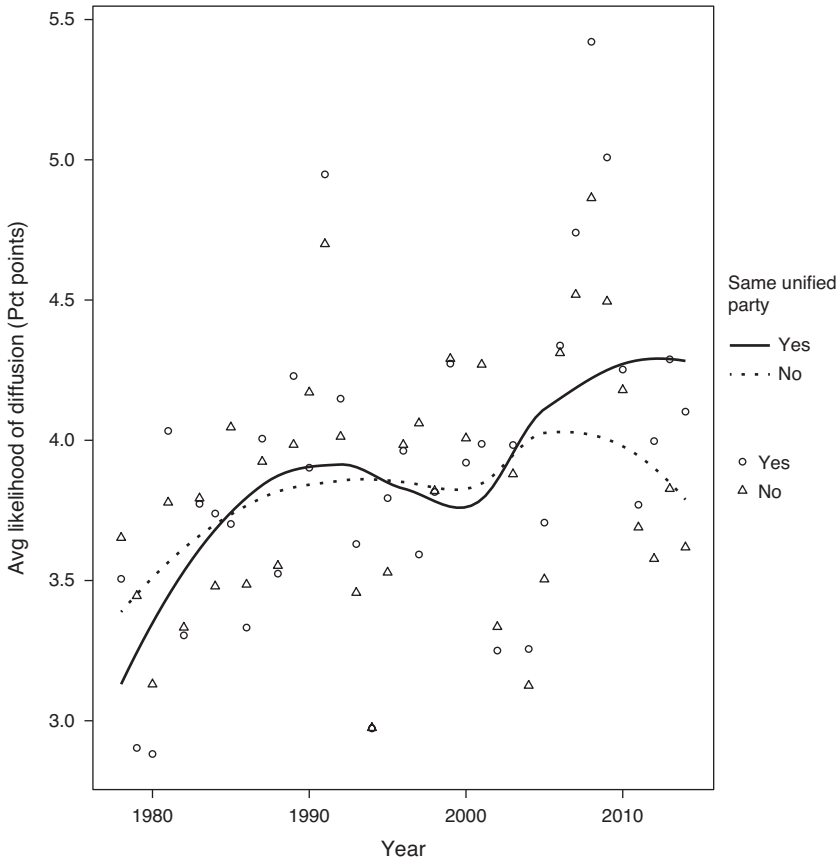


FIGURE 6.2. Partisan Diffusion over Time.

governorship and legislative chambers of the two states in the dyad are both controlled by the same political party in year t . Specifically, it takes a value of 1 if state $_i$ and state $_j$ are both controlled by the Democratic Party, 0 if state $_i$ and state $_j$ are both controlled by the Republican Party.¹² I interact information about policy success in state $_j$ with *Same Unified Party* $_{ijt}$ and/or *Proximity* $_{ij}$ in the

12. Unified party government is the relevant variable, rather than disaggregated control of the governorship or a legislative chamber. The interaction of divided government and polarization is understood to produce policy gridlock (Binder 2003). Prior research shows minimal effects of these disaggregated variables (e.g., Volden 2006, 300). Finally, for practical reasons, the inclusion of additional three-way interactions for partisan control requires considerably more computational resources and may decrease substantive interpretability.

key hypothesis tests. In the main analyses, all success independent variables are rescaled to have mean 0 and standard deviation of 1 for ease of interpretation.

Economic Success. A set of independent variables tests *economic* learning. I primarily use three measures of economic success: change in *employment*, change in *economic growth*, and state income per capita. These are widely used measures of economic success for practitioners and scholars interested in the relationship between politics and the economy. These measures of economic success show evidence of use in retrospective voting and strongly predict incumbents' likelihood of reelection (e.g., Fiorina 1978; Bartels 2009).¹³ Again, these variables are measures of the economic performance of state j . $\Delta Unemployment_{jqt}$ is the change in the employment rate between state j 's policy implementation of policy q and time t . The unemployment rate is collected from the Bureau of Labor Statistics (BLS).¹⁴ Note that because unemployment is undesirable, the sign on the coefficient for unemployment should be negative. ΔGSP_{jqt} is the change in gross state product (GSP) between j 's implementation of policy q and time t . State GSP data are collected from the Bureau of Economic Analysis (BEA) and adjusted by the BLS's yearly inflation estimate.¹⁵ In contrast to change in unemployment and GSP, I use a measure of per capita income due to the consistent finding in diffusion research that states tend to emulate wealthy "leader" states (e.g., Tolbert, Mossberger, and McNeal 2008; Boushey 2010). State income per capita data are from Jordan and Grossmann 2016.

Electoral Success. Finally, a set of independent variables are designed to test the importance of *electoral* learning. All of these variables are measures of the performance of state j , the potential diffuser state. Following Gilardi 2010, the variable $\Delta Incumbent Governor Vote Share_{jqt}$ represents the change in vote share for the incumbent governor (or, in the case of open seats, for the incumbent party) between the implementation of policy q and time t . Similarly, $\Delta Incumbent Legislator Vote Share_{jqt}$ is the average change in vote share for incumbent state legislators and senators (again, for the incumbent party in open seat elections) and is collected from Klarner et al. 2013.

13. Employment and growth are virtually universally accepted measures of economic success. In practice, of course, politicians have a variety of visions of what constitutes success. Those with more left-leaning ideology, for instance, are likely to see policies that increase economic inequality as normatively negative, while those with right-leaning ideology may be indifferent to a policy's effect on inequality.

14. <https://www.bls.gov/lau/>.

15. <https://www.bea.gov/data/gdp/gdp-state>.

Policy Diffusion. The dependent variable, *policy diffusion*_{ijqt}, is coded as 1 if state *i* adopts (or moves closer to) policy *q* of state *j* in a given year, 0 otherwise. For example, diffusion = 1 for the observation representing medical marijuana in year 1999 for the states of Oregon (state_i, the potential recipient) and California (state_j, the potential diffuser), because in that year Oregon implemented a medical marijuana law that already existed in California. For continuous policies (e.g., tax rates or Medicaid income eligibility) and ordinal policies (e.g., voter ID laws, which can be non-strict or strict), diffusion equals 1 if state_i moves closer to the existing state_j policy (see also Volden 2006).¹⁶ The data structure is symmetric such that policy repeals are treated equivalently to policy creation. Just as they are with the implementation of new policies, politicians are concerned with the success or failure that can arise from repealing policy. Policy repeals also have considerable substantive importance. For example, many states repealed the death penalty after the Supreme Court reauthorized its use in 1976.¹⁷

Dealing with Time. The policy learning theories predict that state *i*'s decision to emulate state *j*'s policy *q* in year *t* is determined by the success of state *j* in the time since it implemented policy *q*. This suggests that state governments do not discount experiences that happened many years earlier. However, studies suggest that politicians behave myopically, or face a myopic electorate (e.g., Bartels 2009). For example, incumbent politicians engage in greater spending in election years. If this is the case, state governments may adopt policies that show recent success. In table A.2, I provide additional analyses in which success variables measure state *j*'s experience between year *t* and *t* − 1.

Estimation Strategy

The principal models for this analysis are logit and multilevel logit regressions. Prior diffusion research has tended to use conventional logit models with standard errors that are clustered by dyad, which allows for non-independence

16. In robustness checks, coding diffusion as a continuous variable for continuous or ordinal policies (based on the percent of the range between existing state policies) does not substantively affect regression results.

17. I draw from Boehmke 2009 in eliminating observations where the probability of emulation is precisely zero, such as when no states have policy *q* on the books. I further implement the correction from Boehmke 2009 of removing observations in which state_i and state_j have the same policy in time *t* − 1 such that there is no potential for emulation.

within dyads. I estimate logit models of this variety, varying whether models include fixed effects for years (to account for temporal heterogeneity in the likelihood of policy diffusion) and specific policies (to account for heterogeneity in the likelihood of the diffusion of different policies, such as Medicaid coverage of abortion or collective bargaining rights for firefighters).¹⁸ With independent variables X for state dyad d , policy q , and year t , γ_j represents policy fixed effects and δ_t year fixed effects:

$$\hat{y}_{dqt} = \alpha + \beta X + \gamma_q + \delta_t + \varepsilon_{dqt}$$

However, the assumption of independence across dyads is unrealistic because the same polity is included in multiple dyads (Gilardi 2010). The New York-New Jersey dyad should not be assumed to be independent from the New York-Connecticut dyad, for instance. I thus estimate a non-nested multilevel model that corresponds to the groupings and interdependencies in the data.¹⁹ Specifically, I model random intercepts at the state_{*i*}, state_{*j*}, year_{*t*}, and policy_{*q*} levels (see Gelman and Hill 2007):

$$\hat{y}_{ijqt} \sim N(\beta X + \alpha_i + \alpha_j + \alpha_q + \alpha_t + \varepsilon_{ijqt})$$

The equations for the random intercepts α for state i , state j , policy q , and year t :

$$\begin{aligned}\alpha_i &\sim N(\mu_{\alpha i}, \sigma_i^2) \\ \alpha_j &\sim N(\mu_{\alpha j}, \sigma_j^2) \\ \alpha_q &\sim N(\mu_{\alpha q}, \sigma_q^2) \\ \alpha_t &\sim N(\mu_{\alpha t}, \sigma_t^2)\end{aligned}$$

This multilevel model structure uses partial pooling of the data, a balance between cross-sectional and within-unit variation (Gelman and Hill 2007). The time-series cross-sectional (TSCS) specification described above is analogous to that of Shor and colleagues (2007). A model intended purely for prediction rather than theory testing should use a more complex multilevel model structure.

18. Rates of policy change vary greatly across policies. States frequently make changes to policies such as the minimum wage or income tax rate, but change is rare for other policies such as state equal rights amendments (ERAs).

19. The design is crossed, not hierarchical or nested, because each state i co-occurs with each state j and each year t .

TABLE 6.1. Traditional Partisan Models

	Economic Policies		Social Policies	
	1	2	3	4
(Intercept)	-18.573 (33.629)	-18.573 (33.629)	-5.001*** (0.145)	-5.002*** (0.145)
Same Party Control	0.064*** (0.012)	0.061*** (0.012)	0.050+ (0.026)	0.045+ (0.026)
Dist. Leg. Ideology	-0.026*** (0.004)		-0.110*** (0.009)	
Dist. House Ideology		-0.021*** (0.005)		-0.083*** (0.011)
Dist. Senate Ideology		-0.008+ (0.005)		-0.036*** (0.011)
AIC	555582	555582	156336	156342
Deviance	554829	554827	155575	155579
Log-Likelihood	-277721	-277720	-78103	-78105

Note: Multilevel logit coefficients with standard errors in parentheses.

*** $p < .001$; + $p < 0.1$

For multilevel models, and, to a greater extent, for traditional models with clustered standard errors, bias can arise when the number of geographic units is too small (Angrist and Pischke 2008; Stegmueller 2013). The bias becomes undetectable when the number of units surpasses approximately 20, especially when the multilevel model includes only random intercepts (Stegmueller 2013), so there is little concern of small sample bias.

Results

The following section presents results for three varieties of models: traditional partisan similarity models, traditional learning models, and models of partisan learning.

Party and Ideology

Table 6.1 shows the results of unbiased partisan models of policy diffusion (Hypothesis 1). The results are straightforward and as expected. The coefficient for *same party control* is positive, relatively large in magnitude, and

TABLE 6.2. Unbiased Learning Models

	Economic Policies			Social Policies		
	1	2	3	4	5	6
(Intercept)	-4.490*** (0.074)	-4.406*** (0.068)	-4.490*** (0.076)	-8.559*** (0.593)	-8.141*** (0.430)	-8.562*** (0.594)
Δ Incumbent	0.002 (0.003)		0.002 (0.003)	0.011 ⁺ (0.006)		0.010 (0.006)
Δ Incumbent Leg. Vote Share (State j)	0.007* (0.003)		0.005* (0.003)	0.024*** (0.007)		0.027*** (0.007)
Δ Unemployment (State j)		-0.007* (0.004)	-0.009* (0.004)		0.037*** (0.011)	0.036** (0.011)
Δ GSP (State j)		-0.011** (0.003)	-0.012** (0.004)		-0.010 (0.011)	-0.017 (0.013)
Income per Capita		0.079*** (0.008)	0.086*** (0.009)		-0.035 (0.023)	0.046 ⁺ (0.024)
AIC		1088256	1244328	265692	289994	265511
Deviance		1087386	1243420	264825	289101	264628
Log-Likelihood		-544051	-622085	-132779	-144928	-132685

Note: Multilevel logit coefficients with standard errors in parentheses.

* $p < .05$; ** $p < .01$; *** $p < .001$; ⁺ $p < 0.1$

statistically significant (though only at the $p < 0.1$ level for social policies). The coefficients on *dist. leg. ideology* are large and negative, suggesting that more states with more ideologically proximate legislatures are more likely to emulate each other's policies.

Learning

Table 6.2 tests traditional models of learning (Hypothesis 2). The results provide more modest and inconsistent support than did the partisan analysis presented earlier. Evidence of electoral success, especially for legislators, significantly increases the likelihood of diffusion (see columns 1 and 4). This is true for the 72 economic policies and, to a greater extent, for the 68 social policies in the data.

Evidence of economic success appears much less influential. For economic policies, while decreased *unemployment* increases the likelihood of diffusion for economic policies (as expected), the sign for Δ GSP points in the wrong direction. However, states are considerably more likely to adopt economic

policies from wealthier states than poorer states. For social policies, Δ *unemployment* has the incorrect sign. On average, the coefficients for the economic success variables are marginally positive.

Overall, the results are mixed for the traditional models of learning.

Partisan Learning

This section describes the results of empirical tests of models of *partisan learning* (Hypothesis 3), in which information about electoral and economic success is hypothesized to have heterogeneous effects depending on the partisanship of the information source. In these models, an indicator for shared partisan control of government is interacted with measures of economic and electoral success. The coefficient for information variables without the party interaction represents the effect of information from *outpartisan* sources on the likelihood of emulation. The effect of information from *copartisan* sources is the sum of this coefficient and the coefficient on the variable interacted with the *same party* variable.

Regardless of informational signals, shared partisan control of government maintains its robust positive association with policy emulation.

Signals of success from *outpartisan* states are inconsistently associated with emulation (the gray point estimates in the figure). Change in incumbent gubernatorial vote share of the potential diffuser state is unrelated to emulation. The other electoral success variable, change in incumbent legislative vote share, however, is positively related, though only modestly.

The economic success variables from *outpartisan* states yield more inconsistent results. Recall that our theoretical expectations for the effect of economic success are better applied to tests of economic policy emulation than social policy emulation. The sign on the coefficient for the potential diffuser state's change in unemployment rate is as expected for economic policies (negative, indicating decreased unemployment increases the likelihood of emulation). For social policies, the relationship is stronger, but in the wrong direction (positive). This pattern is inverted for change in population: population change has an unexpected negative association with economic policy emulation but a large positive association with social policy emulation. Change in state GSP has a small, unexpectedly negative effect. Finally, as in the earlier learning models, a state's wealth (higher per capita income) is strongly predictive of economic policy emulation. The relationship is negative and significant for social policy emulation, by contrast.

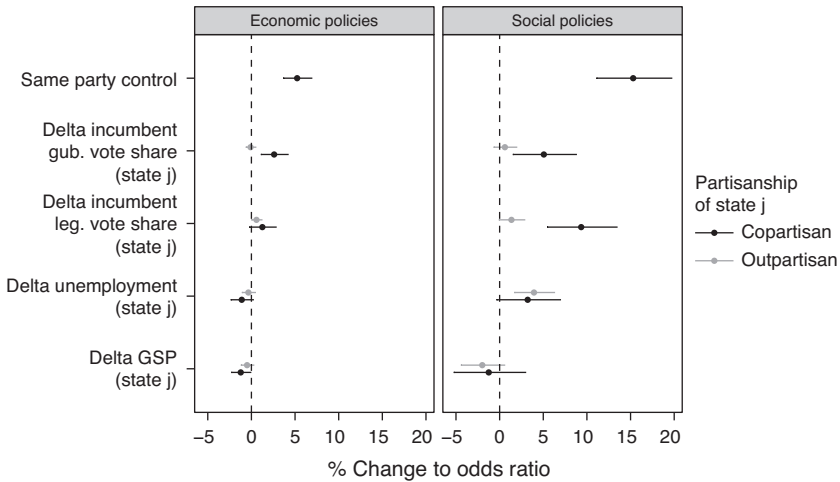


FIGURE 6.3. Partisan Learning.

The relationship between electoral success and emulation is stronger between *copartisan* states (the black point estimates in the figure). As seen in the coefficients for the interaction variables, the electoral success variables are strongly and significantly associated with diffusion for both economic and social policies (though the coefficient for state legislator electoral success is statistically insignificant).

Unlike electoral success, economic success remains inconsistently related to emulation for copartisan states. Decreased unemployment is associated with copartisan emulation of economic policy ($p < 0.1$) and social policy (insignificantly). However, change in population has an unexpectedly negative and reasonably strong association with emulation. Change in GSP has no effect. Within-party, state wealth is again a strong predictor of diffusion.

Figure 6.3 plots the marginal effects, expressed in percent change to the odds ratio, of information signals from copartisan and outpartisan sources.

Ideology Results

Is institutional learning structured by political parties, or is partisanship simply a proxy for ideology? Because legislative partisanship and ideology are highly correlated, ideology, not parties as organizational networks, could be the reason that emulation of success tends to occur within-party. Republican-controlled governments, for example, may be willing to emulate successful policies from conservative Democratically controlled governments. Although legislative polarization

TABLE 6.3. Ideology and Learning

	Economic Policies		Social Policies	
	1	2	3	4
(Intercept)	-18.562 (34.514)	-18.576 (33.629)	-5.018*** (0.147)	-4.994*** (0.147)
Δ Incumbent Gub. Vote Share (State j)	0.005 (0.004)		0.006 (0.008)	
Dist. Leg. Ideology	-0.033*** (0.004)	-0.030*** (0.005)	-0.114*** (0.009)	-0.101*** (0.012)
Δ Incumbent Leg. Vote Share (State j)	0.005 (0.004)		0.017 (0.009)	
Dist. Leg. Ideology $\times$ Δ Gub. Vote Share	0.004 (0.004)		-0.007 (0.007)	
Same Party $\times$ Δ Leg. Vote Share	0.003 (0.004)		-0.009 (0.008)	
Δ Unemployment (State j)		-0.015* (0.008)		-0.005 (0.017)
Δ GSP (State j)		-0.036*** (0.010)		-0.071** (0.023)
Income per Capita (State j)		0.018 (0.015)		0.020 (0.036)
Dist. Leg. Ideology $\times$ Δ Unemployment		-0.006 (0.004)		0.013 (0.010)
Dist. Leg. Ideology $\times$ Δ GSP		-0.005 (0.006)		0.019 (0.015)
Dist. Leg. Ideology $\times$ Income per Capita		-0.008 (0.004)		-0.018 (0.010)
AIC	527322	555554	149989	156101
Deviance	526575	554787	149236	155326
Log-Likelihood	-263588	-277700	-74927	-77978

* $p < .05$; ** $p < .01$; *** $p < .001$

has increased dramatically in state legislatures in recent years, there still exists a small number of states in which Democratic chamber medians are to the *right* of other states' Republican chamber medians (Shor and McCarty 2011).²⁰

In table 6.3, I fit additional models that interact information signals with *legislative ideological similarity* (instead of shared party control), using data

20. The Democratic chamber medians in Arkansas, Alabama, and Indiana are equal to or to the right of the Delaware Republican chamber median, for example.

from Shor and McCarty 2011.²¹ Separately, legislative ideological proximity predicts emulation, as do signals of electoral and economic success. However, there is little action in the interaction of success and ideological proximity. Whereas the interactions of success and shared party control show large effects in figure 6.3, not a single estimate of the interaction of success and ideological proximity is statistically significant. Success in copartisan states matters more than success in outpartisan states—but success appears to have the same effect regardless of State B's legislative ideology.

This finding lends additional support to the theory of partisan learning. In the polarized era, partisanship and ideological similarity are highly correlated (e.g., McCarty, Poole, and Rosenthal 2006; Lee 2009; Shor and McCarty 2011). But shared partisanship is more than ideology; it is organizational. Partisan organizational networks may shape policy learning.

Conclusion

Theories of states as policy laboratories that are engaged in intergovernmental competition suggest that there are strong incentives to emulate policies associated with efficient, effective, and successful governance. A recent study from Butler and colleagues (2017) provides experimental evidence in support of this view. Federalism, this view suggests, can mitigate the centrifugal forces of mass and elite polarization by incentivizing learning and the emulation of best practices.

This chapter challenges this theoretical tradition. Politicians have incentives to avoid implementing policies that would improve their competitors' party brand. Party and partisan-aligned committees, think tanks, and lobbying organizations provide much of the policy analysis and information that cross the desks of state legislators, governors, and their staffs. This may generate partisan learning networks. If learning primarily occurs within the same political party, it is unlikely to mitigate polarizing pressures facing state governments.

I find that, regardless of the source, economic success is inconsistently related to emulation. Contrary to the predictions of models of intergovernmental experimentation, learning, and competition in federalism, trends in unemployment and economic growth have little to do with policy emulation. This is not especially surprising in light of the divergent policy agendas of Democratic- and Republican-controlled states that I described in chapter 3. Policy divergence in

21. The Shor and McCarty (2011) data begin in 1992.

Minnesota and Wisconsin—states with very similar geographies, demographics, and economies—is unlikely to be explained by traditional Brandeisian models of federalism.

While economic trends have little effect, the results show that states are more likely to emulate the policies of wealthier states. This is consistent with prior studies that focus on “leader states,” which have greater resources to engage in experimentation and are thus more likely to be emulated down the road (Walker 1969; Volden 2006). However, I find that the *interaction* of shared party control and wealth matters: states are more likely to emulate the policies of wealthy states when they share party control in both economic and social policies.

Overall, the relative lack of evidence for economic policy learning underscores the basic challenges facing any government hoping to learn from other states’ policy experience. Policies interact with each other in complex and multifaceted ways such that the true effect of implementing a policy in a given state might depend on the state’s existing policy regime. Still, the potential for such large obstacles to policy learning hasn’t dulled support for Brandeis’s laboratories of democracy theory.

In contrast to the inconsistent results of signals of economic success, I find that evidence of *electoral* success has a robust relationship to policy emulation—but only when this evidence comes from states controlled by the same party. Remarkably, evidence of electoral success in outpartisan states has virtually no effect on the likelihood of policy emulation. It matters not whether a Democratic governor experienced electoral gains after implementing a popular policy; a Republican state government remains unlikely to pass the policy. It may be the case that governors and state legislators are indifferent to the potential electoral costs of implementing policies that are “out of step” with their constituents. But partisan information networks may also drive this pattern. When governments consider implementing a policy, any prediction of the mass public’s reaction comes with great uncertainty. In this context, partisan information networks may lead officeholders to overestimate the popularity of copartisan policies and underestimate the popularity of outpartisan policies.

Additional research should investigate the mechanisms undergirding the partisan learning model. In addition to strong qualitative and theoretical evidence, the finding that success from copartisan governments, but not ideologically proximate governments in general, increases the likelihood of emulation increases our confidence in the partisan organizational network mechanism.

However, this analysis cannot completely rule out an ideological learning mechanism: it could be the case that politicians use party control of government as a heuristic for ideology such that emulation of ideological distant copartisan governments is a cognitive error (e.g., Lau and Redlawsk 2001).

Overall, the predictions of Brandeisian models of unbiased institutional learning under federalism are not borne out in historical data over recent decades. Optimistic interpretations of federalism often emphasize the potential for institutional incentives to cut against partisan and ideological incentives. This optimism is deeply embedded in traditional understandings of American political institutions. But scholars of federalism should be attentive to this interpretation's limited empirical support in observational data.

It's concerning that the state policy data don't show much support for this prominent theory of the benefits of federalism. But the fact that one of federalism's virtues might not be real isn't as concerning as what I show in the next two chapters: that federalism leaves the United States vulnerable to democratic backsliding.

7

Laboratories of Democratic Backsliding

THE TRUMP PRESIDENCY has generated new concerns about authoritarianism and democratic backsliding in the United States (Gessen 2016).¹ This concern comes in many flavors. Prominent think-tank moderates and Never-Trump conservatives express dismay at the erosion of parliamentary norms. Liberal Americans worry about the Trump coalition's apparent comfort with undemocratic and violent rhetoric toward its political opponents. Human rights activists point to increasingly authoritarian immigration policy. Nearly all of this concern has been directed at one level of government: national.

The crisis of democracy has also sparked new concerns among scholars. Recent research has focused on conceptualizing and measuring the health of American democracy (Dionne, Ornstein, and Mann 2017; Lieberman et al. 2019). Scholars of American politics, most of whom had considered American institutions to be so robust that the potential for backsliding was unnecessary to study, increasingly turned to comparative and historical scholars for insight. Prominent cross-national measures of democracy from the Varieties of Democracy Project (V-Dem), Bright Line Watch, and Freedom House now operate somewhat like the Doomsday Clock of the Cold War era.

Yet there has been no such systematic inquiry into *subnational* dynamics in American democracy. This lack of attention is curious in light of American federalism, an institutional system that gives state governments the authority to administer elections and other democratic processes. To the extent that thinkers have systematically addressed the role of federalism in this precarious

1. See also, for example, the September 2018 special issue of the *Atlantic* titled "Is Democracy Dying?"

period, it usually involves a reassertion of classic, optimistic theories about its importance in safeguarding institutions. Members of the conservative establishment argue that federalism mitigates the political frustrations of intense and polarized masses, allowing them a safety valve of local policy change while they are out of power at the national level (Levin 2017). Proponents of “progressive federalism” similarly suggest that federalism allows racial minorities to hold power in areas where they comprise majorities (Gerken 2012). Still others remind us that state governments, with their own authority clearly written into the U.S. Constitution, provide a check against a presidential power grab of all levers of authority in the American political system.

In many important ways indeed, governors, state legislators, and state judicial branches have challenged the actions of the Trump administration in areas such as climate and immigration. But faith in state governments betrays a tradition well known to scholars of race and ethnicity: state and local governments directly and indirectly enforced racial hierarchy for most of U.S. history (DuBois 1935; Foner 1988). In a broader sense, the United States was not a democracy until the national government enforced authority against state governments through the Voting Rights Act of 1965 (Mickey 2015; King 2017). More recent challenges to American democracy, such as the rise of mass incarceration and the carceral state (Soss and Weaver 2017), are also concentrated at the state level (Miller 2008). And in an uncanny pattern, recent threats of norm violations in the federal government are preceded by state governments having already violated the norm—whether it is court packing in Georgia in 2016 and Arizona in 2019,² the “lame-duck coups” in North Carolina and Wisconsin in 2016 and 2018,³ or attacks on labor rights in midwestern states in the 2010s.

In this chapter, I argue that state governments have been leaders in democratic backsliding in the United States in recent years.⁴ Although the national

2. Mark Joseph Stern, “Arizona’s Governor Is Leading Republicans’ Quiet, Radical Takeover of State Supreme Courts,” *Slate*, August 29, 2019, <https://slate.com/news-and-politics/2019/08/arizona-supreme-court-rigging-doug-ducey-bill-montgomery.html>; Kristina Torres, “Expansion of Georgia’s Supreme Court Wins Final Approval,” *Atlanta Journal-Constitution*, March 22, 2016, <https://www.ajc.com/news/state--regional-govt--politics/expansion-georgia-supreme-court-wins-final-approval/skmjVHCCo80HW4hXZKL6rM/>.

3. Tara Golshan, “North Carolina Republicans’ Shocking Power Grab, Explained,” *Vox*, December 16, 2016, <https://www.vox.com/policy-and-politics/2016/12/16/13971368/republican-power-grab-north-carolina-explained>.

4. Rather than a sharp break in regime type, this investigation asks about more granular changes to American democracy that in some ways parallels comparative analysis of “hybrid”

level may show troubling signs of diminishing democracy, state governments are *the* primary actors who administer democratic backsliding in practice and on the ground. State governments work directly and indirectly with national coalitions to use state institutions—easier to capture than national institutions—to their mutual benefit. Troubling stories abound in recent years of voter suppression, of gerrymandering, of state legislatures taking power from incoming outparty governors, of the use of state police powers to limit dissent. But there has been little effort to systematically trace the dynamics of democratic performance in the states in the contemporary period.⁵

How has democracy in the states expanded and contracted in recent years? I draw upon recent advancements in ideal point modeling to create a measure of democratic health in the fifty states from 2000 to 2018: the State Democracy Index. The measure is based on 61 indicators of democratic performance, such as states' voter registration policies, average wait times for voting,⁶ and the extent of partisan gerrymandering in states' legislative districts. While this measure cannot directly tell us what democratic performance would look like in a counterfactual United States with a unitary instead of federalist system, it illuminates important dynamics in American democracy across time and space.

The time-series estimates of state democratic performance show important trends. On average, state-level democracy is mostly stable since 2000—better than one might expect. Such aggregate stability, however, obscures major changes in democratic performance within states. While democracy is static or gradually expanding in many places, in some states, such as North Carolina, I find precipitous drops in democratic performance after 2010. The State Democracy Index, publicly available at jakegrumbach.com, will be of use to scholars and journalists interested in monitoring the front lines in the ongoing battle over American democracy.

Just as slavery and Jim Crow in the U.S. South affected the politics and society of the North, democratic backsliding in states like North Carolina and

regimes that combine elements of democracy with those of authoritarianism and oligarchy (e.g., Levitsky and Way 2010).

5. Hasen (2020) provides analysis of the causes of distrust in U.S. elections, voter suppression and “incompetence” in electoral administration, both of which are state-level phenomena. Widespread distrust in the fairness of election outcomes, Hasen argues, could result in an “election meltdown” and constitutional crisis.

6. For more on voting wait times, see the work of Chen et al. (forthcoming), who, using smartphone data, find that Black Americans face significantly longer wait times to vote than white Americans.

Wisconsin affects other states and, more importantly, democracy in the United States as a whole. State authorities administer elections; they are the primary enforcers of laws; they determine in large part who can participate in American politics, and how. The policy and judicial landscapes have grown increasingly favorable for policy variation across states in recent years. As a consequence, states may be increasingly important to trends in democracy across all institutions within American federalism. Political scholars, observers, and participants should pay close attention to dynamics in state democracy.

Federalism as Democracy-Expanding

The Benefits of Decentralization

In recent years, conservative pundits and thinkers have routinely invoked federalism as the solution to troubles in American democracy (e.g., Buckley 2014; Levin 2017). David Brooks is characteristic of this trend, arguing in 2018 that whereas “federal power is impersonal, abstract and rule-oriented, local power is personalistic, relational, affectionate, irregular and based on a shared history of reciprocity and trust.”⁷

Mainstream political scientists and legal scholars have often argued the same (Hills 1998; Roe 2003; March and Olsen 2010). Political theorist Samuel Beer (1978) prominently argued that the Founders’ *main purpose* in federalism was to create institutions that “closely and actively joined voter and representative” (10). Jenna Bednar (2005, 193) considers “effective representation” to be one of the main objectives of choosing a federalist institutional structure.

Political economists joined in with formal theories of politics as a “marketplace,” in which the threat of exit—“voting with your feet”—produces more responsive and effective governance (Tiebout 1956; Oates 1972; Sinn 1992). Although some of these political economists expressed skepticism toward majoritarianism and democracy itself, the theory of the political marketplace, combined with Louis Brandeis’s laboratories of democracy discussed earlier in this book, suggested that authority for the states should lead to an improved relationship between citizens and policymakers. Empirical scholars of comparative politics have also suggested that federalism eases the transition into democracy (Stepan 1999; Gibson 2004).

7. David Brooks, “The Localist Revolution,” *New York Times*, July 20, 2018, <https://www.nytimes.com/2018/07/19/opinion/national-politics-localism-populism.html>.

Whereas many scholars of race, as well as William Riker, argue forcefully that federalism has empowered racist coalitions, some mainstream political scientists suggested on the contrary that federalism was a boon for civil rights (Beer 1978, 16–17). The writing of Carl Lawrence Paulus (2019) encapsulates this argument: “Without federalism—or as it is often labeled, states’ rights,” he argues, “political abolitionism would never have gotten the oxygen needed to light a fire for freedom nationally.” This emphasis on federalism’s ability to provide national minorities and civil rights proponents one or more states to serve as a springboard is also an important component of a more liberal version of this theoretical tradition: *progressive federalism*.

Progressive Federalism

“Decentralization can produce a healthier democracy in the long term,” writes Heather Gerken (2012). Distinct from rational choice and economic theories of federalism, Gerken describes a *progressive federalism* with two major benefits. First, decentralization enables racial, ethnic, and religious minority groups to “rule” in places where they are in the majority. Such a situation, supporters argue, facilitates the “politics of recognition,” in which different identities and cultures are respected in a multicultural polity. Second, federalism’s decentralization facilitates, protects, and legitimates dissent by providing constitutional authority to subregions of the country, some of which are likely at any given time to dissent against the direction of national policy.

One area of success for progressive federalism, scholars argue, is in the politics of immigration and citizenship. In their book *Citizenship Reimagined*, Allan Colbern and Karthick Ramakrishnan (2020, 4) document the emergence of “progressive state citizenship,” in which “states provide rights and protections that exceed those at the national level.” While the national government formally determines questions of legal citizenship, immigration policies in states like California have meaningfully affected the legal, economic, and civic inclusion of immigrants. The authors make clear that strong federal enforcement of equal protection under law via the Fourteenth Amendment is critical to avoiding “regressive federalism” but argue that the “current trend in progressive federalism . . . runs counter to the historical narrative of federalism as one that empowers states and localities to block national progress and entrench regressive racial orders” (Colbern and Ramakrishnan 2020, 11).

In the age of Trump, such a theory is alluring. Timothy Egan (2019), writing for the *New York Times*, exclaims that “California, Oregon and Washington are

winning the fight against Trump’s hateful policies.” This is the system working. Federalism is a safety valve that Democrats and liberals, as well as marginalized identity groups, can use while out of national power. Furthermore, if these blue state policy experiments are effective and popular in practice, they serve as examples for voters and officeholders of other states—laboratories of democracy in action.

Proponents of progressive federalism discuss *spillovers*, in which the effects of state policy reverberate outside of its borders (Gerken and Revesz 2012). Although such scholars are well aware of cases of problematic spillovers, such as people who cross state lines to buy easy-to-access guns, they argue that, on balance, these spillovers have been effective at solving social problems. California’s large share of the automobile market, for instance, meant that the state’s emission standards affected car production across the country.⁸

Overall, progressive federalism shares much with traditional theories of decentralization. However, progressive federalists note that the benefits of federalism may require a more robust national government than would be optimal under the traditional theories. As Gerken (2012) writes:

The federalism that haunts our history looks quite different from the form of local power that prevails now. Federalism of old involved states’ rights, a trump card to protect instances of local oppression. Today’s federalism involves a muscular national government that makes policy in virtually every area that was once relegated to state and local governments. The states’ rights trump card has all but disappeared, which means that the national government can protect racial minorities and dissenters when it needs to while allowing local forms of power to flourish.

But is the United States truly past “the federalism that haunts our history”? In the next section, I turn to more troubling theories of the role of federalism in democracy.

Federalism as Democracy-Contracting

As Corey Robin (2020) has argued, a silver lining of the 2016 and 2020 presidential elections is that they pushed scholars from the question of “What’s the matter with the voters?” to “What’s the matter with the institutions?” Indirectly,

8. Spillovers, the progressive federalism story goes, also generate new opportunities for bipartisan compromise. Spillovers “force the issue,” no longer allowing state politics and policy to exist in isolation. But a unitary system might simply “force the issue” earlier.

this trend has increased scholars' concern about federalism—especially its countermajoritarian functions. But not much of the concern is about federalism directly. Federalism is historically related to, but distinct from, other undemocratic elements of U.S. constitutional design, such as the Electoral College and malapportionment in the U.S. Congress. The Electoral College empowers state legislatures, not voters, to appoint electors, which, if their state government allows, can use the state's Electoral College votes as they wish, potentially ignoring presidential election voters entirely (an institutional feature that became especially concerning in 2020).⁹ Also historically related to federalism, the Constitution's two-Senate-seats-per-state design has led to severely unequal say in Congress based on voter geography (Dahl 2003; McAuliffe 2019). It is quite possible that malapportionment in Congress, stemming from a combination of geography and the Three Fifths Clause, delayed the end of slavery in the United States, as the North had more voters but fewer seats until the Republican victories of 1860.¹⁰

Federalism is also the direct and indirect source of veto points in the American constitutional structure. This may hold back democracy by increasing the number of veto players in the political system, causing more frequent policy stasis and status quo bias. In the words of Edward Gibson and Desmond King (2016, 24), “Fights about federalism are inseparable from fights about democracy in U.S. political history because federalism impedes reform.” Rules that make it more difficult for any actor to change laws are asymmetrically problematic for people who are suffering under the status quo.

But here I focus more centrally on federalism's endowment of authority to state governments and how this state-level authority is used to expand or contract democracy in the United States. As I argued earlier, federalism may advantage groups for which money is the primary political resource. Business and the wealthy can more credibly threaten to reduce investment in a state, and they can more effectively influence the politics of states in which they do not live. In this chapter, I focus not on the social and economic policy outcomes that various groups seek, such as taxes or environmental regulation, but rather on the laws and socioeconomic conditions that are conducive to democracy itself.

9. Federalism looms large in legal and theoretical defenses of the Electoral College, as seen, for instance, in legal scholar Robert Hardaway's 1994 book *The Electoral College and the Constitution: The Case for Preserving Federalism*.

10. Judicial perspectives based in federalism may have also contributed to jurisprudence that further entrenched slavery (Maltz 1992).

If states are easier targets for concentrated interests in American society—those groups who stand to benefit most from a weaker American democracy—then it matters greatly that states have authority over areas of law that are critical to democracy. As we saw in chapter 3, state governments have grown in policymaking importance across a wide range of policy areas since the 1970s; policy differences between states are greater than they were a generation ago. But among the most profound policy decisions in the states are those that shape what democracy, itself, looks like in practice. States administer elections, deciding who is eligible and able to vote. And they control the vast majority of policing and the carceral state (Miller 2008), deciding who is free and who is a ward of the state. As Steven Levitsky and Daniel Ziblatt (2018, 2) write in *How Democracies Die*, “American states, which were once praised by the great jurist Louis Brandeis as ‘laboratories of democracy,’ are in danger of becoming laboratories of authoritarianism as those in power rewrite electoral rules, redraw constituencies, and even rescind voting rights to ensure that they do not lose.”

Thus, in the system of American federalism, even when *national* actors are interested in narrowing democracy, they describe strategies involving *state-level* authorities. In 2019, for instance, the Associated Press obtained a recording of an advisor to President Trump outlining a strategy for Wisconsin Republicans in state government to suppress Democratic votes, describing that “it’s always been Republicans suppressing votes in places. . . . Let’s start protecting our voters. We know where they are. . . . Let’s start playing offense a little bit” (quoted in Bauer 2019). The inverse occurs as well. In 2020, Kansas Senate president Susan Wagle implored Republican donors to contribute to state legislative candidates so they could maintain a veto-proof majority that would gerrymander Democrat Sharice Davids out of her federal U.S. House seat.¹¹ Investigative journalists have chronicled a plethora of similar statements from officials, as well as qualitative evidence of voter suppression on the ground. Studies have begun to look at the electoral effects of democratically important state-level variables, such as gerrymandering (Stephanopoulos and Warshaw 2020) and voter ID laws (Grimmer and Yoder 2019).

Black Americans have historically looked to the federal government for relief from state-level authoritarianism and exclusion. Activists called on federal authorities to take action against states—first to abolish slavery (Fields 1990; Foner 1995) and later to dismantle state and local systems of lynch law (Wells-Barnett 1892), segregation, disenfranchisement, and exclusion during

11. Smith, “Kansas Senate President Pushes Redistricting Plan.”

the Jim Crow period (Johnson 2010; Mickey 2015). Riker (1964, 155) offers a critical view of federalism in this respect, arguing that “if one disapproves of racism, one should disapprove of federalism. . . . All that federalism ever did was to facilitate the expression of racist beliefs and the perpetuation of racist acts.” Gibson and King (2016) argue that the “Second Reconstruction” of the civil rights period was more successful than nineteenth-century Reconstruction primarily because the former occurred in the context of a balance in federalism that had shifted from the state to the national level.

The empirical analysis in this book does not tell us directly whether a unitary rather than federalist United States would produce a healthier democratic republic. The United States is but one case, and it has had federalism (albeit in changing forms) since its founding. What this analysis can speak to, however, are the profoundly important state-level changes in democratic performance in recent years—and their causes.

Measuring Democracy

Conceptualizing Democracy

Democracy is a broad concept, so a helpful way to get conceptual traction is to break its definition into component parts.¹² Mainstream scholars of American politics have tended to conceptualize democracy through the lenses of *elections* and public opinion most prominently. This is the case among quantitative American politics and political economy scholars (e.g., Downs 1957; Lax and Phillips 2012; Gilens and Page 2014; Achen and Bartels 2016), but earlier qualitative Americanists also put their main focus on elections and how they translate into legislative seats (e.g., Dahl 2003).¹³

In this Americanist tradition, electoral policies and outcomes help serve as indicators for how democracy is performing. Some of these are policies and

12. Conceptualizing subcomponents of democracy, such as “electoral democracy” or “liberal democracy,” is distinct from the conceptualization of “diminished subtypes” of democracy in some comparative research (Collier and Levitsky 1997, 439). Electoral democracy as a diminished subtype implies that a polity has free, fair, and legitimate elections but lacks other necessary components to make it a “full” democracy, such as civil liberties, much like the diminished subtype concept of “male democracy” contrasts with polities that extend democratic citizenship to both men and women. Thus, the conceptualization of electoral democracy as a subcomponent means it takes us “up” the ladder of generality (Sartori 1970), applying to more cases, whereas its conceptualization as a diminished subtype takes us “down” the ladder of generality.

13. A focus on leaders in “competition for votes” is also central to Schumpeter 1942.

procedures that set the rules of the game. Election laws can make it easy and simple, or difficult and costly, for members of the polity to exercise their most important form of political participation, their vote. Districts can be gerrymandered, compacting and diluting votes in ways to make their influence over who serves in office highly unequal.¹⁴ Other indicators of democratic performance are not rules about democratic inputs but rather measures of democratic outputs. Prominently, a bevy of studies has investigated the correspondence between the policy and ideological attitudes of constituents on the one hand and politician behavior and policy outcomes on the other (e.g., Erikson, Wright, and McIver 1993; Gilens 2012; Lax and Phillips 2012; Caughey and Warshaw 2018).

However, other intellectual traditions have relied on broader conceptualizations of democracy. Comparativists, with the help of their cross-national focus, have studied the causes and consequences of democratic transitions across time and space. With a wider geographic and temporal focus, comparativists have put in considerable effort to conceptualize—and measure—democracy and democratic performance. Most prominently, the V-Dem group has conceptualized five different components of democracy: elections, liberalism, participation, deliberation, and egalitarianism. I draw on this conceptual mapping heavily. (As you will see later in the “Measuring Democracy” section, I draw upon their measurement strategy as well.) Such a conceptualization of democracy draws especially on historical institutionalism and democratic theory. Major works from democratic theorists such as Robert Dahl (2008) and Ian Shapiro (2009) reviewed changing understandings of democracy throughout history, such as the deliberative principles of Jürgen Habermas (1992) and John Rawls.

Democracy requires rights, which limit what electoral and legislative majorities can do (Estlund 2009; Brettschneider 2010). This is the *liberalism* component. The most important rights in the liberalism tradition are usually negative rights, that is, freedom from state encroachment in rights to speech, association, belief, and other areas. The democratic component of liberalism is especially concerned that a “tyranny of the majority” would violate the rights of

14. The Mississippi Constitution, for instance, requires that the governor win not only the majority of the statewide popular vote but also a plurality of votes in a majority of the state’s legislative districts; if a gubernatorial candidate does not meet these thresholds, the Mississippi State House selects the winner. The purpose of this institutional feature was clear in the 1890 convention that ratified the constitution. Mississippi’s constitutional “founding father” James K. Vardaman, who went on to serve as governor and then U.S. senator, proclaimed that “Mississippi’s constitutional convention of 1890 was held for no other purpose than to eliminate the n****r from politics.”

minorities. Shapiro (2009) suggested that “nondenomination,” itself closely related to liberalism, be a key tenet of democracy.¹⁵ Feminist theories of liberal democracy suggest that reproductive rights are necessary for women to be equal democratic citizens (Phillips 1991; Craske, Molyneux, and Afshar 2002).

There have been important critiques of liberalism, however, that it has in practice depended on national prosperity derived from imperialism, racial exploitation, and the exclusion of nonwhite peoples (Mills 2017). To varying degrees, scholars in the liberal tradition have addressed such critiques by emphasizing *equality* of those rights under law—and the realization of rights in practice. Rogers Smith (1993) emphasized that the disconnect between the liberal understandings of American democracy and historical race and gender hierarchies necessitates the tracing of “multiple traditions” in American civic identity. Desmond King (2009) extended this idea, suggesting that dynamics in American democracy could be illuminated by looking at immigration policy and which people it determined to be full members of the polity.

These debates over liberalism help to conceptualize the *egalitarianism* component of democracy. To what extent is egalitarianism integral to democracy, and what kinds of equality are most important? Some, such as the scholars just mentioned, tend to be focused on the realization of equal *de jure* rights. But democracy may depend on both procedural rules and substantive outcomes (Brettschneider 2010). Scholars of social democracy, including many comparative politics scholars, include positive social and economic rights as central to democracy. V-Dem, for instance, considers the equal distribution of resources, “both tangible and intangible,” to be an element of egalitarianism and important for democracy.¹⁶ The egalitarian focus is further related to organizational and relational conceptualizations of democracy (Han 2016, 2017). Voluntarism in civil society organizations has been central to understandings of democracy, and especially American democracy, since at least de Tocqueville. As Theda Skocpol, Marshall Ganz, and Ziad Munson (2000, 527) describe, “associations have provided paths into active citizenship, allowing Americans to build community, pursue shared goals, and influence social and political affairs.”

15. More conservative theorists have also suggested that protecting the owners of capital is also an important minority consideration (North 1981; Weingast 2016).

16. A wrinkle, however, is the potential for the rise of the bourgeoisie to be a mechanism toward democratization. It may be that incumbent elites expand democracy to provide concessions not to the poor but to the rising “new money” upper class—whose emergence is associated with higher, not lower, economic inequality (Ansell and Samuels 2014). My focus in this book, however, is on a mature democracy, the United States, with levels of income and wealth inequality larger than those of virtually any society in history (Hacker and Pierson 2010; Piketty 2014).

But perhaps most importantly, the centrality of chattel slavery and racial hierarchy to the history of the United States has led American scholars across a variety of disciplines to focus explicitly on the rights and equities of African Americans as key markers of democratic performance (Foner 1988; Shelby 2005). Such analysis has broadly investigated racial democracy in terms of the right to vote (e.g., Kousser 1974), civil liberties (e.g., Francis 2014), and the distribution of social and economic capital (e.g., DuBois 1935; Glaude 2017). Further research has linked institutional racism and authoritarianism, in both the Jim Crow era of pervasive lynching (Mickey 2015) and the post-civil rights era (Parker and Towler 2019). The continuing political significance of race prompts me to consider *racial equity* a central component of democracy, especially in the American context. In the state democracy measures I create, I include some direct indicators of racial inequality as determinants of state-level democratic performance, though many race-neutral democracy indicators reflect a racialized politics (e.g., gerrymandered district lines).

The multitiered federalist institutional structure of the United States presents an additional conceptual challenge to investigating the democratic performance of states. This idea is related but not identical to what Gibson (2005, 103) has described as the potential for “an authoritarian province in a nationally democratic country” (see also Gibson 2013). Not only are states not separate, atomized polities from each other horizontally; they are embedded in complex relationships with the federal government vertically in a structure resembling more of a “marble cake” than the “layer cake” of classical dual federalism (Weissert 2011). The particular way the cake is marbled is also in flux, changing dynamically based on the preferences of coalitions (Riker 1964, 1975). More specific to this chapter’s inquiry into democracy, state governments may act in ways that expand or contract democracy, but only dependent on federal activity. For example, the Supreme Court in *Shelby County v. Holder* (2013) struck down key provisions of the Voting Rights Act, allowing states to implement changes to electoral procedures in ways that threaten the freeness and fairness of elections.¹⁷

The richest dive into the democratic performance of states in recent years has been that of Michener (2018), who points to individuals’ interactions and experiences with state government as central to democratic performance. This book takes a related but distinct route in empirically investigating democracy

17. Quantitative studies buttress historical research showing that the Voting Rights Act had profound effects on legislative responsiveness to Black voters (Schuit and Rogowski 2017) and on racial inequality in labor market outcomes (Aneja and Avenancio-León 2019).

in the states, addressing de jure laws (e.g., election law), implementation (e.g., gerrymandering), and observed democratic outcomes (e.g., the correspondence between opinion and policy) over time. The next section discusses in further detail how I operationalize democracy.

Operationalizing Democracy

As the preceding section implies, there is no easy or consensus strategy to operationalize democracy in a quantitative study. I thus created two distinct measures of democratic performance in the states, each of which speaks to a different intellectual tradition of studying American democracy. The first measure, the State Democracy Index, characterizes the health of democracy in the states more narrowly based on the freeness and fairness of their elections and the strength of their civil liberties. A second measure, which I use in the appendix, combines the electoral indicators from the State Democracy Index with a large number of additional indicators that make up other democratic components (e.g., liberalism, egalitarianism, racial equity, and representation).

Importantly, democratic performance is conceptually distinct from “policy liberalism” (Caughey and Warshaw 2016), “size of government” (Garand 1988), and other concepts that capture the left-right orientation of policy outcomes across political systems. One might worry that ideological and partisan considerations influence the definition of democracy, which would lead to a tautological study of the causes of democratic changes. However, the main measure in this and the next chapter, with a focus on electoral and liberal democracy, is narrowly defined around indicators related to the cost of voting, fairness of districting, and basic civil liberties that are considerably more minimal than the definitions often found in comparative democracy research (e.g., V-Dem 2014). Furthermore, defining democracy as to ensure the definition is bipartisan puts democracy research at greater risk of tautology and the “argument from middle ground” fallacy or, in contemporary parlance, “bothsiderism.”

Democracy Indicators

These *democracy indicators* are individual variables that we aggregate into the State Democracy Index measure. Forty-seven of these variables are indicators related to electoral democracy, such as felon disenfranchisement and measures of gerrymandering. Felon disenfranchisement and prisoner voting policies were collected from the National Conference of State Legislatures (NCSL). Data on same-day voter registration, early voting, voter ID laws,

youth preregistration, no-fault absentee voting, and automatic voter registration are from Grumbach and Hill (forthcoming).¹⁸

Additional electoral variables, especially indicators of state administrative performance in elections, are from the MIT Election Lab.¹⁹ Gerrymandering data, which feature prominently in the democracy indices, are provided by Stephanopoulos and Warshaw 2020, with an additional district compactness variable from Kaufman, King, and Komisarchik 2021.²⁰ We also use indicators of policy responsiveness to public opinion (separated into social and economic policy domains) based on the state policy and mass public liberalism measures from Caughey and Warshaw 2018.²¹ Importantly, some of these indicators capture *de jure* electoral policies and procedures, such as voter registration laws, while others measure democratic *outcomes* like policy responsiveness to public opinion and voting wait times.

Indicators covering liberal democracy and freedom from authoritarian control come from additional sources. Indicators related to criminal justice are from the Correlates of State Policy Database (Jordan and Grossmann 2016), as well as the Bureau of Justice Statistics and Institute for Justice. We also include state asset forfeiture ratings by the Institute for Justice “Policing for Profit” data set.²² We list all 61 indicators and their sources in table 7.1.

18. There has been recent debate about the importance of voter suppression laws in the United States. In particular, there is evidence that voter ID laws might have limited effects on turnout (Cantoni and Pons 2021). High-performing electoral democracies, such as in northern Europe, also require government-issued identification to vote. However, these countries tend to have universal national (often compulsory) identification policies and provide significant exceptions to the ID rule. Voter ID laws’ limited effect on turnout might also have been due to counteractive mobilization efforts by organizations (Cantoni and Pons 2021). Additional evidence from Texas suggests that many thousands of voters, disproportionately Black and Latino, would have been disenfranchised if not for a hardship exception in the state’s law—a provision that strict ID states do not have (Fraga and Miller, forthcoming). But overall, the criterion for voter ID or any other law to be considered “voter suppression” is whether it increases the individual cost of voting overall or for a subgroup of Americans, not whether its average treatment effect estimate is near-zero (Zhang, forthcoming).

19. Available at electionlab.mit.edu/data.

20. Indicators of gerrymandering that measure one of the two parties’ advantage (e.g., efficiency gap) are transformed into their absolute values to measure the extent of partisan advantage in either direction.

21. Specifically, we use the squared residuals from a bivariate regression of state policy liberalism on state opinion liberalism, which capture how “out of step” a state’s policy is with its residents’ policy attitudes.

22. Available at <https://ij.org/report/policing-for-profit-3/policing-for-profit-data/>.

TABLE 7.1. Democracy Indicators

Indicator	Source
Asset forfeiture grade	Institute for Justice
Automatic voter registration	Grumbach and Hill, forthcoming
Black incarceration rate	Bureau of Justice Statistics
Criminalization of forms of protest	International Center for Not-for-Profit Law
Determinate sentencing	Grumbach 2018
District compactness	Kaufman, King, and Komisarchik 2019
DNA exoneration	Correlates of State Policy
Early voting	Correlates of State Policy
Election data completeness	MIT Election Lab
Felony disenfranchisement	Correlates of State Policy
Gerrymandering: declination (Cong.)	Stephanopolous and Warshaw 2020
Gerrymandering: declination (Cong.-Pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: declination (state leg.)	Stephanopolous and Warshaw 2020
Gerrymandering: declination (state leg.-pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: efficiency gap (Cong.)	Stephanopolous and Warshaw 2020
Gerrymandering: efficiency gap (Cong.-Pres)	Stephanopolous and Warshaw 2020
Gerrymandering: efficiency gap (state leg.)	Stephanopolous and Warshaw 2020
Gerrymandering: efficiency gap (state leg.-pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: mean-median difference (Cong.)	Stephanopolous and Warshaw 2020
Gerrymandering: mean-median difference (Cong.-Pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: mean-median difference (state leg.)	Stephanopolous and Warshaw 2020
Gerrymandering: mean-median difference (state leg.-pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: partisan symmetry (Cong.)	Stephanopolous and Warshaw 2020
Gerrymandering: partisan symmetry (Cong.-Pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: partisan symmetry (state leg.)	Stephanopolous and Warshaw 2020
Gerrymandering: partisan symmetry (state leg.-pres.)	Stephanopolous and Warshaw 2020
Incarceration rate	Bureau of Justice Statistics
Military and overseas ballots not returned	MIT Election Lab
Military and overseas ballots rejected	MIT Election Lab
No-fault absentee voting	Correlates of State Policy
Number of felons ineligible to vote as percent of state population	Correlates of State Policy
Online registration	MIT Election Lab
Opinion-policy difference (economic)	Caughey and Warshaw 2018
Opinion-policy difference (social)	Caughey and Warshaw 2018
Percent of eligible voters who register	MIT Election Lab
Postelection audit required	MIT Election Lab

(continued)

TABLE 7.1. (*continued*)

Indicator	Source
Protections against compelling reporters to disclose sources	Correlates of State Policy
Provisional ballots cast	MIT Election Lab
Provisional ballots rejected	MIT Election Lab
Registration or absentee ballot problems (off-year)	MIT Election Lab
Registration or absentee ballot problems (on-year)	MIT Election Lab
Registrations rejected	MIT Election Lab
Repealed death penalty	Correlates of State Policy
Restrictions on voter reg. drives	Brennan Center
Same-day registration	Grumbach and Hill, forthcoming
State allows currently incarcerated to vote	National Conference of State Legislatures
Three strikes	Grumbach 2018
Truth in sentencing	Grumbach 2018
Turnout of voting-eligible population	MIT Election Lab
Under- and over-votes cast in an election	MIT Election Lab
Voter ID (any)	Grumbach and Hill, forthcoming
Voter ID (strict)	Grumbach and Hill, forthcoming
Voters deterred because of disability or illness (off-year)	MIT Election Lab
Voters deterred because of disability or illness (on-year)	MIT Election Lab
Voting wait times	MIT Election Lab
Website for absentee status	MIT Election Lab
Website for precinct ballot	MIT Election Lab
Website for provisional ballot check	MIT Election Lab
Website for registration status	MIT Election Lab
Website with polling place	MIT Election Lab
Youth preregistration	National Conference of State Legislatures

The State Democracy Index covers the years 2000 through 2018. On the one hand, the shortness of this time period is a limitation. However, there are serious challenges to creating a measure of state democracy that covers both the contemporary period and earlier eras, such as the Jim Crow period, which featured overwhelmingly greater variation in democratic performance across states.²³ By limiting the State Democracy Index to the past two decades, we

23. This challenge is similar to estimating the median legislators' ideal point in the pre—and post—civil rights eras. Post-1960s legislative contestation was over a much smaller range of the ideological space when it comes to civil rights (Caughey and Schickler 2016).

capture an era of important contestation over American democracy while avoiding bridging between time periods for which there is very different data availability and, more importantly, potentially incomparable terms of civil and human rights.

Measurement Models

For our main State Democracy Index measure, we model democracy as a latent variable (Treier and Jackman 2008). This latent variable analysis lets observed relationships between the democracy indicators determine how each indicator should affect states' democracy scores. This strategy uses a model to create an "ideal point" on a latent dimension for each state-year that best predicts the real observed democracy indicators data. In particular, I use Bayesian factor analysis for mixed data because the democracy indicators may be binary (e.g., same-day voter registration), ordinal (e.g., disenfranchisement of all, some, or no felons), or continuous (e.g., legislative district efficiency gap) (Quinn 2004). The model is based on the equation below. In particular, the distribution of democratic performance for state s in year t , y_{st} , is a function of the state's latent democratic performance for that year, θ_{st} , as well as the democracy indicator's discrimination parameter β_j and difficulty parameter α_{jt} .²⁴ Subscript j denotes different indicators, which are analogous to test questions in the IRT framework. In this equation, N_j is a normal distribution with j dimensions (as there are j democracy indicators). Ψ is a $J \times J$ variance-covariance matrix:

$$y_{st} \sim N_j(\beta_j \theta_{st} - \alpha_{jt}, \Psi)$$

The main benefit of this factor analysis is that the measure requires little in the way of assumptions from me about how any particular indicator should affect democracy scores.²⁵ However, this comes at the cost of some loss of control; in certain circumstances, the estimated parameters for democracy indicators can be "wrong" in theoretical and substantive terms. Whether or

24. In order to maintain a constant substantive interpretation of how "democratic" a given indicator is across time, I model time-invariant difficulty parameters in contrast to the policy liberalism measure of Caughey and Warshaw (2016).

25. Bayesian latent dimension models like this one require the modeler to constrain the parameter space. I do this by assigning a random set of 10 indicators a positive or negative difficulty parameter based on whether it is theoretically democracy expanding or contracting (for a similar application to state policy liberalism, see Caughey and Warshaw 2016).

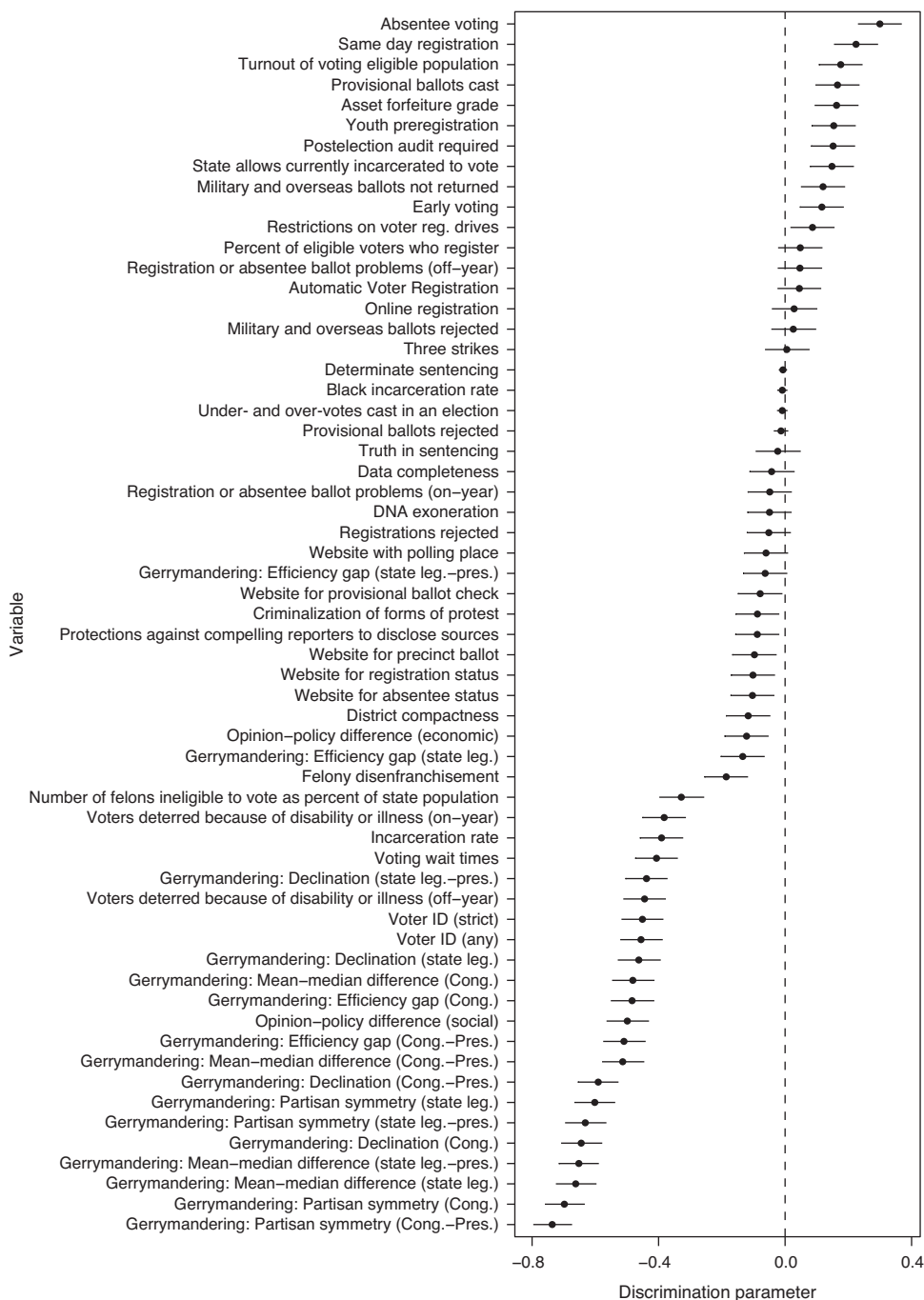


FIGURE 7.1. Factor Loadings of Democracy Indicators.

Note: Discrimination parameter estimates and Bayesian credible intervals for indicators used in the State Democracy Index.

not you consider this a serious problem is dependent on whether you philosophically interpret these “errors” as measurement error or bias.²⁶

Figure 7.1 shows the discrimination parameter estimates, β_j , for democracy indicator j . In short, the discrimination parameters represent the slope of the relationship between an indicator and a state’s latent democracy performance score. Indicators with positive discrimination parameters *increase* a state’s democracy score, whereas items with negative parameters *decrease* them.²⁷

The discrimination parameters in figure 7.1 suggest that a small number of indicators do not load well onto the latent democracy dimension (discrimination parameters close to zero). Although some indicators related to the carceral state, such as state incarceration rates and asset forfeiture ratings, load onto the democracy index well, others, such as three strikes laws and Black incarceration rates, are orthogonal. This is suggestive evidence that authoritarianism related to policing and incarceration might be a separate dimension of state democracy. A separate carceral authoritarianism dimension would be consistent with the results presented in chapter 3 showing that, in contrast to many other policy areas (e.g., health care or gun control), criminal justice policy in the states has not shown much polarization by party.

The item parameters in figure 7.1 inform us about the dimensionality of state democratic performance. When item parameters do not conform to theory, one solution is to directly impose item parameters on the indicators rather than model them. To do so, in addition to our Bayesian factor analysis measure, we use simple additive indexing to create an alternative democracy measure. In the additive index, we weight each democracy indicator equally by range scaling each to the $[0,1]$ interval and then take the state average across all the indicators. Policies that are democracy contracting, such as felony disenfranchisement, are reverse coded. This is equivalent to adding up all of a state’s democracy-expanding policies and then subtracting the sum of democracy-contracting policies (again, similar to the measurement strategy used in chapter 3). The additive measures used in the main analyses weight each indicator equally. We provide robustness checks with this additive

26. It is also worth noting that error in these democracy measures will reduce the precision of hypothesis tests, but because I use these democracy measures as dependent variables, this will not induce bias or inconsistency (among many sources, see Angrist and Pischke 2008).

27. Not shown here, difficulty parameters α_j are intercepts that scale the relationships between indicators and democracy scores.

measure in the appendix, and the results are very similar to those with the “data-driven” Bayesian measure.

We test the validity of the State Democracy Index in different ways. We check construct validation by comparing our measure to measures of related concepts. To our knowledge, the closest analogue to our measure is the Cost of Voting Index (COVI) from Li, Pomante, and Schraufnagel 2018, which is based on seven state electoral policy variables in presidential election years. State democracy, as a concept, is related to the cost of voting. We therefore check our measure’s convergent validity by estimating its correlation to this previous measure in figure A.2, finding a moderately strong correlation of -0.62 (higher values of COVI indicate greater cost of voting). We also show that our measure is positively correlated with state-level turnout of the voting-eligible public in figure A.2. We unfortunately have little opportunity to test for convergent validation because of the lack of existing measures of overall state-level democratic performance. There is scholarly interest in measuring subnational democratic performance at the (see Giraudy 2015; McMann 2018), and a small number of quantitative measures of democracy within other countries’ political subunits (Harbers, Bartman, and van Wingerden 2019), but we have not found such a measure of democratic performance focused on the fifty states.

In the next sections, we investigate descriptive trends in state democratic performance.

Trends in State Democracy

With the State Democracy Index in hand, I first explore variation between states, and within states across time, in democratic performance. Figure 7.2 shows a map of state scores in the year 2000 (left panel) and in the year 2018 (right panel). (For ease of display, I average a state’s *State Electoral* score and *State Democracy* score; as each score can be estimated with additive indexing or factor analysis, this means I am averaging four scores for each state in 2000 and again in 2016.)

The maps in figure 7.2 show some clear regional variation, especially in 2018. States on the West Coast and in the Northeast score higher on the democracy measures than states in the South. New Mexico, Colorado, and some midwestern states also have strong democracy scores.

The maps also show within-state change during this time period. States like North Carolina and Wisconsin were among the most democratic states in the

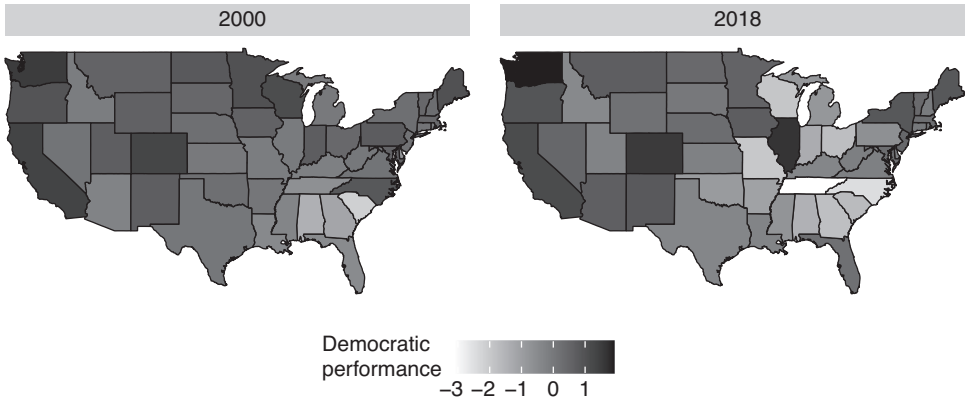


FIGURE 7.2. Democracy in the States, 2000 and 2018.

year 2000, but by 2018 they are close to the bottom. Illinois and Vermont move from the middle of the pack in 2000 to among the top democratic performers in 2018.

Figure 7.3 highlights one case of major change in democratic performance, North Carolina. While the state was notoriously difficult to democratize in the civil rights period (Mickey 2015)—it maintained its Jim Crow literacy tests for voting until the 1970s—North Carolina had become a leader in expanding access to voting during the late 1990s and early 2000s. The state had expanded opportunities for early voting and implemented policies to expand voter registration, such as same-day registration and pre-registration for youth. Voter turnout had increased by over 10 percentage points on average during this time.

But a major shift occurred after the Republican Party won control of both legislative chambers in 2010. Beginning in 2011, North Carolina made a series of changes to its election laws and procedures. The state redrew its legislative district boundaries. The new districts, which received rapid condemnation from Democrats and civil rights groups, clearly advantaged white and Republican voters. In 2018, for example, Republicans won about 49.3 percent of the two-party vote in North Carolina—but this *minority* of votes from the electorate translated to fully 77 percent (10 of 13) of North Carolina’s seats in Congress. Gerrymandering experts such as Christopher Warshaw have called North Carolina’s districts “the most gerrymandered map in modern history.” After electing a Republican governor in 2012, the unified Republican government then implemented a strict voter ID law and curtailed early voting laws

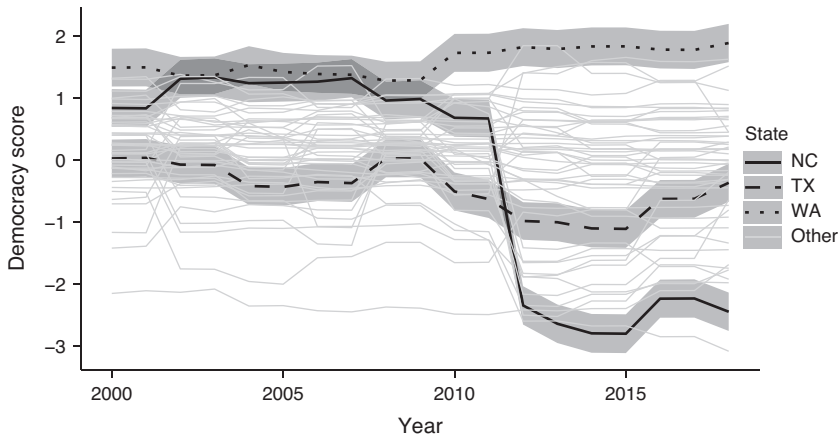


FIGURE 7.3. The Weakening of Democracy in North Carolina.

Note: Lines represent the State Democracy Index scores for states (2000–2018). The solid black line represents North Carolina, the dashed line represents Texas, and the dotted line represents Washington. Shaded ribbons are Bayesian credible intervals.

in areas with heavier concentrations of Black voters. These changes are reflected in figure 7.3.

Figure 7.4 shows trends in state democracy by party, with the solid line representing unified Republican states, and dotted and dashed lines representing Democratic and divided states, respectively. The states polarize by party over this time period: the average Democratically controlled state becomes more democratic, while the average Republican-controlled state becomes less democratic.

But regardless of the measure, the groups of states controlled by each party change over this time period; we do not know from figure 7.4 whether Republican states are becoming less democratic, or less democratic states are becoming more Republican. The partisan relationships could also be confounded by our other potential causes of democratic changes: competition and polarization. In the next chapter I look to within-state analysis to examine whether these forces influence democratic performance.

Conclusion

Despite their constitutional centrality for democratic institutions, there has been little systematic measurement of how state governments are performing as stewards of democracy. This chapter builds upon a foundation from

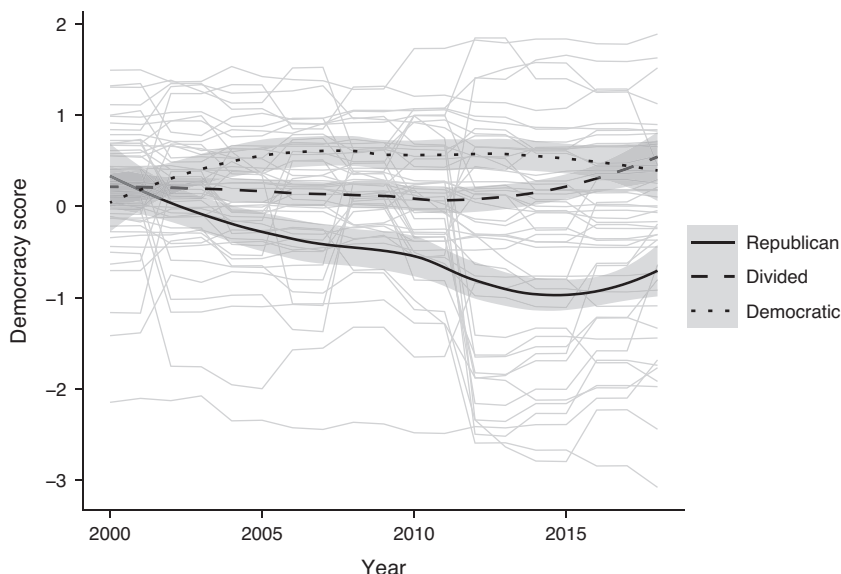


FIGURE 7.4. Democracy in the States by Party Control of Government.

Note: Plot shows average State Democracy Index scores for states under unified Democratic (dotted line), divided (dashed line), and unified Republican (solid line) control. Shaded ribbons are 95 percent confidence intervals.

multiple traditions of scholarship—democratic theory, comparative cross-national analysis, historical research on race in the United States, among others—to develop measures of dynamics in American democracy across geography and time.

The resulting State Democracy Index captures the expansion and contraction in state-level democracy between 2000 and 2018. The fifty states have been measured and ranked extensively on concepts such as educational performance, business climate, and libertarian freedom (Sorens, Muedini, and Ruger 2008). Yet they have not been measured in terms of democratic performance. I hope that the State Democracy Index proves useful for scholars seeking answers to questions about the causes and consequences of democracy beyond the scope of this book, such as the microfoundational roles of interest groups or mass attitudes. On a more somber note, the measures may also prove useful in case of impending democratic crisis.

Our measure opens up new opportunities for research on questions related to representation and democracy, as well as federalism and state and local politics. Scholars might be interested in investigating the role of interest groups

or money in politics on state democratic performance (Hertel-Fernandez 2016; Anzia and Moe 2016), perhaps by exploiting variation in state campaign finance policy (La Raja and Schaffner 2015) or election timing (Anzia 2011). Others might study how state democracy is affected by declining state and local politics journalism (Moskowitz 2021), or by voters' attitudes toward democratic institutions (Welzel 2007; Ahlquist et al. 2018; Graham and Svobik 2020; Miller and Davis 2021). There is especially great potential for behavioral scholars of race and ethnic politics to investigate the relationship between racial attitudes, attitudes toward democracy, and state democratic performance (e.g., Mutz 2018; Weaver and Prowse 2020; Jefferson 2021). Like comparative and political economy scholarship on whether "democracy causes growth" (Acemoglu et al. 2019), scholars can also use the State Democracy Index as an explanatory variable to study the effect of democratic performance on economic performance, socioeconomic outcomes among residents, and public attitudes such as trust. Comparative scholars can use our measurement strategy to create new measures of democratic performance in subnational units in one or more other countries, potentially constructing comprehensive cross-national measures of subunit democracy in political federations.

In contrast to my measures, cross-national measures of democracy sometimes cover much longer stretches of time. V-Dem, for instance, measures democratic performance for countries as far back as 1789—though this is not without its challenges (e.g., Reconstruction, a period of rapid expansion and then contraction of rights for Black Americans, is barely a blip on the U.S. V-Dem trend). Still, it is a worthy goal to construct a State Democracy Index that covers the transformational changes to the franchise, civil liberties, and other components of democracy that occurred in earlier periods of U.S. history. Alexander Keyssar (2000) and others have engaged in this kind of historical analysis of changes in voting rights but without this kind of systematic measurement strategy.

Perhaps more importantly, a longer time frame would contextualize the magnitude of recent shifts in state-level democracy. This chapter provides clear evidence of important changes in democratic performance, such as the rapid decline of democracy in states such as North Carolina since 2010. But these recent changes have occurred on a narrower range of the democracy dimension than those in earlier periods, when, for example, states differed in terms of the legality of slavery and the female franchise. Despite some troubling examples in state-level democracy in recent years, they do not come close to the profound differences in regime type that existed between states in the eras

before the twentieth-century civil rights period. At the same time, true democratic collapse is likely to be presaged by the kinds of democratic backsliding described in this chapter—which can entrench minority rule, curtail dissent, and limit participation in democratic institutions.

The State Democracy Index suggests that there have been dramatic shifts in democratic performance in the American states over this time period. In some states, democracy grew in inclusive ways, expanding access to political participation, reducing the authoritarian use of police powers, and making electoral institutions more fair. In other states, however, democracy narrowed dramatically, as state governments gerrymandered districts and created new barriers to participation and restrictions on the franchise.

As Philip Rocco (2021, 301) writes, “While uneven subnational democracy is preferable to a situation in which territorial governments are evenly undemocratic, the existence of undemocratic outliers nevertheless helps to undermine democracy as a whole.” Slavery, Jim Crow, and other forms of subnational authoritarianism affected the political economy of the North and the U.S. as a nation; though less barbaric in form, democratic backsliding in North Carolina and Wisconsin similarly affects democracy in the U.S. as a whole. State authorities administer elections; they are the primary enforcers of laws; they determine in large part who can participate in American politics, and how. The policy and judicial landscapes have grown increasingly favorable for policy variation across states in recent years. As a consequence, states may be increasingly important to trends in democracy across all institutions within American federalism. Political scholars, observers, and participants should pay close attention to dynamics in state democracy.

In the next chapter, I use the State Democracy Index to test the predictions of long-standing theories of the forces that underlie democratic expansion and contraction: (un)competitive party systems, polarization, racial threat, and the interests of groups in party coalitions.

8

Explaining Dynamics in Subnational Democracy

CONCEPTUALIZING AND MEASURING subnational democracy in the United States is a major undertaking. But the payoffs are substantial. The State Democracy Index measure developed in the previous chapter suggests that there have been major shifts in democratic performance within states in recent years. The important question, however, is not simply *how* democracy has changed in the states but *why*. Luckily, the new democracy measures allow me to test the predictions of competing theories of the causes of democratic changes.

What drives democratic expansions and contractions in political systems? Political science offers some potential explanations. They engage with transformative processes in modern American politics: partisan *competition* (Keyssar 2000), ideological *polarization* (Lieberman et al. 2019), *racial threat* (Bobo and Hutchings 1996), and national *party coalitions* (Hacker and Pierson 2020). Strong competition between the parties could expand or contract democracy in the states. On the one hand is a hopeful story of partisan competition, where parties have incentives to expand the electorate in search of more votes, improving democracy in the process by, for example, expanding the franchise (Keyssar 2000; Teele 2018a, 2018b). On the other hand, by incentivizing partisan brinksmanship (Lee 2009), partisan competition can lead a party with a precarious grip on power to diminish democracy by exploiting countermajoritarian institutions and attempting to prevent their opponents' electoral bases from voting. A second theory focuses on polarization—the ideological distance between the parties' agendas. Polarization increases politicians' need to ensure that their opponents do not win office. A party in government in a polarized state will thus have greater incentive to change policies that affect

democracy, such as election laws that influence the cost of voting for different groups in the state. A third theory predicts that demographic change will produce racial threat, turning some voters against democracy as they oppose the democratic inclusion of new voters and growing influence of voters of color. Importantly, these theories tend to consider states as separate polities with competition effects that do not spill across borders or levels of government (Teele 2018b; O'Brian 2019b).

Finally, a different theoretical tradition predicts *asymmetry* in the party-democracy relationship because the parties represent different group coalitions in American society. Rather than the symmetric reelection maximizers described in classic American politics textbooks, other theories of democracy point to the importance of conservative parties as historical coalitions of interests with incentives to constrain democracy (Ziblatt 2017). The Republican Party, a coalition of the very wealthy, major industry, and an electoral base motivated in no small part by white identity politics, has incentives to limit the expansion of the electorate with new voters with very different racial attitudes and, to some extent, class interests (Hacker and Pierson 2020). Furthermore, this theory considers party coalitions to be linked horizontally across states and vertically across levels of government—instead of atomized, individual reelection maximizers, these are networks of intense policy demanders with policy goals in support of the groups in their coalition (Bawn et al. 2012).

After developing these theoretical predictions, I describe the empirical relationships between measures of states' partisan competitiveness, elite polarization, and party control, on the one hand, and their democratic performance on the other. I more formally test the predictions of the theories with a difference-in-differences design that estimates whether within-state variation in these variables leads to changes in democratic performance. Across alternative measures and model specifications, the results are remarkably clear: Republican control of state government reduces democratic performance. The magnitude of democratic contraction from Republican control is surprisingly large, over one-half of a standard deviation. Competitive party systems and polarized politicians do little to explain the major changes in subnational democracy in the contemporary period.

The results underscore the importance of understanding what influences the Republican Party's democracy agenda. They also challenge traditional explanations that abstract away from the historical processes that led to the GOP's unique relationship to democracy compared to other mainstream political parties in the developed world.

Theories of Federalism and Democracy

The Role of Competitive Parties

Does a competitive party system help or harm democracy? Schattschneider famously proclaimed that “the political parties created democracy and modern democracy is unthinkable save in terms of the parties.” Scholars point to the consolidation of a competitive party system to explain large-scale expansions of democracy in the United States, Africa (Rakner and Van de Walle 2009), Europe (Mares 2015), and around the world (Weiner 1965). Intense competition for control of state legislatures in the late nineteenth and early twentieth centuries may have provided crucial incentives for state governments to expand the franchise to women. As Dawn Teele (2018b) argues, politicians have incentives to “enfranchise a new group if they are insecure in their current posts and looking for new ways to win, and if they believe they have a chance at mobilizing the newly enfranchised voters to support their party” (443). Similarly, the more competitive party system in the North is a potential reason for the region’s incorporation of white working-class and immigrant voters into local and state politics (Keyssar 2000). Beyond its state-sanctioned racial hierarchy, the one-party environment of the “Solid South” during Jim Crow was additionally problematic (Key 1949; Bateman, Katznelson, and Lapinski 2018; Olson 2020).

Furthermore, rational choice and quantitative scholars of American politics highlight the issue-bundling role of competitive parties in democratic systems. By aggregating voters and politicians into groups and reducing the dimensionality of politics (Poole and Rosenthal 1997), parties help solve collective action problems for voters and social choice problems for legislators (Aldrich 1995). Translating mass preferences into governmental behavior is much more difficult absent this issue-bundling role of parties.¹ Voters rely on party cues in elections, and legislators rely on parties to avoid the “cycling” problem of choice in environments of multidimensional preferences (Shepsle and Weingast 1981).

On the other hand, party competition might provoke politicians to constrain democracy. The incentives for a party in government to stack the deck in its favor—by violating norms or changing the rules—are greatest when its

1. The behavioral analogue of this issue bundling is the concept of “constraint” from Converse 1964.

hold on power is marginal. An important argument from Frances Lee (2009) suggests that these incentives from competition for legislative majorities generate polarization through “partisan brinksmanship.” Indeed, much scholarly and journalistic ink has been spilled about this hyperpartisan brinksmanship, in which legislators oppose any proposal from the outparty, no matter how reasonable or minor, using any and all procedural means at their disposal to do so. The precipitous increase in the use of the filibuster in the U.S. Senate over the past two decades might reflect such incentives.

Yet there has been little extension of Lee’s theory to dynamics in democratic performance. Not only may parties facing intense competition use procedure to prevent outparty victories, they may have incentives to expand or contract democracy in their polity by manipulating the composition of the electorate or using the power of the state to hamper the ability of groups aligned with the outparty to organize and mobilize. We would not expect, for instance, the same attempts at manipulation in the 2000 presidential election in Florida were preelection polls suggesting George W. Bush would cruise to a landslide in the state.

In recent years, we have seen many examples of competitive elections for state government that may have gone the other way under different levels of democratic performance. The 2018 Florida gubernatorial election between Democrat Andrew Gillum and Republican Ron DeSantis was decided by only about 30,000 votes out of over 8 million cast for the two candidates. In the same election, voters approved a ballot initiative to restore voting rights to previously incarcerated felons after the completion of their sentence—newly enfranchising over one million Floridians.² Had such a law been in effect in the 2018 gubernatorial election, and given the predicted partisanship and turnout of the newly enfranchised Floridians, the winner would have plausibly been Gillum instead of DeSantis. Not only would this have installed a Democratic governor; it would have prevented the unified control of government that currently provides Republicans great opportunity to change policy in the state. By contrast, an uncompetitive party system in Florida would have very different incentives. Republicans in government would not have to worry that reinstating the franchise for ex-felons would flip crucial elections. The same could be said of the 2018 Georgia gubernatorial election, where Stacey Abrams lost a close race after a series of potentially consequential polling place closures

2. In 2019 the Republican-controlled Florida state legislature later passed legislation to preempt this reenfranchisement; the decision was upheld by the Florida Supreme Court in 2020.

(Niesse and Thieme 2019). With little outparty threat, by contrast, the solidly Democratic California state government is implementing felony enfranchisement after voters approved a 2020 ballot initiative.

North Carolina offers another potential case of competition influencing politicians' democratic incentives. Voter turnout in the state had been increasing throughout the 1990s and 2000s, and state legislative and gubernatorial elections were growing increasingly close as the southern state transitioned from being a member of the "Solid" South toward a more competitive party system and status as a swing state in presidential elections. In a rare sweep in this competitive climate, the state's new unified Republican government began implementing a series of changes to election policy beginning in 2011 that weakened democracy in the state.

The Role of Polarization

While the prospect of the outparty taking power may give politicians incentives to expand or contract democracy, it matters how deep the ideological disagreements are between the parties. As the parties become more polarized, with Democrats becoming more liberal and Republicans more conservative, the partisan stakes of holding power—and the cost of losing it—grow dramatically. Scholars have investigated a number of potential causes of elite polarization, including racial realignment (Schickler 2016), mass polarization (Abramowitz and Webster 2016), and changes in the interest group environment (Hacker and Pierson 2010; Krimmel 2017). But regardless of its origins, the main idea here is that elite polarization, by deepening the divide between the parties' policy agendas, gives parties greater incentive to ensure that they win and their opponents lose. These strong incentives could lead the parties in government to look for new ways to influence the cost of voting in elections for different groups in their states.

As Robert Lieberman and colleagues (2019, 471) argue, "hyperpolarization magnifies tendencies for the partisan capture of institutions that are supposed to exercise checks and balances but may instead be turned into unaccountable instruments of partisan or incumbent advantage." It generates conflict about and within oversight agencies and the judiciary. It "erodes norms" of institutional behavior, such as the judicious use of executive power and fair treatment on issues such as bureaucratic and judicial appointments—and the levers of democracy itself (Levitsky and Ziblatt 2018).

Polarization may be asymmetric or symmetric (Hacker and Pierson 2005; McCarty, Poole, and Rosenthal 2006), but polarization is fundamentally about the *distance between the parties*. This distinction is helpfully illustrated in debates about the political causes of economic inequality. Measures of congressional polarization (e.g., the distance between each party's median legislator), as well as measures of the ideological position of just the median Republican in Congress, are both strongly correlated with economic inequality in the United States. Nolan McCarty, Keith Poole, and Howard Rosenthal (2006) argue that increased ideological distance between the parties produces legislative gridlock, which "in turn can affect the government's capacity to reduce inequality" (172). Neil O'Brian (2019a), on the other hand, suggests a simpler and more direct explanation for rising inequality is the rightward movement of the Republican Party. In this chapter, I similarly adjudicate between a polarization-centered and a Republican-centered explanation in democratic performance in the states.³

The Role of Demographics and Racial Threat

A third theoretical tradition suggests that the racial demographics of state populations shape politics and policy (Hero and Tolbert 1996). Of particular importance to this study is the potential for increasing racial diversity to generate "racial threat" and backlash among conservative white voters (Bobo and Hutchings 1996). As states grow more racially diverse due to immigration and internal migration,⁴ some voters might demand restrictions on democracy to block the political inclusion and empowerment of new voters of color (Abrajano and Hajnal 2015; Biggers and Hanmer 2017; Myers and Levy 2018). Importantly, not only would racial backlash lead to democratic backsliding on its own; if

3. As McCarty (2019, 12) defines them, "polarization generally refers to differences on policy issues, ideological orientations, or value systems, while . . . partisanship can be more general in that it may refer to any partiality one feels toward one's own party regardless of whether polarized preferences and attitudes are the source." Although the competition theory is more consistent with partisan incentives and the polarization theory with true ideological polarization, my analysis does not directly adjudicate between the distinct microfoundations of ideology versus partisanship.

4. During the time period under study in this book, Latino and Asian American population proportions increased in most states. Furthermore, the Black population of southern states increased as part of the "reverse" Great Migration since 1975.

demographic change leads voters to increasingly elect Republicans to state government, this theory predicts that the *interaction* of demographic change and Republican Party control should produce democratic backsliding.

Racial conflict within states, and corresponding conflict over redistribution, public goods, and political power, was central to Jim Crow (Mickey 2015). By contrast, today's racial conflict appears much more national, as observed in the Tea Party (Parker and Barreto 2014) and political rise of Donald Trump. In the next section, I outline a theory that again puts race at the fore but in a national rather than state or regional context. Critically, this nationally oriented theory takes into account the national Republican Party's racial *and* economic agendas.

The Role of Groups and Party Coalitions

The logics behind a competition-democracy relationship, a polarization-democracy relationship, or a demographic-democracy relationship are strong. An additional theory from Gretchen Helmke, Mary Kroeger, and Jack Paine (2021) offers a novel explanation for Republican attacks on democracy. The authors argue that a permissive legal environment that allows many forms of voter suppression and gerrymandering, combined with a highly sorted electorate that makes it easy to “target” suppression on particular constituencies (e.g., based on urban density or the location of African American voters), would lead us to predict that the Republican Party will asymmetrically contribute to democratic backsliding.

These theories so far, of competition and polarization—and especially Helmke, Kroeger, and Paine's (2021) theory of legal leeway and electoral sorting—are compelling. But an alternative theoretical tradition offers an even simpler explanation for dynamics in democratic performance. This tradition focuses on the configuration of *interests* within party coalitions. Some interests in society stand to lose (or at least not win as much) by ceding control over the levers of government to a wider circle of people. Economic elites and large business interests may see greater amounts of wealth or profit redistributed to the masses.⁵ Groups in favor of racial or gender hierarchies do not wish to expand voting and other participatory rights to African Americans and women. This theory is historically bounded. In contrast to theories

5. The Founders explicitly cited this protection of “property” as a justification for counter-majoritarian institutions in the Constitution (see, e.g., Beard 1913; Dahl 2003).

that “drop the proper nouns,” here our theory leads me to a specific focus on the Republican Party and the historical processes that led to its modern group coalition.

This theory applied to the modern Republican Party is closely related to what Jacob Hacker and Paul Pierson (2020, 19) call “plutocratic populism”:

Plutocrats fear democracy because they see it as imperiling their economic standing and narrowly defined priorities. Right-wing populists fear democracy because they see it as imperiling their electoral standing and their narrowly defined community. These fears would be less consequential if they were not packaged together within one of the nation’s two major parties.

Rising economic inequality, which puts the economic interests of plutocrats at odds with those of an increasingly large majority of voters, weakens the wealthy’s commitment to democratic institutions. It also means that the plutocratic coalition cannot simply appeal to its electoral base on economic and policy grounds. Instead, it must reach out to right-wing populists with appeals based on ethnoracial, religious, and national identity cleavages. (Indeed, parties that pursue the economic interests of a narrow slice of society in a democratic system need an agenda that is at least somewhat popular, hence right-wing populism.) Donald Trump, himself, provides a clear example of this process. Republican elites dislike many things about Trump, but they very much enjoy that he mobilizes voters and signs high-end tax cuts. Trump, on the other hand, has little in the way of a policy agenda outside of enriching his family, general anti-immigrant rhetoric, and, for lack of a better phrase, “owning the libs”;⁶ he is a vehicle that allows plutocrats to more effectively partner with voters who enjoy his appeals to right-wing populism.

The most consequential forms of right-wing populism, both historically and in the contemporary United States, are, of course, based in racism. Slave owners and, later, wealthy white landowners and businessmen stood to lose from solidaristic interracial movements and made efforts to attract poorer whites into their political coalitions with the enticement of a “psychological wage” based in their position above Black people in the racial hierarchy (DuBois 1935). On the other side of this struggle, civil rights activists such as Martin Luther King Jr. and Bayard Rustin, as well as labor leaders such as A. Philip Randolph and Walter Reuther, emphasized the linkages between race, class,

6. Ahler and Broockman (2017) provide evidence that to the extent Trump support is related to policy views, it is on the issue of immigration.

and democracy, arguing that powerful interests exploit racial divisions for political gain (Frymer and Grumbach 2021).⁷ Although psychological racism is pervasive in the American public and historical moments of interracial solidarity have been rare,⁸ major *shifts* in how racism affects politics and policy require additional mechanisms, such as entrepreneurial elites who strategically exploit mass racism.

Indeed, political candidates and elites in the contemporary period have made racial appeals that tap racism in the mass public (e.g., Mendelberg 2001; Hutchings and Jardina 2009; Haney-López 2015), and these racist attitudes are associated with reduced support for democratic institutions (Miller and Davis 2021). Elites can similarly “racialize” policy in many contexts, as is especially prominent in the politics of welfare (Gilens 2009; Brown 2013) and health care (Tesler 2016, chap. 5). Republican-aligned elites seized the opportunity presented by the presence of the first Black president. Despite Barack Obama’s avoidance of racial discussion and consistent promotion of Black respectability politics (Gillion 2016; Stephens-Dougan 2016), his presidency, rather than signaling the emergence of a “post-racial America,” was met with a Republican Party that made gains by radicalizing on issues of race and immigration (Parker and Barreto 2014). In the contemporary period, elite racial appeals and frames are facilitated by a sophisticated conservative media ecosystem that consolidates the mass elements of the Republican Party (Martin and Yurukoglu 2017; Martin and McCrain 2019). Other commentators have focused instead on the forces of “tribalism,” a psychological process in which people hunker down into identity groups in a (real or perceived) zero-sum conflict with outgroups (Fukuyama 2018; Chua 2019). The rise of this “tribalism” has also been employed as evidence of the dangers of democracy and the benefits of elite rule (Geltzer 2018). An argument from a very distinct political tradition, but one that is similarly “bottom-up,” comes from scholars who consider psychological proclivities toward white supremacy (or, more narrowly, anti-Blackness) to be an existential feature of human civilization. Historical ebbs and flows of

7. As Martin Luther King argued, “The coalition that can have the greatest impact in the struggle for human dignity here in America is that of the Negro and the forces of labor, because their fortunes are so closely intertwined” (“Letter to Amalgamated Laundry Workers,” January 1962).

8. The *New York Times*’ “1619 Project” surmises that “for the most part” Black Americans “fought alone” in their struggle for justice (available from <https://www.nytimes.com/interactive/2019/08/14/magazine/1619-america-slavery.html>).

“tribalism,” however, are difficult to explain with a primary focus on the evolutionarily derived wiring of the *Homo sapien* brain. While the context of demographic trends and the first Black president may have been necessary conditions, the recent racial radicalization of the GOP appears centrally about the elites who help to activate latent mass racism by stoking racial threat and resentment.⁹

Finally, the plutocratic-populist partnership is viable in the contemporary period because of the institutional and human geography of the United States, where Republican votes “count” more than Democratic votes due to Republican voters’ geographic dispersion across legislative districts and prevalence in small states. This long-standing electoral advantage for more geographically dispersed voters is distinct from gerrymandering, where governments redraw district lines to create electoral advantage. Instead, in plurality electoral systems like that of the United States, geographic clustering, or what Jowei Chen, Jonathan Rodden, and colleagues (2013) call “unintentional gerrymandering,” creates premiums or penalties by differing rates of “wasted” votes—an issue that became more politically consequential as the Democratic electoral base grew increasingly urban in the late twentieth century (Rodden 2019, chap. 1). Wasted votes are any votes beyond what it takes to win the election, 50 percent plus one in a two-candidate contest. The geographic dispersion of voters by party can be formally modeled to predict the legislative seat premium or penalty for a given party (Calvo and Rodden 2015).

The GOP has the geographic opportunity—based in patterns of slave and free state borders, among other deep historical roots—to win state and federal elections with a nearly all-white base.¹⁰ While any party might be theoretically advantaged under an alternative geographic distribution of voters, in the United States, the party more supportive of racial hierarchy has tended to be more geographically dispersed and thus advantaged by electoral geography in a competitive two-party context (Calvo and Rodden 2015). This modern geography is the result of long-term political-economic patterns of Indian removal (Frymer 2017), the slave plantation economy (Rothman 2005), and, in

9. Indeed, even sophisticated, systematic behavioral studies into the mass public’s support for democratic principles in the contemporary period, such as whether beliefs about democracy influence voting decisions (Graham and Svobik 2020), do not disentangle the roots of shifts in democratic outcomes over time.

10. The only Republican presidential candidate since George H. W. Bush to win the popular vote, George W. Bush in 2004 won 4.4 percent of the Latino vote.

TABLE 8.1. Theories of Democratic Expansion and Contraction in the States

Theory	Measures	Predicted Effect on Democracy
Competition	Competitiveness of elections or legislative majority	+ or –
Polarization	Distance between party legislative chamber medians	–
Racial Threat	Change in state % Black and % Latino	–
Party	Republican control of government	–

the twentieth century, the rise of suburbanization and its interaction with race (Self 2005; Kruse 2013; Trounstein 2018)—which have combined to make white votes more pivotal in recent elections.¹¹

Under this theory, the coalitional partnership between plutocrats and voters motivated by white (and related cultural) identity politics,¹² buttressed by electoral geography, leads to a clear prediction: Republican control of government will be democracy-reducing.

Table 8.1 summarizes the predictions of the four major theories of democratic dynamics that I test in this chapter.

Methods

Empirically Testing Competing Theories of Democracy

Which theory best explains the dynamics of democratic performance? Although institutional and partisan changes are very much not assigned randomly, the theories offer distinct predictions—predictions that may be consistent or inconsistent with real-world outcomes in the states. I follow other empiricists who test the competing predictions of major institutional theories in American politics, such as those of the party cartel and ideological pivot models (Schickler 2000, 2001). I collect empirical time-series measures of the inputs for the partisan, ideological, and competition theories.

11. Despite headlines about a “big sort” of Americans into ideologically homogeneous communities (Bishop 2009), there is a large body of evidence that residential choices are constrained and dominated by non-ideological preferences (Mummolo and Nall 2017; Martin and Webster 2020). Current geographic dispersion and “unintentional gerrymandering” are mostly not the result of residential sorting.

12. I do not wish to downplay the importance of gender, sexuality, religion, and even cultural identities such as being a gun owner to mass attitudes. They are important in their own right and in their interaction with beliefs about race (Filindra and Kaplan 2016).

I use a variety of measures of partisan competition and polarization in the states. Some of the competition measures address the share of a state's legislative seats. Specifically, I use data on legislative seat shares from Klarner (2013) to code *lower chamber competition* as $|0.5 - D_{lower}|$ where D_{lower} is the two-party share of lower chamber seats held by Democrats, and *upper chamber competition* as $|0.5 - D_{upper}|$ where D_{upper} is the two-party share of upper chamber seats held by Democrats. An additional measure from O'Brian (2019b) captures competition for the state electorate as a whole: *electoral competition* is coded as $|0.5 - D_{votes}|$ where D_{votes} is the two-party share of votes in the state's U.S. House election(s) that went to Democratic candidates.¹³ As is customary, these measures are smoothed into rolling averages across three election cycles (e.g., Ranney 1976; Shufeldt and Flavin 2012), but I lag them in statistical models such that they capture electoral competition in the three previous election cycles prior to the state's democratic performance in year t . Legislative polarization measures are from Shor and McCarty 2011. I use the distance in the parties' legislative chamber medians within each state. Party control of government captures whether a state government is under unified Democratic, unified Republican, or divided governmental control. (For clarity, these independent variables are all standardized to have a mean of 0 and a standard deviation 1.)

I test theoretical predictions with a difference-in-differences design that asks whether within-state change in polarization, competition, or party control is associated with within-state change in democratic performance. While the true causal model between competition, polarization, party control, and democratic performance is likely to involve a structure of highly complex feedback relationships, this design eliminates time-invariant differences between states—the main potential source of bias in estimating the relationship between our input measures and democratic performance.

In the next section, I exploit variation within states across time to more rigorously test the hypotheses about dynamics in democracy.

Results

I present the main results in table 8.2. The results of Models 1 through 3 show that, on their own, there is a modest positive relationship between competition and democracy and no relationship between polarization and democracy—but

13. O'Brian (2019b) collected vote-share data from David and Claggett 2008 and CQ Press's Voting and Election Collection.

TABLE 8. 2. Explaining Democratic Expansion and Contraction in the States

Outcome: State Democracy Score	Model 1	Model 2	Model 3	Model 4	Model 5	Model 6	Model 7
Competition	0.187 (0.104)			0.159 (0.096)	0.182 (0.095)	0.157 (0.102)	0.120 (0.110)
Polarization		0.016 (0.125)		0.023 (0.112)	0.036 (0.104)	0.025 (0.120)	0.027 (0.114)
Republican			0.443** (0.154)	-0.427** (0.151)	-0.417** (0.154)	-0.426** (0.147)	-0.459** (0.176)
Competition × Polarization					0.081 (0.064)		
Polarization × Republican						-0.011 (0.187)	
Competition × Republican							0.120 (0.199)
Constant	-0.785*** (0.065)	-0.762*** (0.111)	-0.617*** (0.087)	-0.620*** (0.127)	-0.629*** (0.128)	-0.619*** (0.131)	-0.617*** (0.127)
State FEs	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Year FEs	Yes	Yes	Yes	Yes	Yes	Yes	Yes
N	833	833	833	833	833	833	833
R-squared	0.712	0.705	0.727	0.732	0.733	0.732	0.733
Adj. R-squared	0.687	0.680	0.704	0.708	0.709	0.708	0.709

** $p < .01$; *** $p < .001$

a large negative relationship between Republican control and democracy in the states. Across the model specifications, the effect of Republican control of government is between 0.4 and 0.5 standard deviations of democratic performance, a substantial amount. The effect of competition, by contrast, is between 0.1 and 0.2 standard deviations, and the effect of polarization is near zero.

I am also interested in the interactions of competition, polarization, and Republican control. Polarized parties (or the Republican Party) might only have an incentive to restrict democracy in competitive political environments. However, the results in table 8.2 suggest that these interactions do little to explain dynamics in state democracy. The interaction of competition and polarization is modestly positive, as is the interaction of competition and Republican control—both contrary to expectations (though all of the interaction coefficients are statistically insignificant).

Due to recent concern about the weighting of treatment estimates in multiperiod difference-in-differences analysis using two-way fixed effects (Goodman-Bacon, forthcoming), I use alternative aggregation procedures to estimate the average treatment effect on the treated (ATT) of Republican control.¹⁴ In figure A.4, I plot the results from three different types of ATT aggregation from Callaway and Sant’Anna (forthcoming): dynamic, group, and simple (group-time). In addition to using different aggregation procedures, the model drops states that were “treated” (i.e., under Republican control) in the first period, the year 2000.¹⁵ The results are robust (and even larger) when using a generalized synthetic control estimator that creates synthetic control units as a weighted average of the “real” control units in order to match the pretreatment democratic performance of states that will later be “treated” by Republican control (Xu 2017). This robustness check relaxes the parallel trends assumption of difference-in-differences analysis and gives me greater confidence that the results are not due to states trending downward in democratic performance before becoming Republican.

14. Specifically, two-way fixed-effects specifications are a weighted average of all possible two-period difference-in-differences estimators, which is vulnerable to bias if treatment effects vary across time in multiperiod designs.

15. In the Callaway and Sant’Anna (forthcoming) setup, treatment cannot switch back off once it is on. In turn, I assign a state that switches to Republican control a new unit fixed effect once it switches back to divided (or Democratic) control. The results are robust to excluding these state-years.

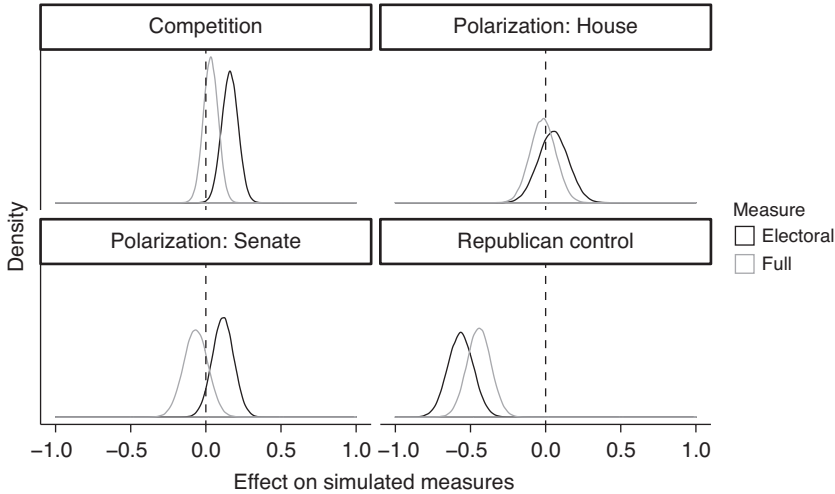


FIGURE 8.1. Effect of Republican Control on Simulated Democracy Measures.

The measures of competition, polarization, and party control that I use in this chapter are generally standard and uncontroversial, but the democracy measure is novel. Readers may be skeptical or have normative and theoretical reasons to weight particular democracy indicators differently than the equal weighting in the additive indices and data-driven weighting in the factor analysis measures. To assuage this concern, I simulate 100,000 measures using randomly generated weights between 0 and infinity for each democracy indicator, each simulation recalculating an additive index and then running the difference-in-differences hypothesis test. Figure 8.1 plots the distribution of coefficient estimates for the tests using each of the 100,000 simulated measures.

Figure 8.1 increases my confidence in the main results presented earlier. Large proportions of coefficients from the hypothesis tests on the simulated measures are close to zero for the competition and polarization measures (an exception is competition's effect on simulated Electoral Democracy measures, which are consistently positive but modest). By contrast, Republican control of government has a large negative effect on democratic performance across the many simulated measures. The results, in other words, are robust to many, many different weighting schemes for the democracy indicators—and many different ways of quantitatively operationalizing the concept of democracy.

Overall, the results point to the importance of the structure of the modern Republican Party coalition. The racial geography of the modern United States allows the GOP to win elections at the state and national level with an

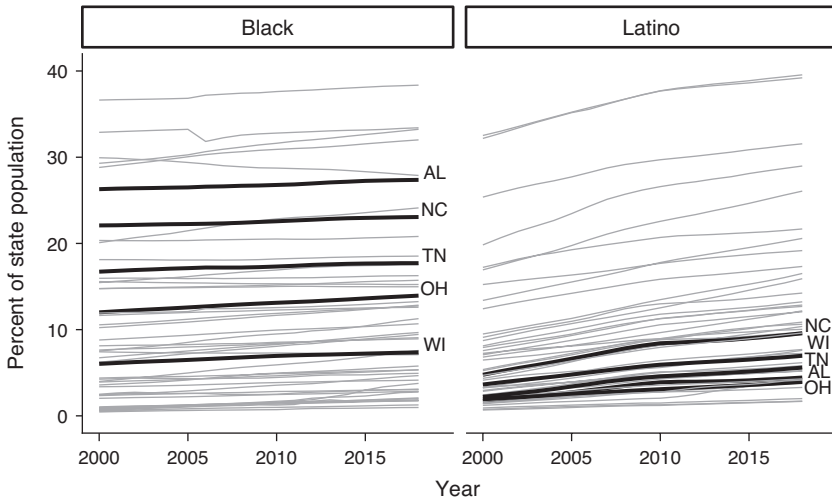


FIGURE 8.2. Black and Latino Population Change in the States.

overwhelmingly white and mostly male base outside of urban areas. This coalition, in most cases, will see potential gains from democratic contraction—from restricting protest activity, from making it more difficult to vote, even from incarcerating greater numbers of people.

Racial Demographic Change and State Democracy

In this section, I turn to the analysis of racial demographic change and its interaction with competition, polarization, and Republican governance. I first assess descriptive trends. Figure 8.2 plots Black and Latino population change in the five states that experience the greatest democratic backsliding over the time period: Alabama, Ohio, North Carolina, Tennessee, and Wisconsin. These states tend to have above-average Black population shares but see little change over time. By contrast, these states have relatively low Latino population shares. Their Latino populations grow gradually over this time period. However, this amount of growth is not out of the ordinary; the trends in these states closely track national averages. This descriptive analysis provides little evidence that local Black or Latino population change matters much for state democratic performance.

Table 8.3 tests theories of demographic threat with my main difference-in-differences design. The results are consistent with the descriptive analysis: trends in racial population proportions have little effect on state democratic

TABLE 8.3. Racial Demographic Change and State Democracy

<i>Outcome: State Democracy Score</i>				
	Model 1	Model 2	Model 3	Model 4
Δ % Black	-0.0001 (0.003)	-0.001 (0.003)	0.0005 (0.005)	0.001 (0.003)
Δ % Latino	-0.001 (0.003)	0.0001 (0.0003)	-0.0004 (0.004)	-0.004 (0.003)
Competition		0.274 (0.140)		
Polarization			0.028 (0.177)	
Republican				-0.720** (0.221)
Δ % Black $\times$ Competition		0.001 (0.004)		
Δ % Latino $\times$ Competition		-0.002 (0.002)		
Δ % Black $\times$ Polarization			0.001 (0.003)	
Δ % Latino $\times$ Polarization			-0.001 (0.002)	
Δ % Black $\times$ Republican				-0.004 (0.004)
Δ % Latino $\times$ Republican				0.007* (0.003)
Constant	-0.747*** (0.168)	-0.757*** (0.167)	-0.757*** (0.164)	-0.388* (0.179)
State FEs	Yes	Yes	Yes	Yes
Year FEs	Yes	Yes	Yes	Yes
<i>N</i>	833	833	833	833
R-squared	0.705	0.713	0.705	0.734
Adj. R-squared	0.680	0.687	0.679	0.710

* $p < .05$; ** $p < .01$; *** $p < .001$

performance. Furthermore, while Republican control still has a large negative effect on democratic performance, the interaction of Republican control and demographic change matters little. Unexpectedly, the one statistically significant coefficient involving demographic change is the positive coefficient for the interaction of Republican control and Latino population change, meaning

that Republican states with greater Latino population growth reduce democratic performance slightly less than other Republican states (though with a coefficient of 0.007, this effect is extremely small in magnitude).

These findings suggest that racial politics *within states* are not central to dynamics in state democracy.¹⁶ This does not mean that race is peripheral to dynamics in state democracy. On the contrary, they highlight the importance of *national* political conflict, which, especially at the mass level, is dominated by conflict over race (Parker and Barreto 2014; Sides, Tesler, and Vavreck 2019). A number of important studies show evidence of racial threat and contestation at highly localized levels (e.g., Enos 2017). But in an era of highly nationalized American politics (Hopkins 2018), when it comes to state governmental choices over democratic institutions, the key question is not about racial politics within a state but whether the state government is part of the national Republican Party.

Conclusion

Despite the national focus of much public discourse about American governance, the states have been a central arena of conflict over democratic contraction and expansion in recent years. Whereas the national government standardized and flattened policies through the New Deal and civil rights periods of the mid-twentieth century, states have more recently become increasingly socioeconomically important policymakers in areas such as health, welfare, and taxes, as we saw in chapter 3. In this chapter, I argue, states are also profoundly shaping the very gears and levers of democracy itself.

This chapter focused on the direct incentives facing elites from competition, polarization, and group coalitions. But these three mechanisms are themselves shaped by forces such as ideology, social movement activity, and the structure of identity in society. Can mass beliefs about democracy be a primary cause of its expansion? Some comparative studies suggest that mass support for democracy can lead to its expansion (Welzel and Inglehart 2006; Welzel 2007), and there is some evidence of policy responsiveness to mass

16. This book's focus on within-state change is also the reason its findings about racial demographics differ from those of Biggers and Hanmer (2017), who find that the interaction of Republican control with percent Black or Latino is associated with the implementation of voter ID laws. This chapter's difference-in-differences design suggests that *change* in demographics is not a relevant factor, whether on its own or interacted with Republican control.

ideology at the state level (Erikson, Wright, and McIver 1993; Caughey and Warshaw 2018). One strand of race and ethnic politics research points to racist attitudes in the mass public, which then produce racist violence and hierarchy, as the primary obstacle facing democracy (e.g., Gordon 1995; Douglass and Wilderson 2013), leaving little room for elites or organizations. However, this book leans toward the view of other cross-national research that suggests elites must also accept democracy for it to succeed (e.g., Linz, Stepan, et al. 1996).

A longer historical timeline would allow for the testing of additional mechanisms. In addition to party competition, Keyssar (2000, xxi) points to causes of democratic expansion that were more prominent in the nineteenth and early twentieth centuries, such as “frontier settlement,” “the growth of cities and industry,” “class tensions,” and war.

In the contemporary period, however, the results are overwhelmingly clear—and concerning. The results of this analysis point to the Republican Party as the antidemocracy coalition in American politics and state governments as a key venue in which they are pursuing their goals. Pointing squarely at the GOP—naming names—is not common in American politics research or journalism. (It is easy to find headlines in which “counting votes” and other banal democratic processes are framed as “wins for the Democratic Party.”)¹⁷

The force of Duverger’s law has kept the United States a two-party system, and it will continue to do so absent radical change to electoral institutions—all the more concerning that one of the major parties is interested in weakening democracy.

17. “A federal appeals court on Tuesday upheld a six-day extension for counting absentee ballots in Wisconsin’s presidential election, handing Democrats a victory in their fight.” Scott Bauer, “Court Upholds Wisconsin Ballot Extension, Hands Dems a Win,” Associated Press, September 29, 2020, <https://apnews.com/article/election-2020-joe-biden-wisconsin-elections-courts-39646260cd6574be6a4d671301c0d7a4>.

9

Conclusion

IN THE PRECEDING CHAPTERS, I have argued that the nationalization of the Democratic and Republican party coalitions increased the importance of state-level policymaking in American federalism. The evidence I presented suggests that this state policymaking—whether it is in the area of health policy, the environment, or the rules of American democracy itself—has been driven by national groups with national concerns rather than the localized incentives that animate traditional theories of federalism. The nationalization of the parties has upended the role of states as “laboratories of democracy” that customize policy based on local conditions, converting Republican states in particular to laboratories *against* democracy.

This chapter speaks to the broader implications of this transformation of American federalism. I review the empirical findings presented earlier and consider the still accelerating resurgence of the state level—and what it might mean for the future of American politics. In particular, I discuss whether the recent progress in some states on issues like climate and health policy suggests that the state level can be a viable route to generate positive policy feedbacks and broader change in support of the public interest. I discuss how American federalism’s decentralized institutional structure decentralizes accountability, as we saw in the Covid-19 crisis. I conclude that such examples of policy successes should not detract from the broader idea that the state level is disadvantageous for groups seeking policy change on behalf of diffuse interests, including the interests of Americans marginalized by race and class, and leaves the United States vulnerable to democratic backsliding.

I conclude with policy recommendations based on the insights of this research. Groups and policymakers should not neglect the state level when it is the best (and, sometimes, only) viable political venue, and they should be attentive to the potential for policy feedbacks in state policy design. Policy

feedbacks, when policy affects future politics, can propel local and state movements and agenda items to the national level. Still, groups and movements that represent diffuse interests should, when possible, pursue institutional changes that centralize policy and reduce the role of lower levels of government over the long term. Specifically, this might involve an expansionary fiscal federalism with greater use of automatic fiscal stabilizers for state and local governments during downturns and greater centralization of public benefits provision. Even more crucially, this would involve centralizing democratic institutions, from election administration to national enforcement against gerrymandering and election subversion.

An Accelerating Shift to the State Level

Florida had long disenfranchised ex-felons. But in 2018, after decades of political pressure, voting rights activists succeeded in putting Amendment 4 on the ballot. As a “tough-on-crime” state in which it is easy to become a felon (releasing helium-inflated balloons is a third-degree felony in Florida), the initiative had the potential to grant voting rights to 1.4 million Floridians—10 percent of the state’s adult population, including nearly 22 percent of Black adults. In a massive victory, 65 percent of the Florida electorate voted in favor of Amendment 4 in the November 2018 election.

As the 2020 election approached, however, the state government of Florida took a page from the Jim Crow playbook. In 2019, the Republican-controlled legislature passed a bill requiring felons to pay “all fines and fees” before being granted their voting rights, closely related to southern states’ poll taxes in the pre–civil rights period. But the similarities to Jim Crow voting laws went further. Journalists found that hundreds of thousands of ex-felons could not find out how much they owed in fines and fees due to Florida’s decentralized and arcane system of administering court fees and sentence-related debts. Many old debt records were written on index cards buried deep within county offices.¹ Ex-felons faced not only a poll tax but one that was so opaque that it was nearly impossible to pay.²

1. <https://www.cbsnews.com/news/amendment-4-florida-felony-voting-rights-60-minutes-2020-09-27/>.

2. State governments across the country took similar steps aimed at reducing voter turnout. A month before the 2020 election, Texas governor Greg Abbott announced that the state would only allow one drop-off location for mail ballots per county, making it more difficult to vote,

Florida's efforts to keep formerly incarcerated people from voting, and so many other attacks on democracy over the past decade, are not simply the result of the emergence of a coalition with antidemocratic interests. Most democracies around the world are home to some group, and probably a powerful one, that would prefer that their society be a bit less democratic, whether the goal is to diminish the power of ethnic or religious minorities or prevent the masses from redistributing their wealth. But in the United States, an antidemocratic coalition took advantage of a decentralized federal institutional structure. This peculiar institutional terrain allowed them to capture a number of states, where they not only made major economic and social policy changes but shifted institutional rules to give them an advantage throughout the American political system.

Indeed, there is a pattern in American history: when state governments have wide policy leeway and there is wide policy variation across states, American democracy tends to suffer. The United States of the 2020s is one of those periods. A conservative majority on the Supreme Court is poised to overturn *Roe v. Wade*, invalidate major national policies like the Affordable Care Act, and make it easier for states to gerrymander their districts and suppress votes. In doing so, they would remove national standards that all states must meet—requirements that health insurers that operate in the state cover preexisting conditions, that a state's coal plants limit their emissions, and much more. If *Roe* is overturned, some states, mostly those controlled by Republicans, could implement state laws that criminalize abortion. Other states, mostly divided or Democratic, will maintain or even expand access to abortion services. These cases will accelerate the trends that are making the state level *the* central policy battleground of American politics.

Some blue state observers may not expect the accelerating resurgence of state politics to affect them. After all, the Supreme Court won't criminalize abortion in California or force New York to allow health insurers to exclude people with preexisting conditions. Moreover, during this period of resurgent state policymaking, liberal states have implemented major policies. Coastal states implemented cap and trade systems and increased vehicle fuel efficiency standards; liberal states raised their minimum wage and taxes on

especially in the state's more urban counties. Kaelan Deese, "Texas Governor Orders Only One Mail Ballot Drop-off Location Allowed per County," *The Hill*, October 1, 2020, <https://thehill.com/homenews/state-watch/519183-texas-governor-orders-only-one-mail-ballot-drop-off-location-allowed-per>.

high earners; more states expanded reproductive rights and protections for LGBT individuals.

The significance of these policy changes shouldn't be understated. But it is easy to overly focus on policy progress in some states while neglecting the question of whether, on average, the country would be freer, fairer, or more just if states had less authority in the American system. The resurgence of the state level as the central institutional battleground of American politics is not so simple. It doesn't mean that politics is simply transferred from the national level into fifty polities. It fundamentally changes the distribution of political advantages and disadvantages. Unlike ordinary voters and mass-based social movements, political actors with geographically mobile resources can strategically search for the most favorable time and place to influence politics. Wealthy individuals and large businesses can threaten to exit states in ways that working people cannot. And with state governments' constitutional authority over election administration, antidemocratic coalitions can establish a beachhead from which they can tilt the rules of the political system in their favor.

In the Trump era, moving authority from the national down to the state level might have sounded like a panacea. But this logic leads to unintended consequences. Indeed, by giving state governments new opportunities to gerrymander, suppress votes, and diminish the power of labor unions, the resurgence of policymaking at the state level may have helped Trump come to power in the first place. When combined with *national* political parties—a Democratic and especially a Republican Party that are nationally coordinated teams of interest groups and politicians—the huge constitutional authority that sits at the *state* level can unleash new threats to American democracy.

National Agenda Setters Turn to the States

State governments are playing a greater role in the lives of their residents. On the economic side, your state of residence matters much more for how much you are paid as a minimum wage worker, how much you pay in taxes as a millionaire, and how generous your welfare state is than it did a generation ago. On the social side, your state now plays a greater role in determining your ability to obtain an abortion, use marijuana, or own a gun.

Today, the correlation between state public opinion and state policy is stronger than it was a generation ago. But that doesn't necessarily mean ordinary voters were behind the major policy action in state governments of recent years. With few exceptions, state governments started to make major

economic and social policy changes while state public opinion remained mostly stable over time. It remains a possibility that even with stable opinion, other changes in voter attitudes or behavior helped to produce the resurgence of significant state policymaking. Another possibility, however, is that a more organized set of political actors is behind this transformation.

The new glue that would bind state and national politics, galvanizing and polarizing politicians and policy in the states, was partisan teams of activists, donors, and organizations. These groups' increasingly organized participation can be seen in their campaign contributions to state legislative candidates, as shown in chapter 5. They can also be seen in the growth of organizational networks bankrolled by extremely wealthy individuals (Page, Seawright, and Lacombe 2018, chap. 5; Hertel-Fernandez 2019).

Decentralized Accountability

It is not just that federalism is an advantageous system for concentrated and antidemocratic interests. Across the board, federalism weakens politicians' incentives to perform well. The multiplicity of overlapping political authorities makes it difficult to know which politicians to reward or punish for their performance.³ With little response from the Trump administration, the Covid-19 crisis provided a test case for whether Democratic state governments could marshal effective pandemic responses on their own.

In the early days of the pandemic, supporters of federalism celebrated state governments' leadership in the face of inaction from the feds. "Governors Leapfrog Feds on Coronavirus Response" (Povich 2020), read a report from the Pew Research Center. And for a moment in the late spring of 2020, Andrew Cuomo, in particular, was America's savior. Liberals eagerly tuned into the New York governor's morning press conferences, where their new hero reassured the country about the Covid-19 crisis and lambasted the federal response from the Trump administration. Cuomo's approval rating shot up to 77 percent in late April as he reached celebrity status.⁴ As political scientist Kathleen Hall Jamieson suggested, "a person from Mars observing the rhetoric and actions of our leaders would reasonably assume that Andrew Cuomo is the

3. Benedictis-Kessner (2018), for instance, shows that citizens' frequent misattribution of responsibility to the wrong level of government reduces accountability in the policy area of public transit.

4. <https://scri.siena.edu/wp-content/uploads/2020/04/SNY0420-Crosstabs.pdf>.

president” (quoted in Povich 2020). “My Boyfriend Andrew Cuomo’s New Girlfriend Is America,” read a *Marie Claire* headline.⁵ A viral *NowThis* piece carried the headline, “People Are Thirsting after Gov. Andrew Cuomo Right Now.”⁶ He would soon receive an International Emmy Award “in recognition of his leadership during the COVID-19 pandemic.”⁷

But lurking underneath the performative gravitas of Cuomo’s press conferences was the uncomfortable fact that New York State was not doing well. Covid-19 was wreaking havoc in New York City and throughout the state. About 30,000 New Yorkers had lost their lives to Covid-19 by June, more deaths than all but four countries on earth. It’s reasonable to say that for much of 2020, New York was not only the American epicenter but the world’s pandemic epicenter.

Some of the suffering was due to Cuomo’s own mismanagement. The governor was slow to issue a lockdown order for his state, engaging in an antagonistic back-and-forth dithering with New York City mayor Bill de Blasio. He cut public services, including public health through the state’s Medicaid program. Cuomo’s executive order on nursing homes expanded the pandemic’s damage.⁸ As late as July 2020, waits for Covid-19 test results were at least a week long, and contact tracing never quite got off the ground. A long-time opponent of criminal justice reform, Cuomo presided over a spreading epidemic in the state’s carceral system and resisted clemency cases. A plan to produce hundreds of thousands of gallons of New York State–branded hand sanitizer turned out to be a plan to have prisoners bottle imported hand sanitizer—a plan that had to be halted when the pandemic inevitably spread throughout the Clinton Correctional Facility. The notorious Rikers Island jail complex, where sixteen-year-old Kalief Browder had spent

5. Michelle Collins, “My Boyfriend Andrew Cuomo’s New Girlfriend Is America,” *Marie Claire*, March 26, 2020, <https://www.marieclaire.com/culture/a31945211/andrew-cuomo-hot/>.

6. Ashleigh Carter, “People Are Thirsting after Gov. Andrew Cuomo Right Now,” *NowThis*, March 27, 2020, <https://nowthisnews.com/news/people-are-thirsting-after-gov-andrew-cuomo-right-now>.

7. Marta Zielinska, “‘He Effectively Created Television Shows’: Cuomo to Receive Emmy for Daily Covid Briefings,” WCBS News Radio, November 20, 2020, <https://www.radio.com/wcbs880/news/local/cuomo-to-receive-emmy-award-for-leadership-amid-pandemic>.

8. Joaquin Sapien and Joe Sexton, “Andrew Cuomo’s Report on Controversial Nursing Home Policy for COVID Patients Prompts More Controversy,” *ProPublica*, July 10, 2020, <https://www.propublica.org/article/andrew-cuomos-report-on-controversial-nursing-home-policy-for-covid-patients-prompts-more-controversy>.

years in solitary confinement awaiting charges for theft, became the “epicenter of the epicenter.”⁹

So why was Cuomo so beloved despite such grand failures of governance? Some of it was the public’s justifiable desperation for the kind of clear rhetorical leadership that Trump eschewed. Some of it was just the usual politics of the polarized era: here was a prominent Democrat mincing no words in attacking Trump on a national stage. But some of this disconnect stems from federalism, the multilevel constitutional structure that gives authority to both the national and state governments.

Cuomo was able to deflect blame because federalism decentralizes accountability. This is not to say that his characterization of the federal government’s response as calamitous was inaccurate. The Trump administration had slow walked policy actions like securing PPP equipment, politicized disease testing, called for premature ends to state lockdowns, and downplayed the importance of safety measures like wearing masks.¹⁰ But Cuomo’s ability to point not only to another branch of his state government but to another entire level of government in a federal system protected him from political accountability. It’s hard to know how to distribute blame among the many executives and legislators in your local, state, and national government. When everybody is responsible, nobody is responsible.

Federalism may have also played a part in Cuomo’s own poor policy decisions in office. Powerful concentrated interests, such as the fossil fuel industry, have outsized influence in Congress and presidential administrations—but they may distort democracy even more powerfully at the state and local levels. This could be true of Cuomo’s New York government, for whom his opposition to criminal justice reform and taxes on the wealthy won praise from police unions and Wall Street.¹¹ Not only are concentrated interests influential in state politics, but compared to the national politics, voters aren’t paying much attention to the state level anyway.

9. Sonia Moghe, “Inside New York’s Notorious Rikers Island Jails, ‘the Epicenter of the Epicenter’ of the Coronavirus Pandemic,” CNN, May 18, 2020, <https://www.cnn.com/2020/05/16/us/rikers-coronavirus/index.html>.

10. The testing program of the Centers for Disease Control (CDC) proved disastrously flawed. Further issues between the CDC and the administration delayed crucial travel restrictions. In a controversial move, the Food and Drug Administration (FDA) approved the malaria drug hydroxychloroquine for Covid-19 treatment but then had to reverse course.

11. Jimmy Vielkind, “The Governor of Wall Street,” *Politico*, October 28, 2014, <https://www.politico.com/states/new-york/albany/story/2014/10/the-governor-of-wall-street-000000>.

At the same time, federalism tied the hands of Cuomo and the state government of New York. Despite its wealth as a state, New York not only lacked the fiscal and monetary capacity to provide economic aid at an adequate scale but its constitutional balanced budget requirement forced it to make cuts to safety net programs (including Medicaid—again, during a pandemic). The state also faced the negative spillovers from other states' weak pandemic responses. Crowds of spring breakers reveling in unregulated Florida, where the Republican governor Ron DeSantis resisted “draconian” lockdowns through March,¹² soon traveled back north. Viral stories abounded of people crossing state lines to go shopping in areas without mask-wearing requirements. The control that federalism supposedly granted New York and other state governments over the pandemic response was in part illusory.

Give Up on the States?

My argument is not that the supporters of democracy and equality should give up on politics at the state level. Despite the advantages it provides for narrow and antidemocratic interests, it is probably the best institutional option available during periods in which the national government is divided or hostile. Indeed, with a federal government that is likely to be divided for a long while, states should do everything they can to respond to pressing social and economic challenges. States may not have the fiscal capacity to implement Medicare for All, but they can create a viable public insurance option. Many of the policies that fall under the Green New Deal banner, including renewable energy requirements and investments in clean transportation infrastructure, can be accomplished to some degree at the state level. Wealthier states can make their community colleges and public universities free. Universal preschool and pre-K, child allowances, and family leave policies—all are possible in the states. State governments can even establish wage boards to promote sectoral collective bargaining, which is common in European countries. And, of course, groups should continue to work in policy areas where states and cities have near-total authority, such as residential zoning, where restrictions on density and public housing have created a housing crisis in states like California.

But recognizing state governments as sometimes the last best option should not be confused with celebrating them as champions of democracy. If they are

12. Sam Dorman, “Gov. DeSantis Touts Florida’s Coronavirus Numbers over Democrat-Led States That Took ‘Draconian’ Measures,” Fox News, May 22, 2020, <https://www.foxnews.com/politics/ron-desantis-florida-covid-dem-states>.

implemented at the state level, the policies I just described will likely appear as much more constrained versions of what they could be at the federal level. Even very progressive state governments will (rationally) fear the exodus of businesses and wealthy residents if they raise taxes or regulate carbon too aggressively, regardless of what would be best for the long-term health of their economies and residents. Ordinary voters will have a difficult time monitoring state policy in the information-poor environment of state politics, and groups representing working people will be less able to maneuver political resources to the right states at the right time than their counterparts representing more concentrated interests.

Groups that care about democracy and justice should take advantage of the moments when they control the national government. They should, of course, use executive actions and congressional legislation to further their goals. But critically, *they should pursue institutional changes that reduce the role of lower levels of government over the long term.*

Policy Feedbacks

The Obama administration and Democratic congressional supermajority of 2009 and 2010 did not focus especially hard on reducing the role of the states. Their signature policy achievement, the Affordable Care Act, was vulnerable to a Supreme Court ruling that allowed state governments to avoid expanding their Medicaid programs. The Justice Department under Attorney General Eric Holder addressed issues of institutional racism in policing, including investigating the Ferguson Police Department after the killing of Michael Brown, but stopped short of forcing state and local authorities to change their behavior. (By contrast, the 2009 economic stimulus bill tied the hands of state authorities, forcing even oppositional governors to accept the federal funds.)¹³

On labor issues, the Democratic House and Senate never brought the Employee Free Choice Act (EFCA) up for a vote. This piece of legislation that would have allowed union certification upon obtaining signatures from a majority of workers—drastically reducing the effectiveness of right-to-work and other state policies meant to curb labor power. Economic research consistently finds that unions increase wages (Budd and Na 2000), improve working conditions (Ravenswood and Markey 2011), and reduce economic inequality (Farber et al. 2021)—but policies like the EFCA that facilitate

13. “South Carolina Governor Trumped, Must Take Stimulus Money,” CNN, June 4, 2009. <https://www.cnn.com/2009/POLITICS/06/04/south.carolina.sanford.stimulus/index.html>.

unions would also produce substantial policy feedbacks. Labor unions organize and turn out working-class voters, disproportionately for Democrats (Feigenbaum, Hertel-Fernandez, and Williamson 2018), but they have an even larger role in protecting small-d democracy. The American Postal Workers Union (APWU) and U.S. Postal Service (USPS), for instance, made the decision to deliver absentee and mail ballots in the 2018 and 2020 elections even when they were sent without proper postage stamps.¹⁴ More broadly, Paul Frymer and I (2021) found that labor unions reduce racial resentment among white workers (Frymer and Grumbach 2021). Labor union decline since the 1980s has opened up new opportunities for political elites to capitalize on racial and cultural conflict.

The story on climate change is nuanced, but federalism still presents a major obstacle. On the one hand, in her book *Short Circuiting Policy*, Leah Stokes (2020) has shown the potential for policy feedbacks from state-level initiatives that help incubate renewable energy firms, which then fight to preserve and expand environmental regulation (see also Trachtman, forthcoming). Yet while Stokes and others illuminate important mechanisms for climate progress under federalism, such an analysis does not address whether climate mitigation and adaptation would be farther along under a more nationally oriented political structure. Climate change activists have long worried not only that the polluting industry's threat of exit leads to a "race to the bottom," putting downward pressure on environmental regulation, but also that, akin to the "resource curse" in studies of international development, extractive and high-emission industries can capture state political systems—extracting natural resources, as well as economic rents (Goldberg, Wibbels, and Mvukiyehe 2008; Clay and Portnykh 2018). The challenges inherent in solving climate change through state-level policy are also related to those of the decentralized American welfare state.

Expansionary Fiscal Federalism

During the 1970s, Congress's Advisory Commission on Intergovernmental Relations (ACIR) developed policy proposals for using the federal government to support state and local governments during economic emergencies.

14. <https://www.theguardian.com/world/live/2020/apr/22/coronavirus-us-live-first-deaths-weeks-earlier-trump-cuomo-latest-news-updates?page=with:block-5ea0b2e58f084784dca58330#block-5ea0b2e58f084784dca58330>.

During downturns, automatic federal payments would kick in to maintain state-administered public services, like public schools. This and other ACIR plans for a more active federal role in state and local financing never got off the ground. In fact, Congress disbanded the ACIR itself in 1996.

While critical state-administered social programs like unemployment insurance and SNAP have built-in automatic stabilizers, the lack of comprehensive countercyclical federal policy for the states greatly exacerbated the catastrophe of the Great Recession. Nowhere is this clearer than public education, which relies on a combination of state and local property tax revenue. Public school employment was decimated during the recession and *never* fully recovered. In 2019, the year before the Covid-19 economic collapse put public education in an even deeper hole, there were over 300,000 fewer public school employees than there were in 2007.¹⁵

Because it relies in large part on state-level funding, even Medicaid, which by law contains a built-in federal stabilizer policy, suffers on the budgetary chopping block during economic downturns (precisely the moment when Americans need it most). States are, in many ways, just not set up to provide social programs that alleviate poverty or limit insecurity in any substantial way. Even when their voters might support it, state governments are reluctant to raise taxes for fear that large businesses and wealthy taxpayers will use their exit option. While economists describe the important role of Federal Reserve monetary policy in maintaining growth and limiting unemployment, state governments have no such monetary policy tools. Even more significantly, most state constitutions mandate balanced state budgets—essentially making it illegal for state governments to provide economic stimulus during downturns.

With decentralization of administration being a key tool for keeping the American welfare state hollow and unequally (especially racially unequally) distributed (Pierson 1995; Weir 2005; Katznelson 2013), a first best policy response would be to join other industrialized countries in creating a centralized welfare state. But plans for a more expansionary fiscal federalism, like those of the ACIR in the 1970s, can generate major improvements even while maintaining decentralized administration.

15. Quentin Fottrell, “Public-School Teacher Jobs Haven’t Recovered since the Great Recession,” *MarketWatch*, October 7, 2018, <https://www.marketwatch.com/story/there-are-still-fewer-public-school-teachers-than-there-were-before-the-great-recession-2018-10-05>.

Centralizing American Democracy

Even more importantly, those who wish to protect and expand American democracy should work to shift authority over elections and districting to the national level. There are many potential reforms in this area, such as expanding federal grants to state election administrators or creating an independent districting commission at the federal level. Lee Drutman and Charlotte Hill offer a particularly bold and promising reform: the creation of a Federal Elections Agency.¹⁶ (Currently, the Federal Election Commission regulates campaign finance, and federal regulation of election administration in the states is mostly confined to Department of Justice enforcement of the Voting Rights Act.) A Federal Elections Agency would set and enforce standards for election administration and security in the states through the provision of federal funds, coordination of voter registration data, and sharing of expertise. Like the Federal Reserve, the Federal Elections Agency would be designed to be politically independent, with commissioners who are unaffiliated with the parties and abide by strict conflict of interest policies.

The federal government should also take additional steps to block state laws that criminalize peaceful forms of political activity. In 2020, Governor DeSantis and Republican legislators in Florida proposed an “anti-mob” law that would create new felonies for crimes of participating in “disorderly assemblies” and “criminal mischief,” such as blocking traffic during a protest (for more on state legislation that restricts the rights of protestors, see Suh and Tarrow, forthcoming).¹⁷

Likewise, national authority may be necessary to curb institutional racism in American policing. State and local Democratic administrations have, for the most part, failed to make substantive reforms to the law enforcement agencies under their command. Social movements should continue to put pressure on state and local officials on this issue, but it might be more effective over the long term to support the U.S. Department of Justice or even Congress in investigating and reforming state and local agencies.

16. Lee Drutman and Charlotte Hill, “America Needs a Federal Elections Agency,” *New America*, 2020, <https://www.newamerica.org/political-reform/reports/america-needs-federal-elections-agency/>.

17. Ana Ceballos and David Ovalle, “DeSantis Pushes Expansion of Stand Your Ground Law as Part of ‘Anti-Mob’ Crackdown,” *Miami Herald*, November 10, 2020, <https://www.miamiherald.com/news/politics-government/state-politics/article247094007.html>.

State Government and American Democracy at a Crossroads

Any political actor who wishes to influence public policy must incorporate the reality of American federalism into their strategy. This includes, first, recognizing that the Constitution places massive authority at the feet of state governments—especially authority over democratic institutions like elections. In an era of nationally polarized parties, this means that party control of state government is highly consequential.

Before the November 2020 election, former U.S. attorney general Eric Holder lamented that when “Democrats didn’t focus on those state legislative races to the extent that we should have in 2010 . . . the 2011 redistricting went well for the Republicans and led to the gerrymandering that we have seen, and that has affected our politics over the course of this last decade.” Although it was not as bad as the “shellacking” of 2010, unfortunately for Holder and the Democratic Party, the 2020 election was not a smashing success at the state level. The Democratic Party will have to continue to work to build capacity in gubernatorial and especially state legislative elections. This will involve some of the more well-established strategies that haven’t yet been taken, like investing in and sharing national party resources with state and local party organizations (Schlozman and Rosenfeld 2019), the labor movement, and community leaders, and learning the lessons of conservative groups like ALEC (Hertel-Fernandez 2019). But it will also have to involve innovation in how to develop deep and durable—not episodic—engagement with communities that vary racially, economically, and geographically. There are signs of more durable organizing from groups like Indivisible and Sister District, as well as newer, more state-focused organizations like FutureNow.

At the same time, pro-democracy coalitions, whether partisan or nonpartisan, should use the power they gain at the national level to shift authority upward and away from the state level, where budgets are constrained, voters have less information, business and the wealthy can quickly flood political battles with money—and where threats to democracy continue to arise.

APPENDIXES

Appendix for Chapter 3

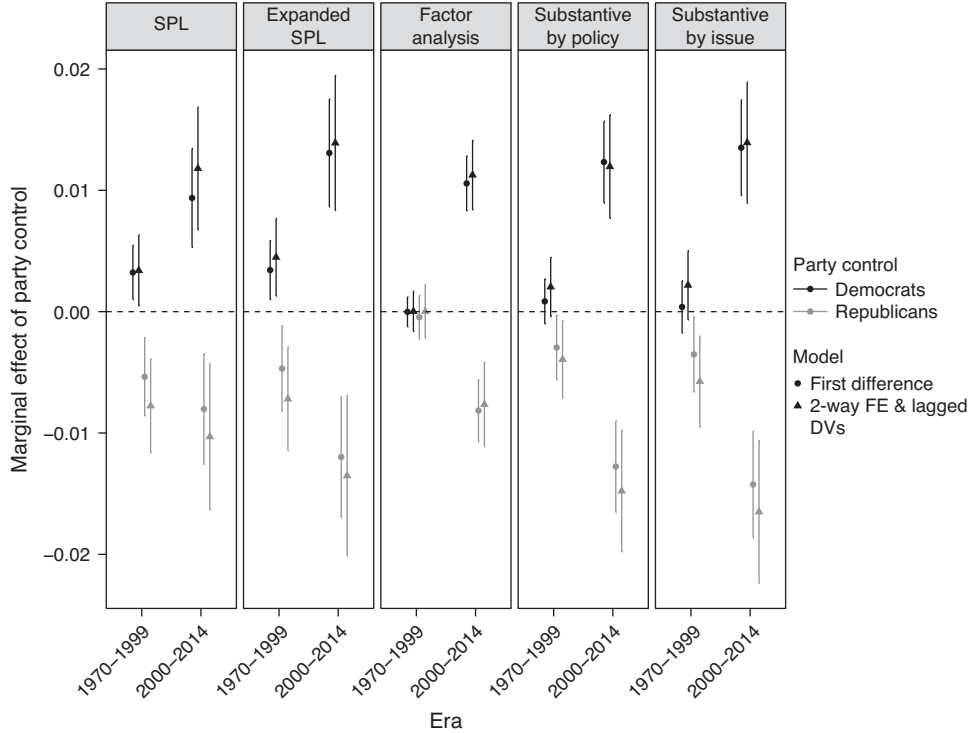


FIGURE A.1. Effect of Party Control on Left-Right Policy Outcomes.

Appendix for Chapter 4

TABLE A.1. Survey Data

Question	Source	Policy Area
Abortion legal	ANES	Abortion
Abortion legal	Gallup	Abortion
Abortion rape exception	GSS	Abortion
Abortion legal	GSS	Abortion
Equal employment for Black people	ANES	Civil Rights & Liberties
Affirmative action	ANES	Civil Rights & Liberties
Aid to Black people	ANES	Civil Rights & Liberties
Women equal role	ANES	Civil Rights & Liberties
Legal rights of accused	ANES	Criminal Justice
Support death penalty	Gallup	Criminal Justice
Support death penalty	GSS	Criminal Justice
Courts too harsh	GSS	Criminal Justice
Spending on public schools	ANES	Education
Environment thermometer	ANES	Environment
Spending to protect environment	ANES	Environment
Support gun ownership	GSS	Guns
Licenses for gun ownership	GSS	Guns
Assault weapon ban	Gallup	Guns
Government health assistance	Gallup	Health & Welfare
Government health insurance	ANES	Health & Welfare
Government spending on services	ANES	Health & Welfare
Spending on the poor	ANES	Health & Welfare
Spending on welfare	ANES	Health & Welfare
Spending on elderly	ANES	Health & Welfare
Childcare assistance	ANES	Health & Welfare
Spending on the poor	GSS	Health & Welfare
Government health assistance	GSS	Health & Welfare
Increase immigration	ANES	Immigration
Undocumented immigrant thermometer	ANES	Immigration
Labor union thermometer	ANES	Labor
Big business thermometer	ANES	Labor
Government support for employment	ANES	Labor
LGBT adoption	ANES	LGBT
LGBT in military	ANES	LGBT
LGBT anti-discrimination	ANES	LGBT
LGBT thermometer	ANES	LGBT
Legalize marijuana	Gallup	Marijuana
Legalize marijuana	GSS	Marijuana
Tax high incomes	GSS	Taxes

TABLE A.2. Myopic Partisan Learning

	1	2	3
Intercept	-5.317*** (0.242)	-5.325*** (0.243)	-5.317*** (0.242)
Same Party	0.082*** (0.009)	0.077*** (0.009)	0.076*** (0.009)
Δ Incumbent Legislature Vote Share $_{t-1}$	0.008* (0.003)		0.008* (0.003)
Δ Incumbent Governor Vote Share $_{t-1}$	0.002 (0.003)		0.002 (0.003)
Same Party $\times$ Δ Legislator Vote Share $_{t-1}$	0.032*** (0.008)		0.035*** (0.008)
Same Party $\times$ Δ Governor Vote Share $_{t-1}$	0.019* (0.008)		0.019* (0.008)
Δ Employment $_{t-1}$		0.012* (0.005)	0.015** (0.005)
Δ GSP $_{t-1}$		0.000 (0.004)	-0.002 (0.004)
Same Party $\times$ Δ Employment $_{t-1}$		0.017* (0.008)	0.022* (0.009)
Same Party $\times$ Δ GSP $_{t-1}$		0.046*** (0.001)	-0.047*** (0.001)
σ^2 Policy	2.631	2.640	2.631
σ^2 State $_i$	0.157	0.158	0.157
σ^2 State $_j$	0.133	0.130	0.133
σ^2 Year	0.180	0.181	0.180
N	4,748,959	4,948,509	4,748,959
Log-Likelihood	-460729	-479121	-460710
AIC	921478	958261	921448
Deviance	919865	956632	919827

Note: Multilevel logit coefficients with standard errors in parentheses.

* $p < 0.05$; ** $p < 0.01$; *** $p < 0.001$

Appendix for Chapter 6

TABLE A.3. Descriptive Statistics

Variable	Mean	Std. Dev.
Δ unemployment (State j)	-0.020	1.130
Income per cap. in \$1000s (State j)	36.020	7.370
Δ GSP in \$1000s (State j)	6115.080	26974.810
Δ incumbent gub. vote share (State j)	3.790	13.140
Δ incumbent leg. vote share (State j)	0.420	5.680

Appendix for Chapter 7

TABLE A.4. Correlations between Measures

	Electoral (Additive)	Electoral (Factor)	Full (Additive)	Full (Factor)
Electoral (Additive)	—	0.676	0.678	0.567
Electoral (Factor)	0.676	—	0.633	0.743
Full (Additive)	0.678	0.633	—	0.923
Full (Factor)	0.567	0.743	0.923	—

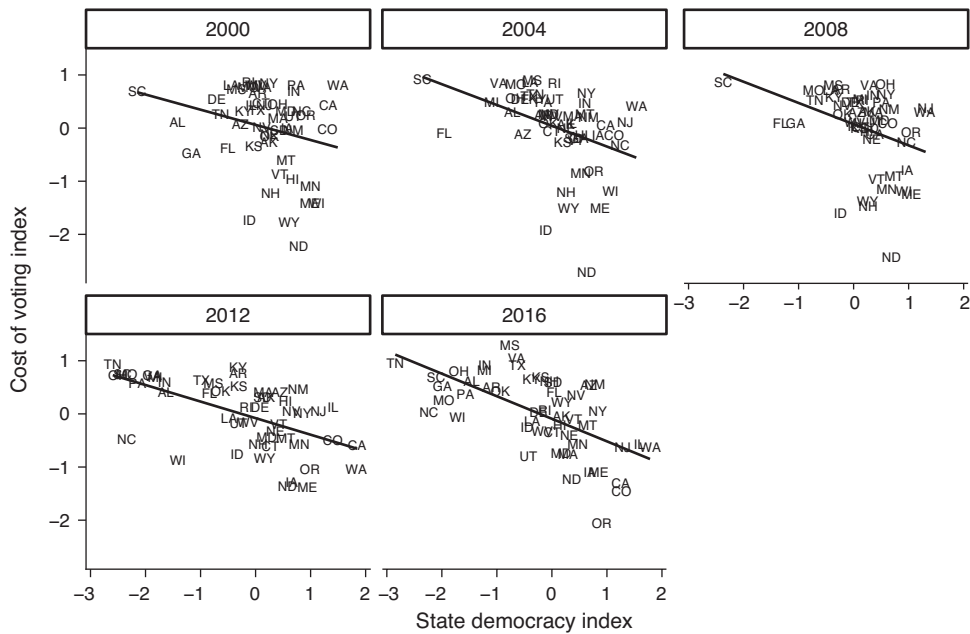


FIGURE A.2. Correlation with Cost of Voting Index.

The resulting measures are correlated with each other, as expected, but some of the relationships are quite moderate. The correlation coefficients between the main State Democracy Index measures and the broader measure range from 0.567 to 0.743, consistent with the idea that these measures tap into similar but somewhat distinct conceptualizations of democracy. In contrast, with the same set of over 100 democracy indicators going into them, the full State Democracy Index measures (additive and factor) are correlated at 0.923.

Appendix for Chapter 8

Descriptive Analysis of State Democracy

As a first cut, figure 8.1 plots the correlations between democratic performance and measures of party competition, polarization, and party control. These are time-series cross-sectional relationships: the model assesses how well the inputs explain variation in democracy across both states and time. Seeing the conditional relationships between the variables is helpful in determining whether, on average, more competitive or polarized states are more democratic (holding constant the other variables). However, because states vary tremendously in their baseline levels of democratic performance, these results should be considered descriptive.

The results of figure 8.1 are based on separate models for each of the four democracy measures, which vary on whether they are *Electoral* or *Full*, and whether they are based on *Additive* indexing or *Factor* measurement models. There is little association between partisan competition or polarization and democratic performance. The *Full* democracy measures show a small but significant negative correlation with competition; states with more competitive elections and narrow legislative majorities are slightly less democratic

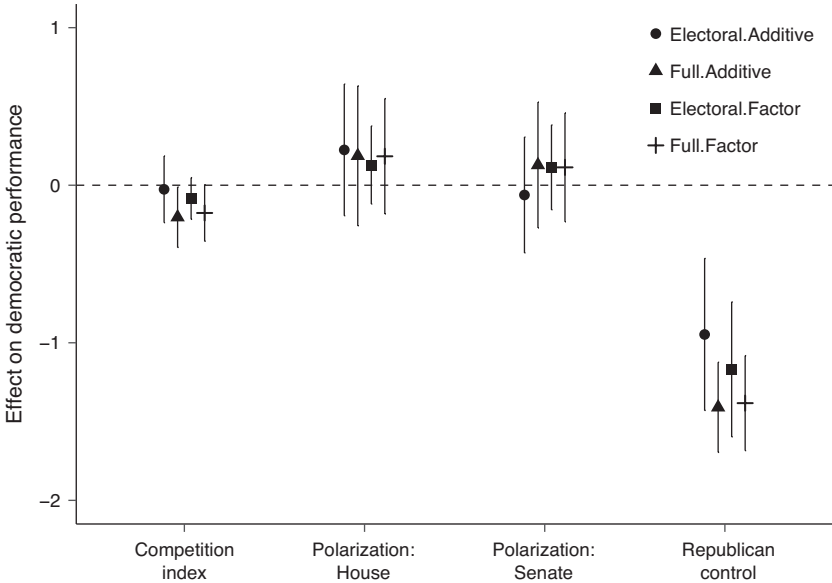


FIGURE A.3. Correlates of Democratic Performance.

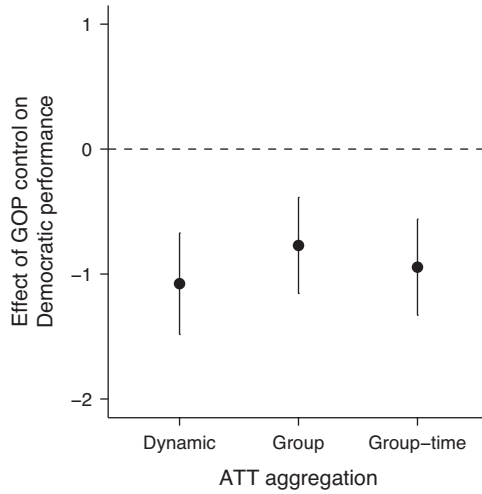


FIGURE A.4. GOP Control Results with Alternative ATT Aggregation.

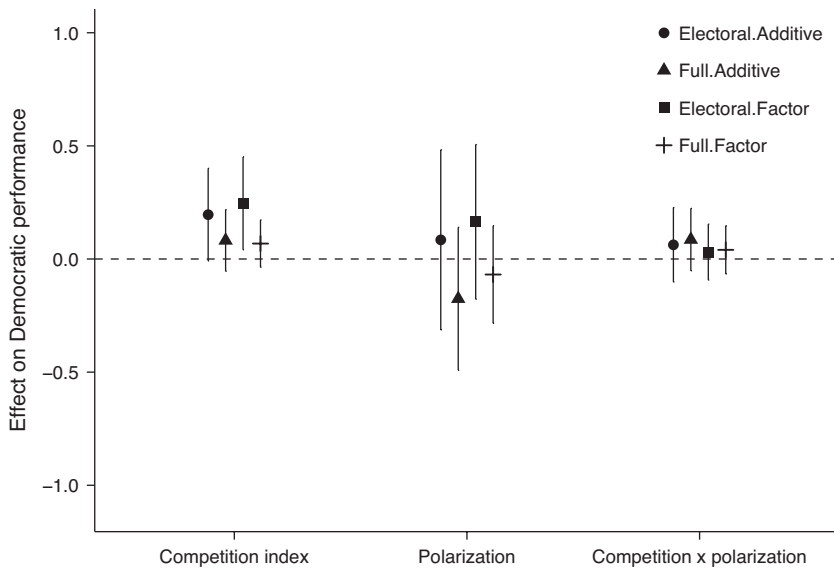


FIGURE A.5. The Interaction of Competition and Polarization with Alternative Democracy Measures.

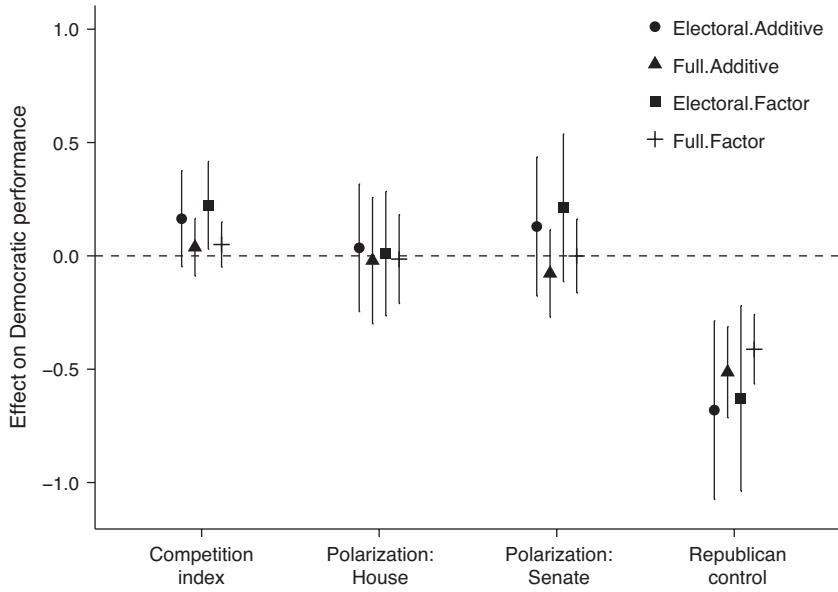


FIGURE A.6. Difference-in-Differences Results with Alternative Democracy Measures.

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